House Rules

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HRULE 1.1

Use of the Chamber

I. RULES OF ORDER

OF THE HOUSE OF REPRESENTATIVES

OF THE STATE OF LOUISIANA

CHAPTER 1. HOUSE CHAMBER

Rule 1.1. Use of the Chamber

The House Chamber shall not be used as a public meeting place and its use shall be confined to the House of Representatives and committees thereof and the Legislature of Louisiana and committees thereof, the Democratic State Central Committee, the Young Democrats of Louisiana, the Republican State Central Committee, the Young Republicans of Louisiana, the American Legion Louisiana Boys State, the American Legion Auxiliary Louisiana Girls State, the YMCA Youth Legislature, the Silver Haired Legislature, the Louisiana Jaycee Action Legislature, and the Louisiana Camp Fire Councils Legislature.

Mason's Manual: Sec. 705(3)

HR 2, 1973; HR 12, 1979; HR 22, 1979; HR 16, 1980; HR 27, 1984; HR 147, 2023, eff. May 25, 2023; HR 254, 2023, eff. June 7, 2023.

HRULE 1.2

Admission to the floor and chamber and House facilities

Rule 1.2. Admission to the floor and chamber and House facilities

A. Only the members of the House and the Clerk of the House; officers and employees of the House or of members of the House; the Secretary of the Senate, members of the Senate and the officers and employees of the Senate, or of senators; the director of the Legislative Council, the Legislative Auditor, the Legislative Fiscal Officer and their employees shall be admitted on the floor while the House is in session. The House floor, for purposes of these rules, is defined as that area so designated in the diagram of the House Chamber and House floor included in this rule.

B. One chair shall be permanently affixed to the floor at the desk of each House member, and no other chairs shall be permitted on the floor of the House.

C. Special permission to sit on the House floor may be granted by the presiding officer of the House to visiting officials of other states or of the United States or of foreign countries.

D. A designated place in the House Chamber shall be provided for the news media, who shall have free access thereto. Accreditation of members of the press and of members of any news media for admission shall be administered by the Speaker of the House or he may delegate this function to the House and Governmental Affairs Committee. No member of the press or of any news media shall conduct any formal interview with a House member on the House floor while the House is in session.

E. Section A of the attached diagram shall be designated for use of employees of the House and others designated in Paragraph A of this Rule and, upon permission of the presiding officer of the House, it shall be for the use of family members and special guests of House members.

F. Section B of the attached diagram shall be provided with seating facilities for the public and House members on a first-come, first-served basis. No person shall be allowed into this section unless there is an available seat.

G. One or more sergeants at arms shall be designated to supervise Section B, and one or more employees shall be designated to carry messages from the public in this area to any House member with whom a consultation is desired.

H. Seating facilities shall be provided for the public in the House gallery. Admittance shall be under such conditions as determined by the presiding officer of the House.

I. Only members of the House and of the Senate and legislative staff shall be admitted to the legislative lounges.

J. An interpreter designated and authorized by the presiding officer of the House to provide speech translation services for the House of Representatives shall be admitted to the floor while the House is in session in order to provide such services.

Mason's Manual: Sec. 705(3 and 6)

HR 3, 1973; HR 7, 1975; HR 4, 1978; HR 14, 1985; HR 4, 1st Ex. Sess., 1988; HR 13, 1988; HR 8, 1991, eff. Jan. 13, 1991; HR 45, 1998, eff. May 20, 1998; HR 3, 2018.

HRULE 1.3

Repealed

Rule 1.3. Repealed by HR 26, 2024, eff. April 9, 2024.

HRULE 1.4

Authorization to sit at a member's desk in the House Chamber

Rule No. 1.4. Authorization to sit at a member's desk in the House Chamber

In the chamber of the House of Representatives, an employee of the House of Representatives, legislative computer center, or legislative computer helpdesk may sit in the chair permanently affixed to the floor at the desk of a member of the House as provided by House Rule 1.2 if invited to do so by that member.

HR 77, 2009 RS, eff. June 24, 2009.

HRULE 1.5

Access revocation; lobbying

Rule 1.5. Access revocation; lobbying

A. No person who has been granted admission to the floor of the House Chamber shall lobby for or against, or under any other guise engage in any activity in support of or in opposition to, any legislative instrument or other matter before the House of Representatives or any committee thereof during the course of any legislative session. Any such activity shall be cause for the immediate confiscation and revocation of any badge issued to such person and removal of such person from the House Chamber upon order of the presiding officer.

B. The provisions of this Rule shall not prohibit the dissemination of purely factual information.

C. The provisions of this Rule shall not apply to any member of the legislature nor to any legislative employee subject to the provisions of House Rule 3.4.

Mason's Manual: Sec. 705(3)

HR 6, 2013, eff. May 30, 2013.

HRULE 2.1

Officers

CHAPTER 2. ORGANIZATION OF THE HOUSE; OFFICERS

Rule 2.1. Officers

The officers of the House of Representatives shall be the following: Speaker, Speaker Pro Tempore, Clerk, and Sergeant at Arms.

Mason's Manual: Sec. 575, 584, and 585

HR 3, 1973; HR 5, 2nd Ex. Sess., 1983; HR 1, 2005, eff. April 25, 2005, until Jan. 14, 2008.

HRULE 2.2

Organization meeting of the House

Rule 2.2. Organization meeting of the House

A. The members of the House shall meet in the House Chamber every four years at 10:00 a.m. on the second Monday in January after their election. The senior of those members-elect with most years of service as a member of the House who served in the House in the preceding term shall preside, or in his absence or inability or due to his candidacy to be elected as an officer of the House, the next most senior member shall preside.

B. The first order of business for the House shall be the calling of the roll of the members-elect of the House. The second order of business shall be offering of a prayer. The third order of business shall be the recitation of the pledge of allegiance. The fourth order of business shall be the judging of the qualifications and elections of the members. The fifth order of business shall be the taking of the oath or affirmation of office by the members. The sixth order of business shall be the election of the Clerk of the House and the Clerk's taking of the oath or affirmation of office. The seventh order of business shall be the election of the Speaker of the House and the Speaker's taking of the oath or affirmation of office. The eighth order of business shall be the election of the Speaker Pro Tempore of the House and the Speaker Pro Tempore's taking of the oath or affirmation of office.

HR 3, 1973; HR 5, 2nd Ex. Sess., 1983; HR 3, 1989; HR 76, 2007, eff. June 27, 2007.

HRULE 2.3

Speaker; election

Rule 2.3. Speaker; election

The Speaker of the House shall be elected by the members of the House from among the members thereof. Such election shall be viva voce and the favorable vote of fifty-three members shall be required to elect the Speaker. The Speaker shall be elected every four years at the organizational session of the legislature provided for in Article III, Section 2(D) of the Constitution of Louisiana at which the newly elected members take the oath of office. The election of the Speaker shall be the next order of business following the election of the Clerk. Vacancies in the office of Speaker shall be filled in the manner of the original selection.

Mason's Manual: Sec. 579; But see Mason's Manual Sec. 308, 453, 553, and 556

HR 3, 1973; HR 18, 1976; HR 5, 2nd Ex. Sess., 1983; HR 8, 1991, eff. Jan. 13, 1992.

HRULE 2.4

Speaker; removal

Rule 2.4. Speaker; removal

The member holding the office of speaker of the House may be removed from office during any session of the legislature at such time as fifty-three members of the House vote in favor of his removal from office. Such vote shall be *viva voce*.

Mason's Manual: Sec. 581; See also 453

HR 3, 1973; HR 18, 1976.

HRULE 2.5

Speaker; duties

Rule 2.5. Speaker; duties

The duties of the Speaker shall be the following:

(1) To preside at all sessions of the House; provided, that he may appoint any member to serve as presiding officer for a limited period which shall not extend beyond adjournment each day.

(2) To open the session at the time to which the House shall have adjourned by taking the chair and calling the members to order.

(3) To cause the House to proceed with its business in the proper order under the rules, if a quorum is present, and to announce the business before the House as the House proceeds upon each order of business.

(4) To preserve order and decorum particularly as otherwise provided by the rules of the House.

(5) To speak on points of order, in which case he shall have preference over other members.

(6) To decide all points of order, subject to appeal to the House as provided in House Rule 9.12.

(7) To explain or clarify any rule of procedure upon request.

(8) To state, or to direct the Clerk to state, each motion as it is made, as provided in House Rule 9.1.

(9) To recognize members who seek the floor for the purpose of speaking in debate or otherwise; provided, that such recognition shall be in accordance with House Rules 5.4 and 5.5.

(10) To state and put to a vote all questions requiring a vote or upon which a vote is ordered and to announce the vote as provided in House Rule 10.4.

(11) To cast his vote when the House is equally divided; otherwise he shall not be required to vote.

(12) To have general charge and supervision of the House Chamber, galleries, adjoining or connecting hallways and passageways, House committee rooms, and all space allocated to the House of Representatives.

(13) To appoint the membership of all House committees, except as provided in House Rule 6.4 and except as otherwise provided by law, rule or resolution; to appoint the House membership of conference committees as provided by House Rule 6.14, and to appoint the chairmen and vice chairmen of committees as provided in House Rule 6.2.

(14) To appoint a chairman for the Committee of the Whole, as provided for in House Rule 6.20.

(15) To refer all proposed legislation or other matter to be referred to committee to standing committees, as provided in House Rules 6.5, 6.8, and 7.2.

(16) To sign all documents which require his signature, particularly as provided in House Rules 7.12 and 7.13.

(17) At his discretion, to examine and correct the Journal.

(18) To have general charge and supervision over the Clerk and his assistants, the Sergeant-at-Arms and his assistants and all employees of the House.

(19) To employ and have authority to discharge all House employees.

(20) To do and perform such other duties as may be required by the Constitution and laws of the state, or by the legislature or the House of Representatives and such other duties as may properly appertain to the office of Speaker of the House.

(21) To provide that audio and video of each meeting of a committee or of the House be recorded and maintained for viewing on the Internet as provided in these Rules.

Mason's Manual: Sec. 96(2), 240(1), 513, 514, 575, 582(1 and 4), and 684(1 and 2)

HR 3, 1973; HR 4, 1978; HR 45, 1998, eff. May 20, 1998; HR 1, 2008 1st Ex. Sess., eff. Feb. 22, 2008.

HRULE 2.6

Acting Speaker

Rule 2.6. Acting Speaker

The Speaker or Speaker Pro Tempore may call upon a member to assume the duties of the presiding officer for a limited period, but in no case shall the period extend beyond adjournment each day. The member so appointed to preside shall be designated Acting Speaker. In the absence of the Speaker and the Speaker Pro Tempore, the Clerk, or, in the Clerk's absence, the employee performing the duties of Clerk shall call a member to serve as Acting Speaker.

Mason's Manual: Sec. 579(4)

HR 3, 1973; HR 4, 1978.

HRULE 2.7

Speaker Pro Tempore; election

Rule 2.7. Speaker Pro Tempore; election

The Speaker Pro Tempore of the House of Representatives shall be elected by the membership of the House from among the members thereof in the same manner as the Speaker. He shall be elected every four years at the time the Speaker is elected and his election shall be the next order of business following the election of the Speaker. He may be removed from office in the manner provided for removal of the Speaker. Vacancies in the office of Speaker Pro Tempore shall be filled in the manner of the original selection.

Mason's Manual: Sec. 556

HR 3, 1973.

HRULE 2.8

Speaker Pro Tempore; duties

Rule 2.8. Speaker Pro Tempore; duties

The duties of the Speaker Pro Tempore shall be the following:

(1) At the discretion of the Speaker, to assist the Speaker in his duties.

(2) In the absence of the Speaker, to preside or to call a member to preside as Acting Speaker.

(3) Upon the death of the Speaker, to assume the powers, duties, responsibilities and emoluments of the Speaker of the House until the first regular or special session of the legislature thereafter, at which time a new Speaker shall be elected; however, if the death of the Speaker occurs while the legislature is in session, the vacancy in the office of the Speaker shall be filled immediately.

(4) In the event of the disability or absence of the Speaker of the House of Representatives, to assume the powers, duties and responsibilities of the Speaker until the termination of such disability or absence, both the disability or absence and the termination thereof to be certified by the Speaker of the House or by a majority of the members of the House of Representatives by roll call vote or mail ballot, for which service the House of Representatives shall make appropriate financial recompense.

(5) To perform such other duties or functions and to exercise such powers as shall be prescribed by the Constitution or laws of the state or by the legislature or the House of Representatives.

Mason's Manual: Sec. 579(3 and 5)

HR 3, 1973.

HRULE 2.9

Clerk of the House; election

Rule 2.9. Clerk of the House; election

The Clerk of the House of Representatives shall be elected in the same manner as the Speaker. He shall be elected every four years immediately after the members of the House take the oath of office at the organizational session of the legislature provided for in Article III, Section 2(D) of the Constitution of Louisiana. His election shall be the first order of business following such swearing in of the members of the House. He may be removed from office in the manner provided for removal of the Speaker. Vacancies in the office of the Clerk shall be filled in the manner of the original selection.

Mason's Manual: Sec. 556

HR 3, 1973; HR 5, 2nd Ex. Sess., 1983; HR 8, 1991, eff. Jan. 13, 1992.

HRULE 2.10

Clerk of the House; duties

Rule 2.10. Clerk of the House; duties

A. The duties of the Clerk while the legislature is in session shall include the following:

(1) To maintain a Journal of the proceedings of the House and of the Committee of the Whole and be responsible for their accuracy, for which purpose he is authorized to make corrections in the Journals whenever necessary, and to record the members present and those absent in the daily Journals.

(2) To maintain a calendar of action taken on each legislative instrument and to record daily the action taken on each such instrument for inclusion in the Calendar.

(3) To be responsible for all legislative instruments and documents in the custody of the House or in passage from the House to the Senate and to keep them in proper order.

(4) To maintain the calendars of bills, resolutions, and joint resolutions to be taken up and acted upon by the House.

(5) To refer to the Legislative Bureau all legislative matter intended to have the effect of law, originating in the Senate, prior to third reading in the House, as provided in House Rule 8.19.

(6) To cause legislative instruments to be printed and distributed as required in House Rules 7.2, 7.6, and 7.9.

(7) To have enrolled all bills, joint resolutions, and concurrent resolutions originating in the House of Representatives which have passed both houses, said enrollment to include all changes agreed upon by both houses and any technical corrections pursuant to Subparagraph (14) of this Paragraph and to have enrolled all House Resolutions adopted by the House, including all amendments adopted thereto and any technical corrections made thereto pursuant to Subparagraph (14) of this Paragraph.

(8) To endorse all legislative instruments which are enrolled, attesting to the accuracy of the enrollment thereof.

(9) To present legislative instruments signed by the Speaker, except House Resolutions, to the President of the Senate for signature.

(10) To keep a record of all legislative instruments presented to the governor and the time of the delivery of each to him.

(11) To publish Legislative and House Calendars as required by House Rule 12.6.

(12) To make available, electronically, prior to convening each day an order of the day for the House which shall consist of a listing of the regular and special orders of business of the House for that day; an enumeration of each legislative instrument to be acted upon that day in each such order of business; an enumeration of all legislative instruments for which a notice of intention to call from the calendar has been given in accordance with House Rule 8.20; and an enumeration of all legislative instruments which have been returned to the calendar. No hard copies of the order of the day shall be distributed to a member unless the member specifically requests a hard copy.

(13) To receive all reports of standing committees as provided in House Rule 6.11, including those to be recommitted as provided in House Rule 6.8.

(14) To cause all legislative instruments which the House orders to be engrossed or reengrossed to be typed so as to include and reflect all amendments which have been adopted at the time of such order, as provided in House Rule 7.8, and to make technical corrections in such

legislative instruments and in legislative instruments originating in the House of Representatives upon enrollment as follows:

(a) To number, designate, renumber, or rearrange, or redesignate items in a numerical or alphabetical listing to establish a numerical or alphabetical sequence.

(b) To change reference numbers to agree with numbered Chapters and Sections.

(c) To substitute the proper Chapter, Section, or other subdivision term or other proper citation for the terms "this Act," "the preceding Section," and the like.

(d) To delete figures where they are merely a repetition of written words and vice versa.

(e) To change capitalization for the purpose of uniformity.

(f) To correct misspellings and manifest punctuation and other typographical errors.

(15) To receive all requests and information from members of the House relative to congratulatory and commendatory certificates in accordance with Joint Rule 9.

B. The duties of the Clerk while the House is convened shall include the following:

(1) To state motions offered in the House, at the discretion of the Speaker, and to read motions presented in writing.

(2) To read the Journal daily unless such reading is dispensed with by a majority of the members present or the Journal is unavailable, as required by House Rule 12.5. The Journal shall only be made available electronically to the members. No hard copies of the Journal shall be distributed to a member unless the member specifically requests a hard copy.

(3) To inform the House as to whether or not he has amendments on his desk which members have handed him for the purpose of proposing to the instrument under debate, and to name the authors of any such amendments whenever the motion for the previous question, or the motion for the previous question on the entire subject matter is offered, as required by House Rule 9.10(C).

(4) To present petitions, memorials, communications and other papers addressed to the House during the appropriate order of business of the Morning Hour as required in House Rule 8.7.

(5) To number every legislative instrument in its regular order upon first reading, as required by House Rule 7.3.

(6) To endorse each legislative instrument with the action taken thereon, as required by House Rule 7.7.

(7) To announce the receipt of each veto message as received from the governor as provided in House Rule 8.28.

(8) To call a member to preside in the absence of the Speaker or Speaker Pro Tempore, as provided in House Rule 2.6.

(9) To announce the committee reference for prefiled instruments which have been referred to committee prior to the session on the day of introduction, as required by House Rule 7.2.

(10) To announce on the day of introduction any committee report for prefiled instruments which have been reported by committee prior to the session as provided by House Rule 6.11 which has not been published in the Interim Calendar.

C. The duties of the Clerk during the interim between legislative sessions shall include the following:

(1) To make available to the news media, to the public and to registered lobbyists notices of interim meetings of committees as provided in House Rule 14.24.

(2) To prefile legislative instruments and distribute copies thereof as provided in House Rules 7.2 and 7.6.

(3) Upon petition of ten members of the House, to transmit to each member a mail ballot relative to the certification of the disability or absence of the Speaker as provided in House Rule 2.8(4).

(4) To prescribe the form for income reports and to receive income reports from each member of the House of Representatives, as provided in House Rule 4.8.

(5) To retain the original and introduction copies of prefiled instruments, to transmit copies to the committee of reference and reclaim copies therefrom, as provided in House Rule 7.2(C).

(6) To enter committee reports on prefiled instruments in the Interim Calendar, as provided in House Rule 12.7.

(7) To make available all prefiled instruments upon request and to transmit such copies to House members, as provided in House Rule 7.6(B).

(8) To maintain and distribute an Interim Calendar, as provided in House Rule 12.7.

D. The duties of the Clerk throughout the year shall include the following:

(1) To act as parliamentarian of the House of Representatives and to advise the officers and members of the House on parliamentary procedure and the rules of the House when called upon to do so.

(2) To be responsible for the keeping of all bills, resolutions and joint resolutions, papers and records of the House of Representatives and records of the proceedings and actions of the House.

(3) To insure compliance with House Rule 1.1 relative to use of the House Chamber.

(4) To arrange, number and correct cross-references in the Rules of Order of the House of Representatives, following any amendment thereto; to effect a consistent and orderly arrangement of the rules; to exercise the same authorities, concurrently with the Secretary of the Senate, with respect to the Joint Rules of the Senate and House of Representatives.

(5) Repealed by HR 13, 2020 R.S., eff. May 31, 2020.

(6) To attest to the signature of the Speaker on legislative instruments, writs, warrants, and subpoenas, as provided in House Rule 7.13.

(7) To ensure the timely receipt by each member of all material required by rule or law to be transmitted by the clerk to the membership by the United States Postal Service, including, if necessary, sending duplicate materials by facsimile transmission, electronic mail, commercial delivery, or any other reasonable means at his disposal, or combination thereof to accomplish this duty and, if necessary, contacting a member by telephone or other means if the clerk has reason to believe that the member has not received the material.

(8) To perform all other duties prescribed by law.

(9) To faithfully and promptly execute all orders of the House.

(10) To periodically revise, subject to the approval of the Committee on House and Governmental Affairs, the list of the customs, usages, and practices affecting legislative procedure of the House of Representatives.

Mason's Manual: Sec. 405 and 584

HR 3, 1973; HR 8, 1974; HR 1, 1988 2nd Ex. Sess.; HR 19, 1997, eff. April 11, 1997; HR 45, 1998, eff. May 20, 1998; HR 3, 1999; HR 9, 2000 1st Ex. Sess.; HR 1, 2005, eff. April 25, 2005, until

Jan. 14, 2008; HR 4, 2006 2nd Ex. Sess., eff. Dec. 13, 2006; HR 76, 2007, eff. June 27, 2007; HR 16, 2008 1st Ex. Sess., eff. Feb. 22, 2008; HR 6, 2013, eff. May 30, 2013; HR 13, 2020, eff. May 31, 2020.

HRULE 2.11

Sergeant at Arms; appointment

Rule 2.11. Sergeant at Arms; appointment

The Sergeant at Arms of the House of Representatives shall be appointed by the Speaker. He shall be appointed every four years at the time the Speaker is elected and his appointment shall be the next order of business following election of the Speaker Pro Tempore. He shall serve at the pleasure of the Speaker. Vacancies in the office of Sergeant at Arms shall be filled by appointment by the Speaker.

Mason's Manual: Sec. 585(1)

HR 3, 1973; HR 3, 2nd Ex. Sess., 1983.

HRULE 2.12

Sergeant at Arms; duties

Rule 2.12. Sergeant at Arms; duties

The duties of the Sergeant at Arms shall be the following:

(1) To be in attendance in the House Chamber while the House is in session.

(2) To maintain order in the House Chamber and in the committee rooms and offices of the House and of its officers and employees.

(3) To attend, or cause an assistant sergeant at arms to attend, each committee meeting during sessions of the legislature, and such meetings between sessions as directed by the Speaker, for the purpose of assisting the chairman in any manner that will aid the work of the committee.

(4) Under the direction of the Speaker and the Clerk to oversee the physical arrangement of the House Chamber, the committee rooms, and offices of the House and of its officers and to maintain security therein.

(5) Under the direction of the Speaker and the Clerk to be responsible for the carrying out of the duties of all assistant sergeants at arms.

(6) To execute all such process as may be issued by authority of the House as he shall be directed to execute by the Speaker.

(7) To carry out all commands and directions of the House or the Speaker.

HR 3, 1973.

HRULE 3.1

Employees

CHAPTER 3. EMPLOYEES

Rule 3.1. Employees

A. The Speaker shall employ such persons as are necessary to carry out the business of the House who shall be under the authority and control of the Speaker.

B. During session of the legislature, the Speaker shall employ additional persons including but not limited to the following:

(1) Desk clerks.

(2) Assistant sergeants at arms.

(3) Messengers.

(4) Pages.

C. All session-only employees shall be under the general authority and control of the Speaker and shall be subject to general supervision by the Clerk. The assistant sergeants at arms shall be under the immediate direction of the Sergeant at Arms.

HR 3, 1973; HR 45, 1998, eff. May 20, 1998.

HRULE 3.2

Assistant Clerk

Rule 3.2. Assistant Clerk

One of the desk clerks shall be designated by the Speaker as the Assistant Clerk and, in the event of the disability or absence of the Clerk or of a vacancy in the office of Clerk, shall take charge of and attend to all duties of the office of Clerk until the clerk resumes his duties or until a successor is elected.

Mason's Manual: Sec. 584(3)

HR 3, 1973; HR 45, 1998, eff. May 20, 1998.

HRULE 3.3

Pages

Rule 3.3. Pages

Upon recommendation of the Clerk, the Speaker shall employ persons to serve as pages during sessions of the legislature. They shall receive a uniform rate of pay. The minimum age for pages shall be sixteen years, and a page must be a high school graduate, on vacation from school, or officially excused from school for the period of his employment. The pages shall be under the supervision of the Clerk of the House, who shall provide rules and regulations covering their duties. In addition, a page may be assigned to attend each committee meeting, to assist the chairman in any manner that will aid in the work of the committee.

HR 3, 1973; HR 45, 1998, eff. May 20, 1998.

HRULE 3.4

House employees; lobbying

Rule 3.4. House employees; lobbying

No person employed by the House of Representatives shall lobby for or against, or under any other guise engage in any activity in support of or in opposition to, any legislative instrument or other matter before the House of Representatives or the Senate during the course of any legislative session and any such activity shall be cause for immediate dismissal from employment.

HR 3, 1973.

HRULE 3.5

House Legislative Services; executive director

Rule 3.5. House Legislative Services; executive director

A.(1) The Subcommittee on Personnel of the House Executive Committee shall be responsible for the employment and supervision of a research, drafting, and committee staff for the House of Representatives. Such staff shall be designated as House Legislative Services, and shall have as its purpose the provision of research, drafting, and similar legislative services to the House of Representatives, its members, and committees. House Legislative Services employees shall have, without limitation, the following duties: (a) the furnishing of research and bill drafting services to members of the House and the committees of the House; (b) providing objective reports on the context of pending and adopted legislation; (c) the preparation of manuals, directories, and similar informational materials for the use of the House and its officers and employees; (d) providing professional services on behalf of the House of Representatives or its committees; and (e) the performance of all other duties the subcommittee or the speaker deems essential to the work of the House and the legislature generally, and the members thereof.

(2) Unless explicitly required by law, House Legislative Services shall not provide staff support to any special study commission, task force, or like entity unless a majority of its membership is composed of members of the House of Representatives and then only upon the explicit direction of the speaker.

B. House Legislative Services shall be under the general supervision and control of the Subcommittee on Personnel of the House Executive Committee, which shall employ an executive director who shall be the administrative officer of House Legislative Services. With respect to the operations of the standing committees of the House, supervision of the House Legislative Services staff personnel assigned to those committees shall be exercised by the executive director in coordination with the respective committee chairmen.

C. The executive director, with the approval of the Subcommittee on Personnel of the House Executive Committee, shall have the authority to employ, terminate, and fix the salaries of such staff as shall be necessary to carry out the purposes of House Legislative Services pursuant to policies adopted by the subcommittee.

HR 14, 1981; HR 4, 1982; HR 8, 1991, eff. Jan. 13, 1992; HR 45, 1998, eff. May 20, 1998; HR 1, 2008 Org. Sess., eff. Jan. 15, 2008; HR 13, 2020, eff. May 31, 2020.

HRULE 4.1

Absence

CHAPTER 4. MEMBERS AND QUORUM

Rule 4.1. Absence

No member of the House of Representatives shall be absent from any session of the House unless he has been granted leave by the House or is unable to attend because of illness.

Mason's Manual: Sec. 195(1)

HR 3, 1973.

HRULE 4.2

Presence recorded

Rule 4.2. Presence recorded

Any member who enters the House Chamber after the roll has been called shall immediately notify the Clerk of his arrival and the Clerk shall record him as present in the Journal.

HR 3, 1973.

HRULE 4.3

Quorum

Rule 4.3. Quorum

A quorum of the House of Representatives is hereby defined as a majority of the elected members of the House.

Mason's Manual: Sec. 49(2), See also 502

HR 3, 1973.

HRULE 4.4

Quorum necessary to transact business

Rule 4.4. Quorum necessary to transact business

The presence of a quorum of the House is required for the House to transact business; however, a smaller number of members may adjourn from day to day and shall have the power and authority to compel the attendance of absent members.

Mason's Manual: Sec. 500, 505(2), and 506

HR 3, 1973.

HRULE 4.5

Quorum call; record vote

Rule 4.5. Quorum call; record vote

A. A quorum call to ascertain whether or not a quorum is present shall be in order at any time except when a member has the floor.

B. When a member of the House requests a quorum call, the presiding officer shall direct the Clerk to open the voting machine for a roll call. If fifty-three members answer such roll call, a quorum shall be deemed to be present. The same roll call procedure, to determine the presence of a quorum, shall be followed as the first order of business in the Morning Hour.

C. At the request of twenty-one members of the House prior to any vote, the presiding officer shall direct the Clerk to lock the voting machine of any member who does not answer such quorum call. A machine which is locked as a result thereof shall remain locked until the motion or motions subject to the previous question or previous question on the entire subject matter are disposed of, or until the Clerk is notified that the member has returned to the House Chamber. After such voting machines are locked, each vote on any subsequent motion or motions subject to the previous question or the previous question on the entire subject matter shall be a record vote.

Mason's Manual: Sec. 504 and 505(3)

HR 3, 1973; HR 5, 1981; HR 1, 1989; HR 45, 1998, eff. May 20, 1998.

HRULE 4.6

Compelling attendance of absent members

Rule 4.6. Compelling attendance of absent members

A majority of the members present may compel the attendance of absent members.

Mason's Manual: Sec. 190-197

HR 3, 1973.

HRULE 4.7

Members; interim compensation

Rule 4.7. Members; interim compensation

The members of the House of Representatives shall receive the same per diem and travel allowance, as is provided for members of the legislature in session, for attendance, during the interim between sessions, at meetings of standing committees, joint committees established under House Rule 14.16, subcommittees of either standing or joint committees, task forces or study committees created by the legislature or by the Speaker, and for other legislative duties as appointed or assigned by the Speaker. The per diem and travel allowance herein authorized and all other expenses incurred by House committees shall be paid for out of funds available to the Speaker for the expenses of the legislature and committees. The expenses of the joint committees, other than per diem and travel allowances, shall be paid out of such funds available to the Speaker and such funds available to the President of the Senate.

HR 8, 1973; HR 17, 1973; HR 4, 1978; HR 45, 1998, eff. May 20, 1998.

HRULE 4.8

Required financial reports; contempt; penalties

Rule 4.8. Required financial reports; contempt; penalties

A.(1) Failure to file a financial disclosure report as required by law shall constitute contempt of the House of Representatives.

(2) By not later than thirty days after the due date of the required report, the Clerk shall advise the members of the House of the names of those members who have not filed a financial disclosure report as required by law. Any member or members may introduce a Resolution initiating procedures to find a member who has failed to file in contempt of the House of Representatives by reason of failure to file the required report. Such Resolution shall set forth the facts concerning the failure of the member to file the report and shall set out the facts and evidence which are the basis for instituting the action to find the member in contempt. Such Resolution shall be subject to the procedures as provided in Paragraph B below.

B. A Resolution introduced pursuant to this Rule shall not be deemed to be a perfunctory resolution, and shall be referred to and heard by the Committee on House and Governmental Affairs. Notice of such hearing shall be served by the sergeant at arms upon the member cited or on his attorney not less than five days prior to the date of the hearing. At such hearing, the member cited or his attorney shall be permitted to offer any explanation, evidence in mitigation, or defense which may be relevant. Thereafter, such Resolution shall follow the ordinary procedure of a House Resolution. Final passage of the Resolution shall be by record vote.

C. Upon adoption of a Resolution finding a member in contempt of the House of Representatives as provided in this Rule, the House shall establish the penalty to be assessed for the contemptuous behavior by adoption of a motion. Such penalty shall be a fine of not in excess of one thousand dollars and suspension of payment of all compensation from the House of Representatives until the required report is filed. Enforcement of the judgment shall be by rule to make the same executory instituted before the Nineteenth Judicial District Court.

HR 13, 1st Ex. Sess., 1975; HR 15, 1st Ex. Sess., 1975; HR 28, 1991; HR 20, 1992; HR 1, 1994; HR 3, 1999.

HRULE 4.9

Memorial Day Commemoration; delegation

Rule 4.9. Memorial Day Commemoration; delegation

The Speaker shall appoint a delegation to organize and coordinate an appropriate commemoration of the men and women who lost their lives while serving in the United States Armed Forces. The Speaker shall appoint the officers of the delegation including the chairman who shall be a member who is a veteran of the United States Armed Forces. The commemoration shall occur on an appropriate day in the month of May.

HR 2, 2006 2nd Ex. Sess., eff. Dec. 13, 2006; HR 135, 2013, eff. June 5, 2013.

HRULE 4.10

Chairmen; interim meetings; legislative continuance or extension; notice to the Speaker

Rule 4.10. Chairmen; interim meetings; legislative continuance or extension; notice to the Speaker

A. A chairman of any committee or task force, including any subcommittee thereof, shall disclose in writing to the Speaker, no later than twenty-four hours after calling a meeting during the interim between sessions, if the chairman knows or reasonably should know the meeting will cause or has caused the chairman to file a motion for legislative continuance or extension pursuant to R.S. 13:4163 on a previously scheduled court proceeding, hearing, or deadline.

B. In the disclosure required by Paragraph A of this Rule, the chairman shall include the reasons why the meeting could not have been scheduled on a different date.

HR 185, 2023, eff. June 7, 2023.

HRULE 5.1

Decorum

CHAPTER 5. DECORUM AND DEBATE

Rule 5.1. Decorum

A. Every person shall confine himself to civil and decorous language and behavior when addressing the House or any committee thereof.

B.(1) The use of personal electronic devices within the House Chamber and within a committee room when a legislative body is convened therein shall be limited and not used in a disruptive manner. Any such device shall be muted in the House Chamber or a committee room when a legislative body is convened therein.

(2) The provisions of Subparagraph (1) of this Paragraph shall not apply to the Sergeant at Arms, assistant sergeants at arms, capitol security officers, or first responders when on duty.

Mason's Manual: Sec. 121, 122, and 575

HR 3, 1973; HR 4, 1st Ex. Sess., 1988; HR 26, 2024, eff. April 9, 2024.

HRULE 5.2

Violation of rules

Rule 5.2. Violation of rules

A. Should any member violate the Rules of Order of the House, in speech or otherwise, the presiding officer shall, and any member may, call him to order. Any member so called to order shall immediately take his seat unless the House permits him to explain his actions, upon his motion or that of another member duly adopted.

B. If a member is called to order by another member, he may appeal to the presiding officer for a ruling concerning the same. He may also appeal to the House the call to order by a member or the presiding officer, or the ruling by the presiding officer. The House shall decide such an appeal without debate. If the decision of the presiding officer or of the House, as the case may be, is in favor of the member, he shall be allowed to proceed. If the decision is against him he shall immediately take his seat, and if the case is of sufficient seriousness to require it, he shall be liable to censure by the House.

C. If after being called to order, a member persists in breach of decorum, it shall be the duty of the presiding officer to reprimand the offending member. Upon his motion or that of another member duly adopted, the member may be permitted to explain his actions. He may appeal the reprimand to the House, which appeal shall be decided without debate.

D. Should the member continue to be in disorder after reprimand, or refuse to submit to reprimand, the presiding officer may cause him to be ejected from the House for a stated period, or for such other period as may be stated by the House upon motion duly adopted, and he shall not again be admitted to the floor during the specified time, except by a vote of the House, and upon such conditions and terms of apology as it may prescribe.

Mason's Manual: Sec. 122, 122(4), 123, and 123(5 and 6)

HR 3, 1973; HR 4, 1978.

HRULE 5.3

Clearing the Chamber

Rule 5.3. Clearing the Chamber

In case of disturbance or disorderly conduct, the presiding officer, or chairman of the Committee of the Whole, may, or at the request of one-third of those present and voting, shall clear the entire Chamber, or any part thereof, including the gallery, Memorial Hall, or other environs, of any or all persons causing or creating the disturbance. This rule shall not apply to any member of the news media, unless it has been determined that such member is causing or creating the disturbance or is guilty of disorderly conduct. Any person, persons, or groups of persons may be readmitted to the House Chamber upon approval of the Speaker or a majority of the House members present and voting.

Mason's Manual: Sec. 705(3)

HR 3, 1973; HR 4, 1st Ex. Sess., 1988.

HRULE 5.4

Recognition to address the House

Rule 5.4. Recognition to address the House

When any member wishes to speak in debate, he shall press his "floor" or "question" button to register his desire. The presiding officer shall recognize those members whose names are registered in this manner. If a main motion and a debatable subsidiary motion are before the House, the presiding officer may differentiate between those members wishing to debate each motion.

Mason's Manual: Sec. 91

HR 3, 1973; HR 4, 1st Ex. Sess., 1988.

HRULE 5.5

Recognition when voting machine out of order

Rule 5.5. Recognition when voting machine out of order

At any time the voting machine is out of order, as determined by the presiding officer or by a majority of the members present, the presiding officer shall so inform the membership. Thereafter, when any member wishes to speak in debate he shall rise from his seat and address the chair. When two or more members rise to be recognized at the same time, the presiding officer shall name the one who shall be first to speak.

Mason's Manual: Sec. 91

HR 3, 1973; HR 4, 1st Ex. Sess., 1988.

HRULE 5.6

Points of order and information

Rule 5.6. Points of order and information

When a member wishes to raise a point of order or point of information, he shall rise from his seat and address the chair. When two or more members rise to be recognized at the same time, the presiding officer shall name the one to speak first.

Mason's Manual: Sec. 149(2) and 240-246

HR 4, 1st Ex. Sess., 1988.

HRULE 5.7

Limits on debate

Rule 5.7. Limits on debate

A. No member shall speak more than twice during debate on the same question, nor more than one-quarter of an hour on each occasion, without leave of the House, nor more than once until every member choosing to speak shall have spoken. The author of a legislative instrument, if it originated in the House, and the member handling the instrument, if it originated in the Senate, shall have the right to open and close the debate or to designate a member or members to represent him. Closing debate shall be limited to fifteen minutes.

B. A member may yield part of his allotted time to another member only upon closing remarks in a debate.

Mason's Manual: Sec. 80(3), 102, and 355-361

HR 3, 1973; HR 4, 1st Ex. Sess., 1988.

HRULE 5.8

Attire for members

Rule 5.8. Attire for members

A. While in the House Chamber when the House is in session or in a House committee room while participating in a meeting of a legislative committee during a legislative session, male members shall wear a coat, tie, and slacks or suit and female members shall wear a business dress or suit or pantsuit.

B. During the interim, the chairman of each committee and subcommittee may determine the appropriate attire for members in attendance at interim meetings of the committee or subcommittee. If the chairman of a committee or subcommittee determines that certain attire will be required for attendance at an interim meeting of the committee or subcommittee, the chairman shall give each member of the committee or subcommittee adequate notice of such requirement.

HR 24, 1984; HR 19, 1993; HR 48, 2001; HR 112, 2001.

HRULE 5.9

Tobacco products

Rule 5.9. Tobacco products

No person shall use any tobacco product, including without limitation any cigar, cigarette, smokeless tobacco, or smoking tobacco, in any space within the Louisiana State Capitol allocated to the House of Representatives.

HR 11, 1998; HR 69, 2008, eff. May 19, 2008.

HRULE 6.1

Standing Committees; select committees

CHAPTER 6. COMMITTEES

Rule 6.1. Standing Committees; select committees

A. There shall be sixteen standing committees of the House of Representatives whose duties respectively shall be to take into consideration all such subjects as properly pertain to the subjects and purposes assigned to each of them and which may be referred to them by the House. The sixteen standing committees of the House shall be the following:

(1) Administration of Criminal Justice.

(2) Appropriations.

(3) Agriculture, Forestry, Aquaculture, and Rural Development.

(4) Civil Law and Procedure.

(5) Commerce.

(6) Education.

(7) Health and Welfare.

(8) House and Governmental Affairs.

(9) Insurance.

(10) Judiciary.

(11) Labor and Industrial Relations.

(12) Municipal, Parochial and Cultural Affairs.

(13) Natural Resources and Environment.

(14) Retirement.

(15) Transportation, Highways and Public Works.

(16) Ways and Means.

B.(1) The Speaker may establish select committees for specific studies or investigations or other specified purposes.

(2) The Speaker shall appoint the members of each select committee and designate the chairman and vice chairman of each select committee.

(3) A select committee established pursuant to this Paragraph shall have the same powers, duties, and authorities and shall be subject to the same rules as standing committees. Specifically, each select committee is expressly granted the power and authority to hold hearings, subpoena witnesses, administer oaths, require the production of books and records, and to do all things necessary to accomplish the purpose assigned to it by the Speaker, in the same manner and subject to the same procedures provided in House Rule 14.51 for standing committees and joint committees and subcommittees thereof.

Mason's Manual: Sec. 600-602

HR 3, 1973; HR 4, 1976; HR 4, 1980; HR 2, 1992 Org. Sess.; HR 1, 1996 Org. Sess.; HR 13, 2003; HR 1, 2004 1st Ex. Sess.; HR 1, 2008 Org. Sess., eff. Jan. 15, 2008; HR 1, 2022, eff. March 23, 2022.

HRULE 6.2

Chairman and Vice Chairman

Rule 6.2. Chairman and Vice Chairman

The Speaker of the House of Representatives shall appoint a chairman and a vice chairman for each standing committee.

Mason's Manual: Sec. 602 and 608

HR 3, 1973.

HRULE 6.3

Membership of standing committees

Rule 6.3. Membership of standing committees

A. The members of the standing committees, except the Committee on Appropriations, shall be appointed by the Speaker. No member of the House of Representatives shall serve on more than three standing committees and no member shall serve on more than one committee designated as a "Morning Committee" nor on more than one committee designated as a "Afternoon Committee" nor on more than one committee designated as a "Weekly Committee" as is set forth in House Rule 6.7. No chairman of a standing committee designated as a "Morning" or "Afternoon" committee shall serve on another standing committee. No chairman of a standing committee designated as a "Weekly Committee" shall serve on more than one other standing committee.

B. No standing committee shall be composed of more than eighteen members, excluding the chairman; provided that the Committee on Appropriations membership shall be as provided in House Rule 6.4.

C.(1) The Speaker and the Speaker Pro Tempore of the House shall be ex officio members of all standing committees. They shall have the powers and authorities of other committee members as long as their presence is necessary to establish a quorum.

(2) During the interim between legislative sessions, the Speaker and the Speaker Pro Tempore each may either serve as an ex officio member of each standing committee or may designate another member of the House to serve in his ex officio position as a member of a standing committee during the interim.

(3) The Speaker and the Speaker Pro Tempore, if serving in an ex officio capacity, shall not be counted in determining the number of members necessary to constitute a quorum, but, if present, shall be counted for purposes of establishing a quorum at any meeting. However, they shall be counted for all quorum and voting requirements of any statutory committee of which they are members by virtue of membership on a standing committee.

(4) During the interim for the consideration of matters, subjects, or problems by a committee in the interim pursuant to House Rule 14.16(A)(1), (2), or (3), designees of the Speaker or the Speaker Pro Tempore, designated pursuant to Paragraph (2) above, shall have all powers and authorities of other committee members, including the right to vote except on questions concerning prefiled legislative instruments. They shall be counted for purposes of determining the number of members necessary to constitute a quorum and for purposes of establishing a quorum.

Mason's Manual: Sec. 600(1) and 601

HR 3, 1973; HR 5, 1975; HR 4, 1978; HR 14, 1984; HR 5, 1986; HR 19, 1988; HR 14, 1989; HR 13, 1991, eff. Jan. 13, 1992; HR 1, 1992 Org. Sess.; HR 19, 1997, eff. April 11, 1997; HR 45, 1998, eff. May 20, 1998; HR 1, 2005, eff. April 25, 2005, until Jan. 14, 2008.

HRULE 6.4

Committee on Appropriations; subcommittees

Rule 6.4. Committee on Appropriations; subcommittees

A. Appropriations. The Committee on Appropriations shall be composed of twenty-five members, of whom seventeen shall be appointed by the Speaker and eight shall be elected, both as provided herein. Of the seventeen appointed members, one member shall be a resident of each of the Public Service Commission districts respectively, one member shall be a resident of each of the congressional districts respectively, and the remainder shall be appointed from the state at large. Of the eight elected members, one member shall be a resident of each of the districts for the election of members to the State Board of Elementary and Secondary Education respectively; such districts are hereinafter referred to as BESE districts.

B. The elected members shall be elected in the following manner:

(1) The election shall be held after the general election for members of the House of Representatives from among the members-elect.

(2) Each member-elect shall be eligible to be a candidate from the BESE district within which the member-elect resides at the time the election is held.

(3) Within five days after the promulgation of the official returns of each general election for members of the House of Representatives, the Clerk shall transmit to each member-elect a notice of candidacy form and an outline of the procedure for the election of members of the committee.

(4) Each member-elect who wishes to be a candidate for membership on the committee shall return the notice of candidacy to the Clerk within ten days after the notice of candidacy was transmitted by the Clerk.

(5) Within three days after the final day for the receipt of the notice of candidacy, the Clerk shall transmit to each member-elect the ballot listing the candidates from the BESE district within which the member-elect resides.

(6) The ballots shall be prepared separately by BESE district and shall list the name and address of each member-elect who has declared himself to be a candidate from the respective districts. The ballot shall contain the name of the member-elect to whom it is to be transmitted.

(7) Each member-elect shall mark the ballot with his choice for one of the candidates and shall return the ballot to the Clerk within fifteen days after the ballot was transmitted by the Clerk.

(8) No ballot received by the Clerk after five o'clock p.m. on the fifteenth day after the date on which the ballots were transmitted shall be counted, but the day and time received shall be recorded for each ballot received after such time, and the ballot shall be invalid. However, prior to five o'clock p.m. on the fifteenth day after the date on which the ballots were transmitted, a member-elect may withdraw his ballot or change his vote upon his request.

(9) Each candidate who receives a majority of the votes cast by the members-elect voting in his or her BESE district shall be elected to the committee.

(10) If no candidate receives a majority of the votes cast in a BESE district, the Clerk shall conduct a run-off election between the two candidates who receive the highest number of votes. The run-off election shall be conducted in the same manner as the original election.

(11) The candidate receiving the highest number of votes in the run-off election shall be elected to the committee.

(12) If the run-off election results in a tie vote, the two candidates shall cast lots under the supervision of the Clerk to determine which candidate shall be elected to the committee.

(13) On or before the twentieth day after the date on which the ballots were transmitted, the Clerk shall tabulate the votes by BESE district. Prior to the tabulation, the Clerk shall not disclose the contents of any ballot to any person until the day when the votes are tabulated.

(14) The tabulation of the results of the election in each BESE district shall indicate by name the candidate for whom each member-elect voted and the name of each member-elect who did not vote. The Clerk shall sign each of the tabulation sheets.

(15) The Clerk shall promulgate the returns of the elections within three days after the date on which the votes were tabulated. Promulgation shall be accomplished by transmitting a copy of the tabulation sheets to each member-elect. The vote in each election as tabulated by the Clerk shall be recorded in the Journal.

(16) The notices of candidacy returned by the members-elect and the ballots cast by the members-elect shall be public record.

(17) The Clerk shall initiate and oversee the design and implementation of a system to allow each member-elect to electronically vote and return his ballot. The system shall be accurate and secure, and the Clerk shall certify that the system meets these requirements.

C. Vacancies in the membership of the Appropriations Committee shall be filled in the manner of the original appointment or election as the case may be.

D. Any elected member of the committee may be removed by a majority of those members who reside in the BESE district from which the member was originally elected.

(1) Removal shall be accomplished by delivery to the Speaker of an affidavit signed by a majority of those members who reside in a BESE district expressing their intent to remove an elected member.

(2) Upon receipt of the affidavit, the Speaker shall declare a vacancy in the membership of the committee and direct the Clerk to conduct an election to fill the vacant position.

E. For the transmittal of the notice of candidacy forms and the ballots required by this Rule, the Clerk shall utilize a method of transmittal which provides for notice of receipt and shall preserve the records of the transmittals and the notices of receipt for a minimum of six months following the promulgation of the returns of the election.

F.(1) The review of the executive budget shall be conducted by the following standing subcommittees of the Committee on Appropriations for the following schedule numbers and departments.

(a) Elementary and Secondary Education: which shall review the budgets and appropriations for that portion of Schedule 19 which includes the budgets and appropriations for the Department of Education, unless otherwise allocated herein, and Special Schools and Commissions.

(b) General Government: which shall review the budgets and appropriations for Schedule 01, the Executive Department; Schedule 03, the Department of Veterans Affairs; Schedule 17, the Department of Civil Service; Schedule 12, the Department of Revenue; Schedule 06, the Department of Culture, Recreation and Tourism; Schedule 18, the Retirement Systems; Schedule 04, statewide elected officials and their agencies, unless otherwise allocated herein; and Schedule 20, miscellaneous appropriations for Other Requirements.

(c) Health and Human Services: which shall review the budgets and appropriations for Schedule 09, the Louisiana Department of Health; Schedule 10, the Department of Children and

Family Services; and that portion of Schedule 19 which includes the budgets and appropriations for the Health Care Services Division within the LSU Health Sciences Centers, and the budgets and appropriations associated with the delivery of health care services in Louisiana.

(d) Business Development: which shall review the budgets and appropriations for Schedule 05, the Department of Economic Development; Schedule 13, the Department of Environmental Quality; Schedule 04-165, the Department of Insurance; Schedule 14, the Louisiana Workforce Commission; and Schedule 04-158, the Public Service Commission.

(e) Infrastructure and Resources: which shall review the budgets and appropriations for Schedule 07, the Department of Transportation and Development; Schedule 11, the Department of Natural Resources; and Schedule 16, the Department of Wildlife and Fisheries.

(f) Public Safety and Corrections: which shall review the budgets and appropriations for Schedule 08, the Department of Public Safety and Corrections, and expenditures associated with local housing of state adult and juvenile offenders.

(g) Postsecondary Education: which shall review the budgets and appropriations for that portion of Schedule 19 which includes the budgets and appropriations for postsecondary education, unless otherwise allocated herein.

(2) The subcommittees may review other budgets and appropriations as referred by the chairman of the Committee on Appropriations.

(3) The chairman of the Committee on Appropriations shall establish the work schedule and the meeting times for the subcommittees.

HR 3, 1973; HR 21, 1973; HR 9, 1975; HR 4, 1978; HR 20, 1978; HR 4, 1st Ex. Sess., 1980; HR 4, 1984; HR 10, 1985; HR 5, 1989; HR 1, 1992 Org. Sess.; HR 3, 1992; HR 1, 1996 Org. Sess.; HR 76, 2007, eff. June 27, 2007; HR 1, 2008 Org. Sess., eff. Jan. 15, 2008; HR 110, 2015, special eff. date; HR 22, 2016, eff. March 21, 2016.

NOTE: See HR 110, 2015 R.S., re: eff. date.

HRULE 6.5

Referral to standing committees

Rule 6.5. Referral to standing committees

A. All bills, joint resolutions, and resolutions other than perfunctory resolutions shall be referred by the Speaker to the appropriate standing committee according to the subject matter. Referral shall not require a motion from the floor. At the time of referral, any member may object to the referral and may move that the bill, joint resolution, or resolution be referred to any other standing committee. A motion to refer to a different standing committee is a substitute motion to the original referral. Such motion shall not be in order unless the author of the legislative instrument and the chairman of the standing committee of original referral are present in the chamber at the time the motion is made.

B. The provisions of this Rule shall govern the referral of any petition, memorial, communication, or other paper addressed to the House which is referred to a standing committee under the provisions of Rule 8.7.

Mason's Manual: Sec. 380, 381, and 383

HR 3, 1973; HR 3, 1975; HR 5, 1975; HR 14, 1977; HR 4, 1978; HR 4, 1979; HR 18, 1979; HR 4, 1980; HR 8, 1982; HR 10, 1983; HR 4, 2nd Ex. Sess., 1983; HR 8, 1984; HR 4, 1st Ex. Sess., 1984; HR 3, 1985; HR 45, 1998, eff. May 20, 1998; HR 46, 2005, eff. June 21, 2005.

HRULE 6.6

Standing committee jurisdiction

Rule 6.6. Standing committee jurisdiction

A. Administration of Criminal Justice: To this committee shall be referred, in accordance with the rules, all legislative instruments, messages, petitions, memorials and other matters relating to the following subjects:

(1) Administration of criminal justice generally.

(2) Criminal law.

(3) Code of criminal procedure and criminal procedure generally.

(4) Rules of criminal evidence.

(5) Controlled dangerous substance law and procedure.

(6) Traffic offense and procedure.

(7) Weapons and explosives.

(8) Penal and correctional institutions and juvenile and adult rehabilitation.

(9) Corrections.

(10) Gambling, gaming, and wagering, with the exception of pari-mutuel wagering.

(11) Charitable gaming.

B. Agriculture, Forestry, Aquaculture, and Rural Development: To this committee shall be referred, in accordance with the rules, all legislative instruments, messages, petitions, memorials, and other matters relating to the following subjects:

(1) Agriculture generally.

(2) Agricultural and industrial chemistry.

(3) Agricultural economics and research.

(4) Agricultural engineering.

(5) Agricultural production on public lands.

(6) Agricultural production, promotion, and marketing.

(7) Agricultural services.

(8) Animal industry and diseases of animals.

(9) Aquacultural economics and research.

(10) Aquacultural production, promotion, and marketing.

(11) Dairy industry.

(12) Production, promotion, harvesting, and marketing of forestry products.

(13) Silviculture.

(14) Human nutrition and home economics.

(15) Inspection of livestock and meat products.

(16) Plant industry and plant quarantine.

(17) Rural development.

(18) Soils and soil conservation.

C. Appropriations: To this committee shall be referred, in accordance with the rules, all legislative instruments, messages, petitions, memorials, and other matters relating to the following subjects:

(1) Appropriation of state funds.

(2) Expenditure of funds.

(3) General appropriation bill.

(4) Deposit and investment of public monies, including the creation or modification of any special fund in the state treasury to which proceeds from state taxes, fees, or other charges are dedicated.

(5) Cash flow.

(6) Study of economy and efficiency in the operation of government at all levels.

(7) Budgetary requirements and procedures.

(8) Central purchasing.

(9) Fiscal controls.

(10) Comprehensive state capital budget, after initial consideration by the Committee on Ways and Means in accordance with House Rule 6.8(C).

(11) Public procurement as provided in Chapter 17 of Title 39 of the Louisiana Revised Statutes of 1950.

D. Civil Law and Procedure: To this committee shall be referred, in accordance with the rules, all legislative instruments, messages, petitions, memorials and other matters relating to the following subjects:

(1) Matters encompassed by the Civil Code and Civil Code Ancillaries, including, without limitation, matters affecting persons generally, marriage, divorce and matters of family law, tutorship and curatorship, things generally, use and usufruct, servitudes, successions, donations, obligations generally, extinction of obligations, delicts and quasidelicts, matrimonial agreements, sales and leases, and prescription.

(2) Code of Civil Procedure, and civil procedure generally.

(3) Rules of civil law evidence.

(4) Notaries public and their records.

(5) Mineral Code.

(6) Trust Code.

(7) Questions of constitutional rights--civil.

(8) Proposed amendments to the state constitution, after initial consideration in committee of subject matter, if different from Civil Law and Procedure.

E. Commerce: To this committee shall be referred, in accordance with the rules, all legislative instruments, messages, petitions, memorials and other matters relating to the following subjects:

(1) Commerce generally.

(2) Banking and the regulation thereof.

(3) Communication by telephone, telegraph, radio and television.

(4) Registering and licensing of vessels and small boats.

(5) Navigation and laws relating thereto.

(6) Regulation of common carriers by water.

(7) Consumer protection.

(8) Laws relating to merchandising.

(9) Regulation, licensing, or certification of occupations and professions generally, except those fields which are health related.

(10) Interest rates.

(11) Savings and loan and homestead associations.

(12) Small loan companies.

(13) Regulation and licensing of businesses and occupations.

(14) Protection of trade and commerce against unlawful restraints and monopolies.

(15) Corporations.

(16) Tourism.

F. Education: To this committee shall be referred, in accordance with the rules, all legislative instruments, messages, petitions, memorials and other matters relating to the following subjects:

(1) Education generally.

(2) Schools and secondary education.

(3) School employees, administrators, teachers, bus drivers and others.

(4) School employees' and teachers' pay, except where an appropriation of state funds is required.

(5) Colleges and universities.

(6) Employees of colleges and universities, including pay, except where an appropriation of state funds is required.

(7) Vocational technical education.

(8) Employees of vocational technical education schools, including pay, except, where an appropriation of state funds is required.

(9) College or university agricultural extension service.

(10) Adult education.

(11) School lunch program.

(12) Special Schools.

(13) State and public libraries.

(14) Educational television.

G. Health and Welfare: To this committee shall be referred, in accordance with the rules, all legislative instruments, messages, petitions, memorials and other matters relating to the following subjects:

(1) Institutions, health and welfare generally.

(2) Hospitals, public or private.

(3) Health offices and their administration.

(4) Institutions and services for persons with intellectual disabilities.

(5) Mental health institutions and facilities.

(6) Geriatric hospitals.

(7) Nursing homes.

(8) Vocational rehabilitation including vocational rehabilitation homes.

(9) Alcoholic rehabilitation.

(10) Health and human resources administration.

(11) Tuberculosis sanitoriums.

(12) Nurse's training programs.

(13) Public welfare.

(14) Old age assistance.

(15) Private and local institutions of public welfare.

(16) Research training and rehabilitation in the field of public welfare.

(17) Regulation, licensing, or certification of health-related occupations and professions.

(18) Drinking water standards.

H. House and Governmental Affairs: To this committee shall be referred, in accordance with the rules, all legislative instruments, messages, petitions, memorials, and other matters relating to the following subjects:

(1) Affairs of the House.

(2) Legislative rules and procedures.

(3) Expenditures of funds by the Legislature.

(4) Services of or for the House and/or its committees and members.

(5) Assignment of space in state buildings, including space for legislative needs.

(6) Rules or laws enacted to reorganize the Legislature or executive branches of government.

(7) Intergovernmental relations between the state and the United States or other states.

(8) The capitol building and all other buildings for general services at the state capital, including capitol parking.

(9) Maintenance and care of capitol complex buildings.

(10) Employees of the House.

(11) Legislative Auditor.

(12) Legislative Fiscal Officer.

(13) Civil Service.

(14) Creation of all legislative committees.

(15) Elections, state political parties and their committees.

(16) Registrars of voters and their records.

(17) Governmental ethics.

(18) Apportionment of elected officials and governing bodies.

(19) Proposals for interim study by a committee, after initial consideration in committee of subject matter, if different from House and Governmental Affairs.

I. Insurance: To this committee shall be referred, in accordance with the rules, all legislative instruments, messages, petitions, memorials and other matters relating to the following subjects:

(1) Insurance.

(2) Private insurance.

(3) Public insurance systems.

(4) Employment insurance.

(5) Compulsory motor vehicle liability security matters, motor vehicle insurance, and automobile insurance.

J. Judiciary: To this committee shall be referred, in accordance with the rules, all legislative instruments, messages, petitions, memorials and other matters relating to the following subjects:

(1) All matters relating to the Supreme Court, Courts of Appeal, District Courts, Family Courts, and Juvenile Courts, matters of the jurisdiction of said courts, matters relating to judges generally, including compensation, expenses, personnel, facilities and the like, except as pertains to retirement.

(2) All matters relating to Municipal and Parish Courts, Mayor's Courts and Justice of the Peace Courts.

(3) All matters relating to the Attorney General, District Attorneys and prosecutors in general, including compensation, expenses, personnel, facilities and the like.

(4) Law enforcement generally, including matters relating to public safety.

(5) Sheriffs generally except matters affecting the sheriffs as ex officio tax collectors.

(6) Clerks of court and records of the Courts.

(7) National guard, Code of Military Justice and the Adjutant General.

(8) Civil defense and disaster protection.

(9) State and local government boundary lines.

(10) Holidays and celebrations.

(11) Regulations and sale of intoxicating liquors.

(12) Miscellaneous matters not covered by other standing committees.

K. Labor and Industrial Relations: To this committee shall be referred, in accordance with the rules, all legislative instruments, messages, petitions, memorials and other matters relating to the following subjects:

(1) Labor and industrial relations generally.

(2) Wages and hours of labor.

(3) Workmen's compensation.

(4) Labor standards.

(5) Child labor.

(6) Health and safety of labor.

(7) Unemployment compensation.

(8) Labor retirement laws.

(9) Labor disputes.

L. Municipal, Parochial and Cultural Affairs: To this committee shall be referred, in accordance with the rules, all legislative instruments, messages, petitions, memorials, and other matters relating to the following subjects:

(1) Local and municipal affairs generally.

(2) City of New Orleans affairs.

(3) Police juries.

(4) Municipalities.

(5) Forms of local government.

(6) Municipal drainage, and sewerage and water districts.

(7) Technical assistance to local governments.

(8) Assistance to municipal and local governments.

(9) Revenue of and taxation levied by local governments.

(10) Employees of local governments.

(11) Expenditures by local governments.

(12) Local ordinances.

(13) Intergovernmental relations.

(14) State planning.

(15) Economic development.

(16) Political subdivision industrial inducement.

(17) Economic development districts.

(18) Urban planning.

(19) Cultural affairs generally.

(20) Parks.

(21) State parks and recreational districts.

(22) Military parks and battlefields.

(23) Museums.

(24) Preservation of historic landmarks and objects.

M. Natural Resources and Environment: To this committee shall be referred, in accordance with the rules, all legislative instruments, messages, petitions, memorials, and other matters relating to the following subjects:

(1) Natural resources generally.

(2) Conservation.

(3) Environmental control and regulation generally.

(4) Land pollution.

(5) Pollution of air, water, and land and environmental control generally.

(6) Air quality.

(7) Wildlife and fisheries.

(8) Mines and minerals.

(9) Hunting, fishing, and recreational boating.

(10) Public lands.

(11) Mineral resources of the public lands.

(12) Public and geological surveys.

(13) Laws regulating minerals and mining.

(14) Tidelands.

(15) Accretion, alluvion, and dereliction of public and private lands.

(16) Owners of minerals and mineral lands.

(17) Materials or substances which travel through pipelines.

(18) Hazardous waste regulation.

(19) Solid waste regulation.

(20) Laws regulating water resources.

N. Retirement: To this committee shall be referred, in accordance with the rules, all legislative instruments, messages, petitions, memorials and other matters relating to retirement of all state officials, whether elected or appointed, of state employees, of teachers and school employees and of judges.

O. Transportation, Highways and Public Works: To this committee shall be referred, in accordance with the rules, all legislative instruments, messages, petitions, memorials, and other matters relating to the following subjects:

(1) Transportation, Highways and Public Works in general.

(2) Highways, roads, and bridges.

(3) Railroads.

(4) Air, bus, and vehicular transportation.

(5) Rules and regulations for highway, railroad, and air use.

(6) Common carriers, except by water.

(7) Pipelines, except the substances or materials which travel through the pipelines.

(8) Motor vehicle regulation.

(9) Public works.

(10) Flood and drainage projects, including levee districts and multiparish drainage projects.

(11) Construction, improvement, and maintenance of waterways, lakes, and streams.

(12) Facilities in connection with lakes, waterways, and streams.

(13) Water conservation districts.

(14) Advertisement and letting of public contracts to the lowest responsible bidder relative to the Public Bid Law as provided in R.S. 38:2212.

P. Ways and Means: To this committee shall be referred, in accordance with the rules, all legislative instruments, messages, petitions, memorials and other matters relating to the following subjects:

(1) Taxes and the raising of revenue.

(2) Bonds and the bonding of revenue.

(3) Issuance, payment or retirement of bonds.

(4) Evidences of indebtedness.

(5) State revenues, generally.

(6) Revenue collection.

(7) Assessors, their offices, salaries, expenses, compensation, and the like.

(8) Parish tax collectors, their offices, salaries, experiences, compensation and the like.

(9) Comprehensive state capital budget, prior to consideration by the Committee on Appropriations in accordance with House Rule 6.8(C).

HR 3, 1973; HR 3, 1975; HR 5, 1975; HR 14, 1977; HR 4, 1978; HR 4, 1979; HR 18, 1979; HR 4, 1980; HR 8, 1982; HR 10, 1983; HR 4, 2nd Ex. Sess., 1983; HR 8, 1984; HR 4, 1st Ex. Sess., 1984; HR 3, 1985; HR 11, 1991, eff. Jan. 13, 1992; HR 2, 1992 Org. Sess.; HR 27, 1993; HR 1, 1996 Org. Sess.; HR 22, 1997, eff. April 29, 1997; HR 3, 1999; HR 25, 2001; HR 13, 2003; HR 1, 2008 Org. Sess., eff. Jan. 15, 2008; HR 3, 2014, eff. June 2, 2014; HR 1, 1st Ex. Sess., 2017.

NOTE: Former House Rules 6.6(C)(11) and (12) merged due to the merger of Chapter 16 of Title 39 of the La. Revised Statutes of 1950 into Chapter 17 of Title 39 of the La. Revised Statutes of 1950. See Acts 2014, No. 864.

HRULE 6.7

Regular committee meetings

Rule 6.7. Regular committee meetings

A. The following committees shall be designated as "Morning Committees":

(1) Appropriations.

(2) Civil Law and Procedure.

(3) Commerce.

(4) Transportation, Highways and Public Works.

(5) Ways and Means.

B. The following committees shall be designated as "Afternoon Committees":

(1) Administration of Criminal Justice.

(2) Education.

(3) Health and Welfare.

(4) House and Governmental Affairs.

(5) Insurance.

(6) Natural Resources and Environment.

C. The following committees shall be designated as "Weekly Committees":

(1) Agriculture, Forestry, Aquaculture, and Rural Development.

(2) Judiciary.

(3) Labor and Industrial Relations.

(4) Municipal, Parochial and Cultural Affairs.

(5) Retirement.

HR 3, 1973; HR 5, 1975; HR 4, 1978; HR 4, 1980; HR 3, 1985; HR 9, 1986, eff. 1988 R.S.; HR 2, 1992 Org. Sess.; HR 1, 1996 Org. Sess.; HR 13, 2003; HR 1, 2008 Org. Sess., eff. Jan. 15, 2008.

HRULE 6.8

Recommittal: Constitutional amendments; special elections; propositions; study resolutions; Capital Outlay Bill; minimum foundation resolution; legislative instruments creating special funds; legislative instruments with a fiscal impact; public records exceptions; interstate compacts

Rule 6.8. Recommittal: Constitutional amendments; special elections; propositions; study resolutions; Capital Outlay Bill; minimum foundation resolution; legislative instruments creating special funds; legislative instruments with a fiscal impact; public records exceptions; interstate compacts

A.(1) A joint resolution proposing an amendment to the Louisiana Constitution or a bill which calls a special election or which proposes to submit a proposition or question to the voters, having been referred to a standing committee, other than the Committee on Civil Law and Procedure, under the provisions of Rule 6.5, if reported, shall be reported to the Clerk of the House in accordance with the requirements of Rule 6.11(A). However, after such report, any such House instrument ordered engrossed, immediately following the engrossment order, and any such Senate instrument reported favorably or with amendments, immediately following the reading of such report and action on any amendments reported, shall be recommitted by the speaker to the Committee on Civil Law and Procedure.

(2)(a) Said committee shall study all legislative instruments recommitted to it pursuant to this Paragraph, shall ensure that the ballot language is comprised of simple, unbiased, concise, and easily understood language which conforms to all applicable laws, and shall review the proposed election date at which the proposition or question is to be submitted to the voters to ensure maximum voter turnout, to the extent practicable.

(b) Said committee shall also study all legislative instruments recommitted to it pursuant to this Paragraph and shall report such measures to the full House "with amendments" or "without amendments".

(c) Said committee shall study all joint resolutions recommitted to it, taking into account other joint resolutions introduced in either the House or the Senate, and include with the report a statement indicating whether the measures referred to it can be accomplished statutorily without the necessity of the constitutional amendment and whether such measures conflict with one another, and indicating the number of joint resolutions introduced and the number reported by other standing committees.

B.(1) A resolution or a concurrent resolution which proposes that a committee or committees of the House or a joint committee of the House and Senate perform a study of any subject matter during the interim, or a resolution or a concurrent resolution proposing any such study which either designates any legislator to serve thereon or provides that a legislator shall be an appointing official, shall be referred to a standing committee under the provisions of Rule 6.5 and, if reported by such committee, shall be reported to the Clerk of the House in accordance with the provisions of Rule 6.11(A). However, after such report, any such resolution reported favorably, with amendments, or by substitute shall be immediately recommitted by the Speaker to the Committee on House and Governmental Affairs.

(2) The Committee on House and Governmental Affairs shall study all such instruments referred to it pursuant to this Rule, taking into account other study resolutions introduced in either the House or the Senate, and shall report such instruments to the full House either favorably or with amendments. Periodically, the committee shall file a report with the House indicating whether such instrument may be duplicative or in conflict with another, and indicating the total number of study resolutions introduced and the number reported by each standing committee.

C. The capital outlay bill, being any bill being designated as the "comprehensive state capital budget" pursuant to the mandate of Paragraph B of Section 11 and Paragraph A of Section 6 of Article VII of the Constitution shall be referred by the presiding officer to the Committee on Ways and Means. The committee's authority and duties with respect to such instrument shall be as is generally provided by these Rules of Order, except that the committee shall have no authority to propose amendments to said instrument other than to those provisions affecting bonds or other evidences of indebtedness, including without limitation the appropriation of the avails of bonds or other evidences of indebtedness, the priority of issuance or expenditure thereof and the manner(s) of changing the priority of issuance or expenditure. The bill shall be reported in accordance with the provisions of Rule 6.11(A). After such report, if the measure is ordered engrossed by the House, immediately following such order, it shall be recommitted by the presiding officer to the Committee on Appropriations. The committee's authority and duties with respect to such instrument shall be as is generally provided by these Rules of Order, except that the committee shall have no authority to propose amendments to said instrument except those provisions providing for appropriation of funds other than the avails of bonds or other evidences of indebtedness.

D. Any concurrent resolution providing for the adoption of the formula for the allocation of minimum foundation funds to parish and city school systems shall be referred by the presiding officer to the Committee on Education. After the resolution is reported, if the resolution is ordered engrossed by the House, immediately following such order it shall be recommitted by the presiding officer to the Committee on Appropriations.

E. Any legislative instrument creating a special fund in the state treasury to which proceeds from taxes, fees, or other charges are dedicated and any legislative instrument amending provisions of law relative to such a special fund shall be referred to a standing committee under the provisions of Rule 6.5 and, if reported, shall be reported to the clerk of the House in accordance with the requirements of Rule 6.11(A). However, after such report, any such House instrument ordered engrossed, immediately following the engrossment order, and any such Senate instrument reported favorably or with amendments, immediately following the reading of such report and action on any amendments reported, shall be recommitted by the Speaker to the Committee on Appropriations.

F. Any legislative instrument with an estimated fiscal cost of one hundred thousand dollars or more of state general funds annually in any one of the three ensuing fiscal years as reflected in the fiscal note prepared in accordance with Joint Rule No. 4, or with a fiscal cost that, although not specified in the fiscal note, is indicated in the fiscal note as likely to equal or exceed one hundred thousand dollars of state general funds annually in any of the three ensuing fiscal years, shall be referred to a standing committee under the provisions of Rule 6.5 and, if reported, shall be reported to the Clerk of the House in accordance with the requirements of Rule 6.11(A). However, after such report, any such House instrument ordered engrossed, immediately following the engrossment order, and any such Senate instrument reported favorably or with amendments, immediately following the reading of such report and action on any amendments reported, shall be recommitted by the Speaker to the Committee on Appropriations.

G. Any legislative instrument which originates in the Senate which produces a net decrease in fees or increases fees or taxes or which authorizes an increase in fees or taxes of five hundred thousand dollars or more annually in any one of three ensuing fiscal years as reflected in the fiscal note prepared in accordance with Joint Rule No. 4 or which provides for or authorizes an increase in fees or taxes which, although not specified in the fiscal note, is indicated in the fiscal note to likely exceed five hundred thousand dollars annually in any of the three ensuing fiscal years shall be referred to a standing committee under the provisions of Rule 6.5 and, if reported, shall be reported to the Clerk of the House in accordance with the requirements of Rule 6.11(A). However, after such report, any such Senate instrument reported favorably or with amendments, immediately following

the reading of such report and action on any amendments reported, shall be recommitted by the Speaker to the Committee on Ways and Means.

H. Any legislative instrument which contains a provision or provisions the effect of which exempts or excepts certain information from the laws relative to public records, having been referred to a standing committee other than the Committee on House and Governmental Affairs under the provisions of Rule 6.5, if reported, shall be reported in accordance with the requirements of Rule 6.11(A). However, after such report, any such House instrument ordered engrossed, immediately following the engrossment order, and any such Senate instrument reported favorably or with amendments, immediately following the reading of such report and action on any amendments reported, shall be recommitted by the speaker to the Committee on House and Governmental Affairs.

I. Any legislative instrument which contains a provision or provisions the effect of which provides that the state join an interstate compact, having been referred to a standing committee other than the Committee on House and Governmental Affairs under the provisions of Rule 6.5, if reported, shall be reported in accordance with the requirements of Rule 6.11(A). However, after such report, any such House instrument ordered engrossed, immediately following the engrossment order, and any such Senate instrument reported favorably or with amendments, immediately following the reading of such report and action on any amendments reported, shall be recommitted by the Speaker to the Committee on House and Governmental Affairs.

Mason's Manual: Sec. 620

HR 3, 1975; HR 6, 1977; HR 12, 1977; HR 13, 1977; HR 4, 1978; HR 18, 1979; HR 6, 1981; HR 23, 1981; HR 7, 1984; HR 18, 1985; HR 10, 1st Ex. Sess., 1986; HR 2, 1998; HR 25, 2001; HR 73, 2003; HR 36, 2007, eff. June 22, 2007; HR 42, 2010, eff. April 26, 2010, until Jan. 9, 2012; HR 37, 2011, eff. June 8, 2011; HR 59, 2012; HR 6, 2013, eff. May 30, 2013; HR 31, 2013, eff. June 6, 2013 and Jan. 11, 2016.

HRULE 6.9

Committee hearing; reporting legislative instruments; vote required

Rule 6.9. Committee hearing; reporting legislative instruments; vote required

A. No legislative instrument shall be reported by a committee unless an open, public hearing on the instrument has first been held by the committee with due notice given and opportunity provided for interested persons to appear to testify for or against the proposal. A majority of a quorum of the committee must have voted to report the measure at a meeting of the committee. No committee shall report a measure to the House of Representatives pursuant to a procedure, referred to as a "round robin," whereby a legislative instrument is reported by a committee when a majority of the members of the committee sign a petition to report it to the House of Representatives or pursuant to any similar procedure. The House of Representatives shall not receive a committee report on any measure which is made pursuant to such a procedure.

B. The main motion on the consideration of any instrument referred to a standing committee shall be to report the same in one of the manners set forth by House Rule 6.11(A)(1) or to defer or postpone action.

C. No bill shall be reported unless one of such reports enumerated in House Rule 6.11(A)(1) shall have been affirmatively adopted by a majority of a quorum present and voting. The failure of the committee to adopt any enumerated report shall not imply the adoption of the negative report or any other report, which to be adopted shall be directly put to and adopted by the committee.

D. A list of legislative instruments which are involuntarily deferred under House Rule 6.10(B)(2) shall be attached to the committee report required in House Rule 6.11 for the meeting at which such action occurred.

Mason's Manual: Sec. 365-374, 510, 630, and 663-667

HR 3, 1973; HR 6, 1978; HR 61, 1997, eff. May 29, 1997.

HRULE 6.10

Hearing on Legislation; Mandatory on Author's Request; Rescheduling Deferred Legislation

Rule 6.10. Hearing on Legislation; Mandatory on Author's Request; Rescheduling Deferred Legislation

A. A committee shall hear, on or before the tenth day preceding the final day for consideration of bills on third reading of the session, any legislative instrument originating in the House of Representatives which has not previously been heard by such committee and which the author, in writing, requests the committee to hear.

B.(1) A legislative instrument may be voluntarily deferred upon the request of the author or the member handling the instrument. When a legislative instrument is so voluntarily deferred without objection, it may be rescheduled for a hearing by the chairman at any time in accordance with the rules of the House of Representatives.

(2) When ordered by a majority of the members of the committee present and voting, a legislative instrument shall be involuntarily deferred notwithstanding the request of the author or member handling the instrument to otherwise report the instrument. No legislative instrument which is so involuntarily deferred may be rescheduled for a hearing by the committee; except that if a motion to reschedule the legislative instrument is adopted by a favorable vote of two-thirds of the members of the committee present and voting, the chairman may reschedule the legislative instrument for a hearing by the committee and then only after there has been opportunity for a committee hearing on all other legislative instruments originating in the House of Representatives pending before the committee for which a hearing has been requested. It shall be in order for any member who voted on the prevailing side of the vote by which the motion to defer was adopted to offer the motion to reschedule the legislative instrument.

C. A motion to suspend Paragraph B of this House Rule is a debatable motion.

Mason's Manual: Sec. 365-374 and 430-436

HR 8, 1974; HR 7, 1979; HR 61, 1997, eff. May 29, 1997; HR 45, 1998, eff. May 20, 1998; HR 76, 2007, eff. June 27, 2007.

HRULE 6.11

Committee report; session; interim

Rule 6.11. Committee report; session; interim

A. For each meeting held during session at which a legislative instrument is scheduled for public hearing, a standing committee shall submit a written report to the Clerk of the House as soon as possible after each committee meeting. For each meeting held during the interim at which a legislative instrument is scheduled for public hearing and a report on such instrument is determined, each standing committee shall submit a written report to the Clerk of the House within five working days after the committee meeting. The report of such standing committee for each meeting shall be in such form as to list in numerical order the number and title of each legislative instrument upon which the committee took action at the meeting. Below the designation and title of each legislative instrument the report of the committee shall contain the following with respect to such instrument:

(1) The report of the committee on each legislative instrument which may be one, and only one, of the following:

(a) Reported favorably.

(b) Reported unfavorably.

(c) Reported with amendments.

(d) Reported by substitute.

(e) Reported either favorably, with amendments, by substitute, or without action with recommendation that it be recommitted to the Committee on _____.

(f) If the legislative instrument was recommitted to the committee in accordance with Rule 6.8, reported without amendments.

(2) In the case of each instrument, the report on the instrument followed, in parentheses, by the vote by which such report was determined.

(3) For each instrument reported with amendments, the proposed amendments, submitted on a separate sheet of paper and numbered consecutively and the original and three copies thereof attached to the bill.

(4) In each case in which the committee has recommended that the bill or joint resolution be placed in Special Order, in parentheses the words "Special Order", if, upon a separate motion, the committee has recommended that the bill or joint resolution be placed in Special Order as provided in House Rule 8.6.

(5) Repealed by HR 6, 2013, eff. May 30, 2013.

B. The report of the committee shall be signed by the committee chairman who shall be responsible for the accuracy of the report and for the conformity of each such report to the requirements of this Rule. Under no circumstances shall words or sentences be interlined on the body of a legislative instrument nor shall the cover thereof be marked except by the Clerk of the House.

C.(1) The report of each committee made during a session shall be read to the House for information. The legislative instruments and any accompanying proposed amendments shall be placed on the calendar, in their proper order, for consideration on the day following the day on which the report is read. The report of the committee with respect to each legislative instrument shall again be read at the time each such instrument is considered by the House in the appropriate order of business.

(2)(a) The report of each committee made during the interim shall be published in the Interim Calendar; however, reports made after publication of the final Interim Calendar shall be announced on

the first day of session.

(b) A committee which has determined the report on a prefiled instrument may request, within five legislative days of the instrument's introduction, the House to allow it to otherwise report the instrument or to defer action on the instrument. Absent such a request, the committee shall report the instrument in the manner determined during its interim hearing within seven legislative days after the instrument's introduction.

(c) A committee's request to the House to otherwise report an instrument or to defer an instrument may be made only upon the adoption of a separate motion to that effect by the committee. If the House grants a committee the authority to otherwise report an instrument heard during the interim, the committee shall schedule another public hearing on the instrument. If the House refuses to grant the committee the authority so requested, the instrument shall be reported to the House in the manner determined during its interim hearing within ten legislative days after the instrument's introduction.

D. The adoption of any motion the effect of which is to reject the recommendation of a committee report, whether made during session or during the interim, on any legislative instrument, except a motion to recommit, postpone indefinitely, or withdraw an instrument from the files of the House, shall require a favorable vote of a majority of the elected members of the House of Representatives.

Mason's Manual: Sec. 616, 665, and 666-668

HR 3, 1973; HR 7, 1973; HR 3, 1974; HR 4, 1974; HR 21, 1974; HR 5, 1977; HR 14, 1986; HR 19, 1997, eff. April 11, 1997; HR 34, 1997, eff. May 6, 1997; HR 45, 1998, eff. May 20, 1998; HR 4, 2006 2nd Ex. Sess., eff. Dec. 13, 2006; HR 26, 2011, eff. June 22, 2011; HR 6, 2013, eff. May 30, 2013.

HRULE 6.12

Report by substitute

Rule 6.12. Report by substitute

A. A committee may report a substitute for any House bill or for a joint resolution originating in the House, or for several House bills on the same subject or for several joint resolutions on the same subject which originated in the House, which substitute, if adopted by the House, shall be numbered, and read on three separate days, as in the case of original bills, but need not again be sent to a House committee to be considered. A committee may also report a substitute for a House resolution or for several House resolutions on the same subject, or for a House concurrent resolution or several House concurrent resolutions on the same subject, which substitute if adopted by the House shall be numbered and shall be considered in the manner of House resolutions or House concurrent resolutions reported by committee.

B. Any substitute reported by a committee shall be germane to the original instrument(s). Any report by a committee of a bill or joint resolution originating in the House which would have the effect of striking all material following the enacting clause or the "Be It Resolved" clause shall be by substitute rather than with amendments.

C. When any instrument is reported by substitute, the substitute shall reflect the same authors in the same order as those of the instrument being reported by substitute, if such authors so consent. If more than one instrument is reported by the same substitute, the authors, present and consenting, shall be listed as they appear on such instruments in the order in which the instruments were introduced. In addition, additional coauthors may be added thereafter.

Mason's Manual: Sec. 617, 677, and 722(3)

HR 3, 1973; HR 10, 1975; HR 4, 1978; HR 45, 1998, eff. May 20, 1998.

HRULE 6.13

Directing committee to report; discharging committee

Rule 6.13. Directing committee to report; discharging committee

A. No legislative instrument which shall have been referred to a committee shall be acted upon or considered by the House until the committee shall have reported the same; however, a majority of the elected members of the House of Representatives may by motion or resolution direct a committee to report a legislative instrument, in which case the committee so directed shall report the instrument as directed.

B. In addition, a majority of the elected members of the House may by motion or resolution recall a legislative instrument from a committee and discharge the committee from further consideration of the same, in which case the instrument shall be recommitted to another committee or heard in the Committee of the Whole. Such a motion or a motion to adopt such a resolution shall not be in order unless the author of the legislative instrument and the chairman of the committee to which the legislative instrument is referred are present in the chamber at the time the motion is made.

Mason's Manual: Sec. 712(2)

HR 3, 1973; HR 45, 1998, eff. May 20, 1998; HR 46, 2005, eff. June 21, 2005.

HRULE 6.14

Conference committees; membership; appointment

Rule 6.14. Conference committees; membership; appointment

A. Conference committee appointees from the House of Representatives shall be the following: (1) The member who authored or handled the bill or resolution, or in his absence, a member appointed by the Speaker; (2) The chairman of the committee that reported the bill or resolution, or in his absence, the vice chairman of such committee, or in the absence of the chairman and vice chairman, a member appointed by the Speaker from among the members of such committee; and (3) One member appointed by the Speaker.

B. Conference committee appointees from the House of Representatives to a conference committee on a legislative instrument originating in the Senate shall be made only after the Speaker has received a request to appoint such conferees from the member who handled the legislative instrument or a member of the committee that reported the bill or resolution.

Mason's Manual: Sec. 769-771

HR 3, 1973; HR 4, 1998; HR 45, 1998, eff. May 20, 1998; HR 4, 2006 2nd Ex. Sess., eff. Dec. 13, 2006; HR 76, 2007, eff. June 27, 2007.

HRULE 6.15

Committee on Enrollment

Rule 6.15. Committee on Enrollment

There shall be a special committee to be called the Committee on Enrollment which shall be composed of seven members appointed by the Speaker, one of whom the Speaker shall designate as chairman. The Committee on Enrollment shall be responsible for the accurate enrollment of all legislative instruments originating in the House.

Mason's Manual: Sec. 735(2)

HR 3, 1973.

HRULE 6.16

Committee on Enrollment; reports in order

Rule 6.16. Committee on Enrollment; reports in order

A report of the Committee on Enrollment shall be in order at any time.

Mason's Manual: Sec. 666(4)

HR 3, 1973.

HRULE 6.17

Committee on Enrollment; reports; entry in Journal

Rule 6.17. Committee on Enrollment; reports; entry in Journal

The Committee on Enrollment shall make each of its reports to the House in writing and each report shall be entered in the Journal.

HR 3, 1973.

HRULE 6.18

Committee of the Whole

Rule 6.18. Committee of the Whole

The House of Representatives may resolve itself into the Committee of the Whole, by a favorable vote of a majority of the members present.

Mason's Manual: Sec. 683-691

HR 3, 1973.

HRULE 6.19

Procedure in the Committee of the Whole

Rule 6.19. Procedure in the Committee of the Whole

The rules of procedure of the House shall govern in the Committee of the Whole insofar as they are applicable. Specifically, Rule 5.7 of the rules of the House which places a time limit on debate, and Rule 9.10(A) of the Rules of the House which allows the calling of the previous questions shall be applicable in the Committee of the Whole. Rule 9.10(B) of the rules of the House shall not be applicable in the Committee of the Whole.

Mason's Manual: Sec. 687

HR 3, 1973; HR 30, 1976.

HRULE 6.20

Chairman of the Committee of the Whole

Rule 6.20. Chairman of the Committee of the Whole

At any time the House resolves itself into the Committee of the Whole, the Speaker shall vacate the chair and shall appoint a chairman to preside over the Committee of the Whole.

Mason's Manual: Sec. 684

HR 3, 1973.

HRULE 6.21

Bill read by clauses

Rule 6.21. Bill read by clauses

In the Committee of the Whole a motion to proceed "seriatim" shall be in order and when carried the effect thereof shall be that each legislative instrument referred thereto shall be read and debated by clauses, except that the title thereof shall be considered last.

Mason's Manual: Sec. 113

HR 3, 1973.

HRULE 6.22

Journal of the Committee of the Whole; record votes

Rule 6.22. Journal of the Committee of the Whole; record votes

A. The Clerk shall maintain a Journal of the proceedings of the Committee of the Whole and shall cause the same to be published and to be bound with the Journal of the proceedings of the House of Representatives. To assure the accuracy of the Journal, the clerk is authorized to make corrections in the Journal whenever necessary.

B. At the request of twenty-one members of the Committee of the Whole, a record vote shall be ordered by the chairman of the committee on any amendment or motion offered in the committee and the same shall be recorded in the Journal of the Committee of the Whole.

Mason's Manual: Sec. 695

HR 3, 1973; HR 8, 1976.

HRULE 6.23

Committee of the Whole; report upon rising

Rule 6.23. Committee of the Whole; report upon rising

Upon rising, the Committee of the Whole shall report any amendments which have been adopted therein and shall return any legislative instrument before it to the House. The committee may report any instrument before it in one of the ways permitted for report of instruments by standing committees.

Mason's Manual: Sec. 698

HR 3, 1973.

HRULE 6.24

Action on measure reported by the Committee of the Whole

Rule 6.24. Action on measure reported by the Committee of the Whole

After the Committee of the Whole rises, a motion shall be in order to adopt or reject any amendments reported by the Committee of the Whole. No other action shall be necessary with respect to any report which shall be made by the Committee of the Whole.

HR 3, 1973.

HRULE 6.25

General Appropriation Bill to be considered in Committee of the Whole

Rule 6.25. General Appropriation Bill to be considered in Committee of the Whole

The General Appropriation Bill shall be discussed in the Committee of the Whole and such discussion shall proceed *seriatim*.

HR 3, 1973; HR 19, 1997, eff. April 11, 1997.

HRULE 6.26

House Executive Committee

Rule 6.26. House Executive Committee

A. There shall be a special committee to be called the House Executive Committee which shall be composed of nineteen members as follows: ex officio, the Speaker and the Speaker Pro Tempore; and seventeen members appointed by the Speaker. Of the appointed members, at least one member shall be a resident of each of the congressional districts respectively.

B. The committee shall have advisory authority to make recommendations to the Speaker, other officers, and the Committee on House and Governmental Affairs concerning matters internal to the House including, without limitation, matters affecting House space and facilities, officers and employees, rules, administration, litigation or other issues of law, and budgetary and financial questions.

C.(1) The committee shall be divided into the following three standing subcommittees of at least five members each:

(a) Affairs of the House.

(b) Litigation and Legal Issues.

(c) Personnel.

(2) The Speaker shall appoint the members of these standing subcommittees and shall designate one member of each to be its chairman. The Speaker, the Speaker Pro Tempore, and the chairman of the House Executive Committee shall serve ex officio on each standing subcommittee.

D.(1) The committee shall have the authority to establish an annual vouchered allotment for members of the House to be drawn by each member in monthly payments. This vouchered allotment shall be used exclusively for expenses incurred in the course and scope of duties as a member of the House such as rent for office space; electricity; water; gas; telephone; communication services; stationery; supplies; salary supplements for one or more of a member's legislative assistants; mileage or expense reimbursement for official travel in or out of state; and other expenses related to the holding or conduct of office. The committee may authorize an unexpended allotment amount to be carried forward from one fiscal year into the next fiscal year.

(2) This allotment shall be set no later than June fifteenth of the first calendar year of each term of office. Once set, the allotment shall be effective until changed by the Executive Committee as provided in this Paragraph. This allotment shall be set or changed by the adoption of a resolution of the Executive Committee in an open public meeting. In addition, the amount of the allotment that may be used to supplement the salary of one or more of a member's legislative assistants shall be set or changed by the adoption of a resolution of the Executive Committee in an open public meeting.

HR 3, 1st Ex. Sess., 1980; HR 6, 1991, eff. Jan. 13, 1992; HR 1, 1996 Org. Sess.; HR 45, 1998, eff. May 20, 1998; HR 76, 2007, eff. June 27, 2007; HR 1, 2008 Org. Sess., eff. Jan. 15, 2008; HR 29, 2011, eff. June 21, 2011; HR 9, 2016, eff. May 23, 2016; HR 8, 1st Ex. Sess., 2020, eff. June 15, 2020.

HRULE 7.1

Legislative instrument defined

CHAPTER 7. LEGISLATIVE INSTRUMENTS

Rule 7.1. Legislative instrument defined

The term legislative instrument is defined for the purpose of these rules as one of the following: 1) a bill; 2) a concurrent resolution; 3) a resolution. For the purpose of these rules the term bill shall include joint resolutions, unless the context clearly indicates otherwise.

Mason's Manual: Sec. 145 and 146

HR 3, 1973.

HRULE 7.2

Prefiling

Rule 7.2. Prefiling

A. At any time between regular sessions of the legislature, but not later than five in the evening of the forty-fifth calendar day prior to the first day of a regular session for bills and joint resolutions relative to retirement, members of the House may prefile with the Clerk legislative instruments, including bills, joint resolutions, and simple and concurrent resolutions, which are proposed for introduction at either of the next two regular sessions. However, no instrument shall be prefiled by a member during the period between the convening of the last regular session prior to each general election for members of the legislature and the certification of election of such member to the House, and no instrument shall be prefiled for the next regular session after such general election prior to such time. After a person is certified as elected to the House, such member or member-elect may prefile instruments for introduction at the next regular session. The member, member-elect, or designee of such person, shall deliver such instruments to the Clerk in the requisite number of copies for introduction. In accordance with House Rule 7.3, the Clerk shall number each prefiled instrument in the order in which they are received. The Clerk shall cause all prefiled bills to be printed or otherwise made available for distribution and shall otherwise process all prefiled instruments for introduction when the session for which they are prefiled convenes.

B. The Speaker shall refer each prefiled instrument to the appropriate standing committee under the provisions of House Rule 6.6. At the time of such referral the Speaker shall notify the author of the referral of such instrument, naming the committee to which the instrument has been referred. Such referral, the date thereof, and the name of the committee of reference shall be entered in the Interim Calendar. The committee referral of an instrument prefiled within one week preceding the convening of the session for which it shall be introduced shall not be entered in the Interim Calendar. If any member of the House of Representatives notifies the Speaker in writing, within five days of publication in the Interim Calendar of such referral and distribution of such Calendar as provided in House Rule 12.7, that he objects to the instrument's being considered or heard by such committee and states the reason for his objection, the House and Governmental Affairs Committee shall determine the committee to which the instrument shall be referred. No prefiled legislative instrument about which such objection has been raised shall be considered or heard by the House and Governmental Affairs Committee for purposes of referral unless and until the objector to the referral and the author of said instrument have been notified of the meeting at which such referral is to be considered, such notice to be by letter mailed seven days in advance of the meeting. The author of any prefiled instrument which has been referred to committee prior to the session, or any member of the House of Representatives, unless such instrument has been considered by the committee of reference and such committee has determined its report on the instrument as provided in House Rule 6.11, may, at the time of formal referral of such instrument during the session, offer a motion for referral of the instrument to a different committee; however, if the motion is made by a member other than the author of the instrument, such motion shall not be in order unless the author of the instrument is present in the chamber at the time the motion is made. The motion to refer an instrument to a different committee shall not be in order unless the chairman of the committee of original referral is present in the chamber at the time the motion is made. If the committee report has been determined in accordance with House Rule 6.11, the author or any other member may move to discharge the committee from further consideration of the instrument in accordance with House Rule 6.13.

C. The Clerk shall retain the original and such number of copies of the prefiled instrument as are necessary for introduction when the session convenes, but shall transmit exact copies thereof to the committee of reference. A prefiled instrument may be withdrawn by its author at any time prior to

introduction upon written request by the author to the Clerk, who shall reclaim such instrument from the committee of reference. Such withdrawal shall be entered in the Interim Calendar.

D. Standing committees may but shall not be required to hold hearings and consider prefiled instruments referred to them prior to the session, except as provided in Paragraph B above. However, no meeting shall be held for the consideration or hearing of an instrument prior to the third Monday in January immediately prior to the session in which the instrument shall be introduced or prior to five days after distribution of the Interim Calendar in which the entry indicating the referral of such instrument to such committee by the Speaker appears. If any member objects to its referral as provided in Paragraph B hereof, such meeting shall not be held prior to five days after the distribution of the Interim Calendar in which the entry indicating the referral of such instrument by the House and Governmental Affairs Committee appears. In its discretion, a committee may determine, prior to the session and in accordance with the rules of the House, the report it will make on the instrument during the session in which the instrument shall be introduced. The committee shall file such reports with the Clerk.

E. Each prefiled instrument shall be introduced on the first day of the session as required by the Constitution and by the rules of the House. In the case of prefiled instruments which have been referred to committee prior to the session, the Journal shall recite the committee reference on the day of introduction. At such time the author, or, if the author is present in the chamber, any other member, may offer a motion for reference of the instrument to a different committee, as provided in House Rule 6.5, unless the committee to which it was referred has determined its report on the prefiled instrument. However, the motion for reference of the instrument to a different committee shall not be in order unless the chairman of the committee of original referral is present in the chamber at the time the motion is made. If the committee report has been determined in accordance with House Rule 6.11, the author or any other member may move to discharge the committee from further consideration of the instrument in accordance with House Rule 6.13.

F. Repealed by HR 75, 2024 R.S., eff. April 17, 2024.

Mason's Manual: See Sec. 733

HR 3, 1973; HR 17, 1973; HR 6, 1974; HR 19, 1997, eff. April 11, 1997; HR 46, 2005, eff. June 21, 2005; HR 76, 2007, eff. June 27, 2007; HR 4, 2008 1st Ex. Sess., eff. Feb. 22, 2008; HR 80, 2011, eff. June 21, 2011; HR 75, 2024, eff. April 17, 2024.

HRULE 7.3

Numbering of instruments; numbering of the General Appropriation Bill, the Capital Outlay Bill, and the Omnibus Bond Bill

Rule 7.3. Numbering of instruments; numbering of the General Appropriation Bill, the Capital Outlay Bill, and the Omnibus Bond Bill

A. Other than as provided in Paragraph B, the Clerk of the House shall number each legislative instrument as it is introduced.

B. The General Appropriation Bill shall be numbered House Bill No. 1, the Capital Outlay Bill shall be numbered House Bill No. 2, and the Omnibus Bond Bill shall be numbered House Bill No. 3.

Mason's Manual: Sec. 727 and 733(1)

HR 3, 1973; HR 40, 1991.

HRULE 7.4

Resolutions; titles

Rule 7.4. Resolutions; titles

Each resolution introduced in the House of Representatives, whether it is a simple or a concurrent resolution, shall bear a brief title indicative of its subject and purpose.

Mason's Manual: Sec. 145

HR 3, 1973.

HRULE 7.5

Title only bills

Rule 7.5. Title only bills

No bill shall be introduced or received by title only or in any similar form whereby its provisions are not substantially set forth in full.

HR 3, 1973; HR 21, 1977; HR 13, 1978.

HRULE 7.6

Legislative instruments; preparation by staff; introduction copies; printing

Rule 7.6. Legislative instruments; preparation by staff; deadline for requests; introduction copies; printing

A.(1) All legislative instruments shall be printed and such number of copies thereof as shall be required by the Clerk presented at the time of prefiling or introduction. All bills shall be printed upon prefiling or introduction for distribution.

(2) No instrument introduced in the House of Representatives shall be scheduled or reported by committee or, in case of perfunctory resolutions, adopted by the House, if it was not prepared for introduction by the House Legislative Services staff, until such instrument has been placed in the House computer data base in proper form by the House Legislative Services staff.

(3)(a) A request for legislation which is to be prefiled for consideration during a regular session shall be received by House Legislative Services staff not later than seventy-two hours prior to the prefiling deadline applicable to the instrument being requested.

(b) During a regular session, a request for legislation which is to be introduced on the last day for introduction of matters having the effect of law shall be received by House Legislative Services staff not later than seventy-two hours prior to the deadline for introduction.

B. A copy of each legislative instrument prefiled with the Clerk of the House or introduced shall be made available through the Internet home page of the House of Representatives. A copy of each such legislative instrument shall be transmitted by the Clerk to each member of the House who so requests. The Clerk shall make copies available to any person who requests a copy.

C. Study requests, commendations, reports, memorials, petitions, and other documents shall be printed only on the order of the House.

Mason's Manual: Sec. 725

HR 3, 1973; HR 17, 1973; HR 6, 1974; HR 21, 1974; HR 6, 1975; HR 10, 1976; HR 4, 1978; HR 3, 1979; HR 17, 1986; HR 45, 1998, eff. May 20, 1998; HR 79, 2008, eff. June 23, 2008; HR 75, 2024, eff. April 17, 2024.

HRULE 7.7

Endorsement of instruments

Rule 7.7. Endorsement of instruments

Each action taken by the House on any bill or other measure shall be endorsed by the Clerk of the House on the cover thereof and the date of each such action shall be noted thereon.

Mason's Manual: Sec. 694(2)

HR 3, 1973.

HRULE 7.8

Engrossment to include all amendments

Rule 7.8. Engrossment to include all amendments

When the House orders a legislative instrument engrossed or reengrossed, the Clerk shall cause the measure to be printed so as to include and reflect all amendments which have been adopted at the time it is ordered engrossed or reengrossed, as the case may be.

Mason's Manual: Sec. 735

HR 3, 1973; HR 45, 1998, eff. May 20, 1998.

HRULE 7.9

Engrossment, copies; digest; form and content of the General Appropriation Bill

Rule 7.9. Engrossment, copies; digest; form and content of the General Appropriation Bill

A. Each House instrument which has passed its second reading and which has been ordered engrossed or reengrossed and passed to third reading shall be presented to the House for its third reading, as engrossed or reengrossed.

B. A copy of each engrossed or reengrossed House instrument shall be placed on the desk of each member who so requests no later than twenty-four hours following the reading of the committee report in the House and prior to its being considered on final passage by the House. Each Senate instrument shall be printed in the form in which it is received in the House and a copy thereof shall be placed on the desk of each member of the House who so requests prior to its consideration on final passage by the House. No instrument shall be considered unless this requirement has been met. In addition no bill shall be considered on final passage unless a digest of the bill, as it was reported by committee, has been placed on the desk of each member.

C.(1) The General Appropriation Bill shall be prepared in a manner which includes an appendix which clearly shows each proposed number of authorized positions and each proposed appropriation and the corresponding number, if any, of authorized positions and the corresponding appropriation, and if any, from the enrolled version of the General Appropriation Bill for the current fiscal year. The inclusion of such information shall be for comparison purposes only and shall not constitute any part of law or proposed law.

(2) The appendix to the General Appropriation Bill shall be prepared in a manner to include the current and the proposed salary, vehicle allowance, and housing allowance for each of the following officials:

(a) The secretary of each of the following departments of state government:

(i) The Department of Economic Development.

(ii) The Department of Culture, Recreation and Tourism.

(iii) The Department of Environmental Quality.

(iv) The Louisiana Department of Health.

(v) The Louisiana Workforce Commission.

(vi) The Department of Natural Resources.

(vii) The Department of Public Safety and Corrections.

(viii) The Department of Revenue.

(ix) The Department of Children and Family Services.

(x) The Department of Transportation and Development.

(xi) The Department of Wildlife and Fisheries.

(xii) The Department of Veterans Affairs.

(b) The superintendent of education, the commissioner of higher education, and the president of each public postsecondary education system.

(c) Each of the following from the Department of Public Safety and Corrections: the deputy secretary for public safety services, the deputy secretary for corrections services, and the deputy secretary for youth services.

(d) The director of state civil service.

(e) The executive secretary of the Public Service Commission.

(f) The commissioner of the division of administration.

(3) The General Appropriation Bill shall not be heard by the Committee of the Whole or considered on third reading and final passage by the House of Representatives if it is not in the form required by this Paragraph. This Paragraph may be suspended by a vote of a majority of the elected members.

D.(1) In the event that the legislative fiscal officer determines that the budget estimate as provided by Article VII, Section 11(A) of the Constitution of Louisiana recommends appropriations out of the state general fund and dedicated funds for the next fiscal year for health care and for higher education in amounts less than the appropriations enacted for each purpose for the current fiscal year, the General Appropriation Bill introduced as provided by Article VII, Section 11(B) of the Constitution of Louisiana shall provide separate recommendations for discretionary and nondiscretionary expenditures and the means of financing such expenditures which are subject to appropriation, excluding recommendations for legislative expenses and judicial expenses.

(2) The General Appropriation Bill shall not be considered by a committee, by the Committee of the Whole, or considered on third reading and final passage by the House of Representatives if it is not in the form required by this Paragraph.

HR 3, 1973; HR 21, 1974; HR 17, 1986; HR 45, 1998, eff. May 20, 1998; HR 63, 2007, eff. Jan. 1, 2008; HR 9, 2008, eff. June 23, 2008; HR 31, 2013, eff. June 6, 2013.

HRULE 7.10

Reengrossment

Rule 7.10. Reengrossment

Each bill and concurrent resolution, which originates in the House of Representatives and which is finally passed by the House, shall be reengrossed to include all amendments adopted by the House of Representatives.

Mason's Manual: Sec. 735

HR 3, 1973.

HRULE 7.11

Voting on conference committee reports; digests

Rule 7.11. Voting on conference committee reports; digests

A. Except as otherwise provided herein, a digest of each conference committee report on a legislative instrument shall be prepared and presented to each member of the House prior to a vote by the House on such report. If a conference committee report is submitted to the House during the period of time beginning twenty-four hours prior to the expected sine die adjournment of a session, such digest shall not be required, but shall be prepared and presented to each member if practical.

B. For the purpose of this Rule, the digest of a conference committee report shall include:

(1) A digest of the legislative instrument as it was finally passed by the house of origin.

(2) A summary of all substantive amendments adopted in the second house.

(3) A digest of the legislative instrument as proposed by the conference committee.

Mason's Manual: Sec. 772

HR 13, 1982; HR 45, 1998, eff. May 20, 1998.

HRULE 7.12

Enrollment

Rule 7.12. Enrollment

Each legislative instrument which originated in the House of Representatives and which has been finally passed, shall be enrolled and presented to the special Committee on Enrollment for examination. If the committee finds that the bill or other measure has been correctly enrolled, including all amendments agreed upon by both houses, the chairman of the committee shall so report to the House, whereupon the Speaker immediately shall sign the measure. House Resolutions finally passed by the House shall be enrolled, examined, reported upon and signed in like manner.

Mason's Manual: Sec. 738

HR 3, 1973; HR 4, 1978.

HRULE 7.13

Signature of Speaker

Rule 7.13. Signature of Speaker

All House resolutions which are passed by the House, and all concurrent resolutions and bills which are finally passed by both Houses, shall be signed by the Speaker, and all writs, warrants and subpoenas issued by order of the House shall be under his hand and attested by the Clerk.

Mason's Manual: Sec. 575(3) and 739

HR 3, 1973; HR 4, 1978.

HRULE 7.14

Presentation to President of the Senate

Rule 7.14. Presentation to President of the Senate

Enrolled bills, joint resolutions, and concurrent resolutions originating in the House which have been signed by the Speaker as provided in House Rule 7.13 shall then be presented by the Clerk to the President of the Senate for signature.

Mason's Manual: Sec. 739(1)

HR 3, 1973; HR 4, 1978.

HRULE 7.15

Presentation to the Governor

Rule 7.15. Presentation to the Governor

A. Enrolled bills originating in the House of Representatives, except joint resolutions, shall be presented to the Governor by the Clerk of the House, immediately after signature by the President of the Senate.

B. All other legislative instruments originating in the House of Representatives shall be presented by the Clerk to the Secretary of State immediately after signature by the President of the Senate or by the Speaker of the House when only the Speaker's signature is required.

Mason's Manual: Sec. 738(2) and 740

HR 3, 1973; HR 22, 1976; HR 4, 1978; HR 45, 1998, eff. May 20, 1998; HR 3, 1999.

HRULE 7.16

Fiscal notes; requirement; capital outlay appropriations, amendments

Rule 7.16. Fiscal notes; requirement; capital outlay appropriations, amendments

A.(1) Every bill, joint resolution, and simple or concurrent resolution, which will affect the receipt, expenditure, or allocation of state funds in an amount of one hundred thousand dollars or greater in any fiscal year or of the funds of any political subdivision of the state in an amount of one hundred thousand dollars or greater in any fiscal year or which will authorize the issuance of general obligation bonds or other general obligations of the state shall have a fiscal note attached to it prior to its adoption or its consideration on final passage. Whenever a measure which affects the receipt, expenditure, or allocation of state funds in an amount of one hundred thousand dollars or greater in any fiscal year or of the funds of any political subdivision of the state in an amount of one hundred thousand dollars or greater in any fiscal year or which will authorize the issuance of general obligation bonds or other general obligations of the state has been reported by any committee of the House without a fiscal note filed with the Clerk, or which needs a revised fiscal note prepared and filed with the Clerk due to the adoption of committee amendments, the Clerk shall request a fiscal note on the measure be so prepared and filed. The determination of the need to obtain a fiscal note shall be made by the Clerk, with due consideration of the recommendation of House Legislative Services staff. If upon the measure being called for final passage or final consideration a current fiscal note has not been filed with the Clerk, the measure shall be returned to the calendar.

(2)(a) There is hereby created the Fiscal Note Review Committee which shall be composed of three members of the House of Representatives appointed by the Speaker of the House.

(b) Whenever the author of a measure questions the information contained in a fiscal note on the measure, he may request the Fiscal Note Review Committee to review the content of the fiscal note. When the Fiscal Note Review Committee receives a request from an author, it shall review the fiscal note and shall notify the author whether the committee approves the information contained within the fiscal note or recommends that a revised fiscal note be obtained.

(c) When the Fiscal Note Review Committee receives a request to review a fiscal note pursuant to this Paragraph, the Fiscal Note Review Committee shall review and make a determination regarding the fiscal note no later than three days after receipt of the request. If the Fiscal Note Review Committee fails to make a determination regarding the fiscal note within the time period provided in this Subparagraph, the fiscal note is deemed approved.

B. Notwithstanding the provisions of Paragraph G of Joint Rule No. 4, every bill, joint resolution, and simple or concurrent resolution, and every amendment thereto, which appropriates monies for capital outlay purposes shall have a fiscal note attached as otherwise required by Joint Rule No. 4. In addition to the requirements of Paragraph C(4) of Joint Rule No. 4, the worksheet of the fiscal note attached to each such measure shall include a feasibility study and needs assessment as required by R.S. 39:101 for inclusion in the capital outlay budget.

C. If an actuarial note is required by R.S. 24:521, the actuarial note shall serve as the fiscal note required by this Rule.

HR 6, 2nd Ex. Sess., 1980; HR 33, 1997, eff. Jan. 1, 1998; HR 45, 1998, eff. May 20, 1998; HR 3, 1999, April 5, 1999; HR 12, 2010, eff. May 25, 2010.

HRULE 7.17

Actuarial notes

Rule 7.17. Actuarial notes

A. If the actuarial note required by R.S. 24:521 is not attached to a measure reported by any committee of the House of Representatives, any member, on third reading of such measure, may offer a motion that the measure be returned to the calendar.

B. At any time a floor amendment is offered to a measure to which an actuarial note was required by R.S. 24:521, which amendment would substantially affect the cost to or the revenues of any retirement system as stated in the most recent actuarial note, and the member proposing such amendment does not present to the House an actuarial note prepared by the legislative auditor as to the fiscal and actuarial effect of his proposed amendment, any member may offer a motion that the proposed amendment be withdrawn. If the motion is adopted by the favorable vote of a majority of the quorum present, the amendment shall be deemed to be withdrawn; however, the amendment may be proposed again at any time it would otherwise be in order, provided that the required actuarial note is presented at that time.

HR 24, 1995.

HRULE 7.18

Required fiscal data for licensing fee legislation

Rule 7.18. Required fiscal data for licensing fee legislation

A. In addition to the requirements of Joint Rule No. 4, a fiscal report shall accompany any legislation or administrative rule seeking an increase of an existing licensing or certification fee on a profession or occupation, or the imposition of a new fee, by an executive branch regulatory agency. No standing committee of the House shall consider any such bill or rule unless the committee otherwise decides. Such report shall be submitted to the respective standing committee prior to the hearing on such legislation or rule, and the report shall contain the following data in this order:

(1) A statement showing income for the past two fiscal years and an estimate of the current year's income by fee category.

(2) A breakdown for the same period of time showing personnel costs, travel costs, operating expenses, and costs of any contractual services.

(3) A breakdown of the fee increase requested indicating the category in which the increase falls, how many people will be affected by the increase, and the income to be gained in each category.

(4) An explanation of the need for the increase, how the amount of increase was determined by categories, and the reason for those categories being selected over other categories within the agency.

(5) Proof showing that the requested increase in dues or fees has been sent to the membership, and, to the extent possible, a favorable reply received.

(6) A statement by category, showing when fees were last increased and the legislative act number.

(7) A financial statement indicating assets and deficits, including the amount of any surplus and the manner of its investment, or of any deficit.

B. Each committee staff shall inform all agencies subject to this Rule within the subject matter jurisdiction of the committee of the provisions of this Rule. The committee staff shall specifically inform any agency or board affected by a bill or rule subject to the provisions of this Rule and the author of the bill upon its referral to the committee.

C. Whenever a bill subject to the provisions of this Rule has been reported by a committee without the information required by Paragraph A, any member may, on third reading of the bill, offer a motion that the bill be returned to the calendar until the information is obtained.

HR 12, 1982.

HRULE 7.19

Appropriation bills; one-time money or federal disaster funds for recurring expenses; vote requirement

Rule 7.19. Appropriation bills; one-time money or federal disaster funds for recurring expenses; vote requirement

A.(1) The provisions of this Subparagraph shall apply to each appropriation bill which appropriates one-time money or federal disaster funds for ordinary recurring expenses except as otherwise provided in Paragraph C.

(a) No motion the effect of which is to finally pass an appropriation bill that appropriates one-time money or federal disaster funds for ordinary recurring expenses shall be in order unless immediately prior to such a motion a separate motion to authorize the use of one-time money or federal disaster funds for ordinary recurring expenses is adopted by a favorable vote of at least two-thirds of the members present and voting.

(b) The provisions of Subsubparagraph (a) of this Paragraph shall not be applicable to the General Appropriation Bill. If the General Appropriation Bill appropriates one-time money or federal disaster funds for ordinary recurring expenses, no motion to resolve into the Committee of the Whole to hear the General Appropriation Bill shall be in order, unless immediately prior to such a motion a separate motion to authorize the use of one-time money or federal disaster funds for ordinary recurring expenses is adopted by a favorable vote of at least two-thirds of the members present and voting. No motion to concur in an amendment to the General Appropriation Bill which appropriates one-time money or federal disaster funds for ordinary recurring expenses shall be in order, unless immediately prior to such a motion a separate motion to authorize the use of one-time money or federal disaster funds for ordinary recurring expenses is adopted by a favorable vote of at least two-thirds of the members present and voting. No motion to adopt a conference committee report on the General Appropriation Bill which appropriates one-time money or federal disaster funds for ordinary recurring expenses shall be in order, unless immediately prior to such a motion a separate motion to authorize the use of one-time money or federal disaster funds for ordinary recurring expenses is adopted by a favorable vote of at least two-thirds of the members present and voting.

(2) The adoption of any Committee of the Whole House Amendment or any floor amendment which proposes to appropriate one-time money or federal disaster funds for ordinary recurring expenses shall require the favorable vote of at least two-thirds of the members present and voting.

B. For purposes of this Rule, the following phrases shall have the following meanings:

(1) "Federal disaster funds" means money received by the state from the federal government in response to and for recovery from a federally declared disaster or emergency.

(2) "Money available for appropriation" means the amount of money to be received for a fiscal year by the state general fund and dedicated funds, exclusive of federal funds.

(3) "One-time money" means any one of the following:

(a) Money available for appropriation from any special treasury fund excluding any monies forecast to be dedicated into such a fund by the Revenue Estimating Conference in the official forecast for that fiscal year.

(b) Money available for appropriation from the state general fund from one time transactions, but not recognized as nonrecurring revenue by the Revenue Estimating Conference, including but not limited to court settlements, the sale of state facilities, and the privatization of state operations.

(4) "Ordinary recurring expenses" means all expenses of a continuing or recurring character, that in the normal course of administration, would be expected to be necessary in approximately the same amounts each year.

C.(1) A motion the effect of which is to finally pass an appropriation bill that appropriates one-time money for ordinary recurring expenses shall be in order without a separate prior motion authorizing the use of such money if:

(a) The total recommended general operating appropriations contained in the executive budget for the fiscal year for which the appropriation is recommended are less than or equal to the total general operating appropriations for the existing operating budget of the current fiscal year included in the executive budget; and

(b) Appropriations from one-time money for ordinary recurring expenses do not exceed the projected growth of the state general fund from the fiscal year for which the appropriation is proposed and the subsequent fiscal year according to the most recent official forecast.

(2) A motion the effect of which is to finally pass an appropriation bill that appropriates federal disaster funds for ordinary recurring expenses shall be in order without a separate prior motion authorizing the use of such money if:

(a) Ordinary recurring expenses are not increased above amounts budgeted immediately prior to the federal declaration of the disaster or emergency.

(b) The federal disaster funds are payable to the state on a reimbursement basis.

(c) The Revenue Estimating Conference adopts a revised forecast that indicates that ordinary recurring revenues are sufficient to fully fund any increase in ordinary recurring expenses for the current fiscal year and at least the next two fiscal years.

D.(1) Prior to consideration on third reading and final passage of any appropriation bill, the Legislative Fiscal Officer shall submit a report to the House of Representatives which shall indicate whether the appropriation bill appropriates one-time money or federal disaster funds for ordinary recurring expenses. No appropriation bill shall be considered unless the report of the Legislative Fiscal Officer has been placed on the desk of each member.

(2)(a) Prior to the adoption of any Committee of the Whole House Amendment, any floor amendment, and any conference committee report to an appropriation bill, the presiding officer, after giving due consideration to the advice of legislative staff, shall make a determination if the amendment or any amendment recommended by the conference committee, as the case may be, appropriates one-time money or federal disaster funds for ordinary recurring expenses.

(b) Prior to concurrence in an amendment to an appropriation bill, the presiding officer, after giving due consideration to the advice of legislative staff, shall make a determination if the amendment appropriates one-time money or federal disaster funds for ordinary recurring expenses.

HR 27, 2011, eff. May 23, 2011; HR 17, 2022, eff. May 31, 2022.

HRULE 8.1

Morning Hour

CHAPTER 8. ORDER OF BUSINESS

Rule 8.1. Morning Hour

A. Immediately after following the call to order by the Speaker upon the convening of the House on each legislative day, the House shall proceed with the Morning Hour. The order of business during the Morning Hour shall be as follows:

(1) Roll Call

(2) Prayer

(3) Pledge of Allegiance

(4) Reading of the Journal

(5) Petitions, Memorials and Communications

(6) Introduction of Resolutions

(7) Introduction of Bills

(8) Senate Bills on First Reading

(9) Reports of Committees

(10) House and House Concurrent Resolutions Lying Over

(11) Senate Concurrent Resolutions Lying Over

(12) House Bills on Second Reading to be Referred to Committee

(13) Senate Bills on Second Reading to be Referred to Committee

(14) House and House Concurrent Resolutions Reported by Committee

(15) Senate Concurrent Resolutions Reported by Committee

(16) House Bills on Second Reading Reported by Committee

(17) Senate Instruments on Second Reading Returned from the Legislative Bureau

(18) Senate Bills on Second Reading Reported by Committee

(19) Reconsideration

(20) Special Order

(21) Reconsideration of Vetoed Bills

B. Upon completion of the business of the Morning Hour the House shall proceed to the Regular Order of the Day.

Mason's Manual: Sec. 710

HR 3, 1973; HR 4, 1977; HR 7, 1978; HR 17, 1982.

HRULE 8.2

Regular Order of the Day

Rule 8.2. Regular Order of the Day

A. The Regular Order of the Day shall be as follows:

(1) House and House Concurrent Resolutions on Third Reading for Final Consideration

(2) Senate Concurrent Resolutions on Third Reading for Final Consideration

(3) House Concurrent Resolutions Returned from the Senate with Amendments

(4) House Bills Amended by the Senate to be Concurred in by the House

(5) House Bills on Third Reading and Final Passage

(6) Senate Bills on Third Reading and Final Passage

(7) Conference Committee Reports for Consideration

B. On any legislative day on which at the time of adjournment the House is engaged in the consideration of legislative instruments on final passage but has not finally acted upon all instruments listed for consideration in that order of business on that day, the Clerk shall enter on the calendar for the next legislative day under the same order of business each such instrument upon which final action has not been taken, in the same order in which said instruments have advanced.

Mason's Manual: Sec. 710

HR 3, 1973; HR 17, 1976; HR 4, 1977; HR 45, 1998, eff. May 20, 1998.

HRULE 8.3

Priority of Business

Rule 8.3. Priority of Business

All questions relating to the priority of business shall be decided without debate.

Mason's Manual: Sec. 177(4)

HR 3, 1973.

HRULE 8.4

Special Order

Rule 8.4. Special Order

Any legislative instrument which has been placed in Special Order shall be called by the presiding officer during that order of business on the day named. If it is not acted upon by the House on that day during the order of business of Special Order, the matter shall be returned to the calendar subject to call under the order of business to which it was otherwise last advanced.

Mason's Manual: Sec. 263-267

HR 3, 1973.

HRULE 8.5

Precedence of Special Orders

Rule 8.5. Precedence of Special Orders

A. When two or more legislative instruments have been fixed as Special Orders for the same day, they shall take precedence according to the order established for their consideration by the House; however, if no order for consideration of such instruments has been established, the instrument first assigned for that day shall take precedence and the other instruments fixed for the same day shall be called and acted upon in the order in which they were fixed as Special Order until disposition has been made of all instruments in Special Order for that day.

B. The House, by a favorable vote of two-thirds of the members present, may change the order of precedence of legislative instruments placed in Special Order.

C. Any instrument fixed as Special Order, which is returned to the calendar subject to call, may be called from the calendar on the same day, while the House is in the order of business of Special Order, after disposition has been made of all other instruments fixed as Special Order for that day. If it is not called from the calendar on the same day while the House is in Special Order, it shall be returned to the calendar subject to call under the order of business to which it was otherwise last advanced.

Mason's Manual: Sec. 265

HR 3, 1973.

HRULE 8.6

Order of Business, vote required to change; Special Order, vote required to establish

Rule 8.6. Order of Business, vote required to change; Special Order, vote required to establish

The order of business, as established by the rules of the House, shall not be postponed or changed except by a favorable vote of at least two-thirds of the members present; however, a legislative instrument may be placed in Special Order for consideration on a succeeding day by a majority of those present and voting if the standing committee which reported such legislative instrument has recommended such placement. A motion to suspend this rule shall be a debatable motion.

Mason's Manual: Sec. 258(3), 265, 266, and 713

HR 3, 1973; HR 45, 1998, eff. May 20, 1998.

HRULE 8.7

Presentation of documents

Rule 8.7. Presentation of documents

Petitions, memorials, communications and other papers addressed to the House shall be presented to the House by the Clerk during the appropriate order of business of the Morning Hour. A brief statement of the contents thereof may be made verbally by the Clerk or by any member or such documents may be read by the Clerk. A petition, memorial, communication or other paper addressed to the House may be referred, upon motion, to the proper committee in any case in which further action by the legislature with regard to such document may be deemed appropriate.

Mason's Manual: Sec. 148

HR 3, 1973.

HRULE 8.8

Order of consideration of legislative instruments

Rule 8.8. Order of consideration of legislative instruments

A. Until it has been reported by a committee, each legislative instrument shall be taken up and acted upon in the proper order of business in the order numbered. After being reported by a committee, each House instrument shall take precedence in the order of its maturing by day; that is, instruments shall take precedence in numerical order by day of report by committee and thereafter in the order otherwise advanced to further action by the House.

B. After being reported by the Legislative Bureau, each Senate instrument shall take precedence in the order of its maturing by day; that is, instruments shall take precedence in numerical order by day of report by the Legislative Bureau and thereafter in the order otherwise advanced to further action by the House.

C. As each instrument is advanced to each successive order of business, it shall be placed on the calendar in the proper order of business in numerical order with other instruments advanced to the same order on the same day and these numerically ordered listings of instruments shall in turn be arranged according to the day of advancement to said order. Each instrument shall then be considered during that order of business in the order listed.

Mason's Manual: Sec. 263

HR 3, 1973; HR 34, 1997, eff. May 6, 1997.

HRULE 8.8.1

Calendar; passing over certain instruments; "Berthelot Rule"

Rule 8.8.1. Calendar; passing over certain instruments; "Berthelot Rule"

A. Notwithstanding House Rule 8.8, on any legislative day at the discretion of the Speaker and upon the motion of any member, the House may consider legislative instruments on third reading and final consideration or final passage that are noncontroversial in preferential order, which shall be referred to as the "Berthelot Rule".

B. If a member raises an objection to proceeding under the Berthelot Rule, then proceeding under the Berthelot Rule shall require a motion adopted by a favorable vote of a majority of the members present and voting, and such motion shall not be debatable.

C.(1) Any legislative instrument which is not considered in the order of its maturing in the manner provided by House Rule 8.8 due to the House proceeding under this rule shall remain on the calendar in the same numerical order for consideration.

(2) For the purposes of this Paragraph, if a member objects to a legislative instrument being considered in preferential order pursuant to this Rule, the legislative instrument shall remain on the calendar in the same numerical order for consideration.

Mason's Manual: Sec. 261 and 263

HR 142, 2018, eff. May 9, 2018; HR 86, 2025, eff. April 29, 2025.

HRULE 8.9

Three readings of bills required

Rule 8.9. Three readings of bills required

No bill or joint resolution shall be finally passed by the House of Representatives unless it has been read in open session of the House on three different days.

Mason's Manual: Sec. 720 and 722

HR 3, 1973.

HRULE 8.10

Bills; First Reading

Rule 8.10. Bills; First Reading

Upon introduction in the case of legislative instruments originating in the House and after receipt in the House, in the case of Senate instruments, each bill or joint resolution shall be read for the first time, which reading shall be for information, and each such bill or joint resolution then shall be placed on the calendar for its second reading in its regular order.

Mason's Manual: Sec. 733

HR 3, 1973.

HRULE 8.11

Resolutions; introduction and referral; suspension of laws; vote requirement

Rule 8.11. Resolutions; introduction and referral; suspension of laws; vote requirement

A. Each resolution shall be read upon introduction in the House of Representatives and shall be referred to an appropriate committee on the next legislative day following the day of introduction. The requirement of referral to committee shall not apply to perfunctory resolutions such as those pertaining to adjournment. A perfunctory resolution may be taken up and acted upon immediately upon introduction. In addition, any resolution or motion which directs a committee to report on a specified legislative instrument, or which recalls an instrument from committee, shall be taken up as a privileged matter as soon as it is introduced or offered and shall be considered at once.

B. A resolution suspending a law in whole or in part shall only be adopted in accordance with the same procedures and formalities as are provided by the constitution, by law and by Rules 8.9, 8.10, 8.12, 8.13, 8.14, and 8.19 hereof for the passage of instruments having the force and effect of law and any such resolution shall fix the period of suspension, which period shall not extend beyond the sixtieth day after adjournment sine die of the next regular session after adoption thereof.

C. Except as otherwise provided in Paragraph B of this Rule, a concurrent resolution shall only be adopted upon a favorable vote of at least a majority of the elected members of the House.

Mason's Manual: Sec. 145, 510, and 511

HR 3, 1973; HR 4, 1975 Ex. Sess.; HR 2, 2013, eff. May 30, 2013.

HRULE 8.12

Commitment or amendment; two prior readings required

Rule 8.12. Commitment or amendment; two prior readings required

No bill or joint resolution shall be committed or amended until it has been read in open session of the House on two separate days.

Mason's Manual: Sec. 381, 731(2), and 734(2)

HR 3, 1973.

HRULE 8.13

Commitment or amendment on Second Reading

Rule 8.13. Commitment or amendment on Second Reading

Commitment or amendment of a legislative instrument shall be in order at the second reading of such instrument.

Mason's Manual: Sec. 731(2) and 734(2)

HR 3, 1973; HR 21, 1984; HR 10, 1988.

HRULE 8.14

Committee report required

Rule 8.14. Committee report required

A. No bill or joint resolution originating in the House shall be engrossed and passed to third reading unless it has been reported by a committee.

B. No Senate bill or joint resolution shall be passed to its third reading unless it has been reported by a committee.

Mason's Manual: Sec. 111(15)

HR 3, 1973; HR 34, 1997, eff. May 6, 1997; HR 4, 2006 2nd Ex. Sess., eff. Dec. 13, 2006.

HRULE 8.15

Consideration of the General Appropriation Bill

Rule 8.15. Consideration of the General Appropriation Bill

A. The consideration, in a regular session, of the General Appropriation Bill on final passage shall not occur until no fewer than three legislative days have intervened after the bill has been ordered engrossed.

B. In addition to the provisions in House Rule 7.11 regarding conference committee reports, a vote on the report of the conference committee on the General Appropriation Bill shall not occur until no fewer than forty-eight hours have intervened after the report has been received by the House from the conference committee. The Clerk shall cause an unofficial enrollment of the bill and a summary thereof to be typed to include and reflect the conference committee report. The unofficial enrollment of the bill shall indicate or highlight in an appropriate manner any language being changed in or added to the bill by the conference committee report. The summary shall include and indicate any language being removed from the bill by the conference committee report. Such unofficial enrollment and summary shall be presented to the House at least twenty-four hours prior to a vote by the House on such conference committee report.

C. The requirements contained in Paragraph B may be waived by a majority vote of the elected members of the House.

HR 5, 1991; HR 3, 1995.

HRULE 8.16

Passage to Third Reading

Rule 8.16. Passage to Third Reading

A. The final question on the second reading of every legislative instrument originating in the House shall be whether it shall be engrossed and passed to a third reading.

B. The final question on the second reading of every legislative instrument originating in the Senate shall be whether it shall be passed to a third reading.

Mason's Manual: Sec. 734(3)

HR 3, 1973; HR 45, 1998, eff. May 20, 1998.

HRULE 8.17

Bills engrossed; passed to Third Reading

Rule 8.17. Bills engrossed; passed to Third Reading

At the second reading of each bill or joint resolution reported by committee, if it is ordered engrossed, it shall go on the calendar for third reading in its regular course. Each such instrument shall be placed on the calendar in the proper order of business in numerical order with other instruments advanced to the same order on the same day and these numerically ordered listings of instruments advanced to such order shall in turn be arranged according to the day of advancement to said order. Each instrument shall be considered during that order of business in the order listed.

Mason's Manual: Sec. 734(3), 735, and 736

HR 3, 1973.

HRULE 8.18

Legislative instruments which have been recommitted

Rule 8.18. Legislative instruments which have been recommitted

Any legislative instrument which is recommitted and then is reported to the House shall take the course of an instrument at its second reading, unless it is reported by the Committee of the Whole, in which case the House shall immediately proceed to act on it. An instrument which has been ordered recommitted once upon the motion of a member shall not be so recommitted again, except for a special amendment proposed and agreed to by the House, and then only by the consent of two-thirds of the members present.

HR 3, 1973; HR 45, 1998, eff. May 20, 1998.

HRULE 8.19

Legislative Bureau

Rule 8.19. Legislative Bureau

All instruments intended to have the effect of law shall be examined by the Legislative Bureau as provided in Joint Rule 3 of the Joint Rules of the Senate and the House of Representatives.

HR 3, 1973; HR 4, 1975 Ex. Sess.

HRULE 8.20

Returning to and calling from the calendar

Rule 8.20. Returning to and calling from the calendar

A. A legislative instrument may be returned to the calendar upon approval of a majority of the members present and voting. Only a member authoring the instrument, or the member handling the instrument if it originated in the Senate, or another member authorized by the author of a House Bill or member handling a Senate Bill, may move to call it from the calendar for further action or consideration. For instruments advanced to third reading, returned from the Senate with amendments for concurrence, or reported from a conference committee, an instrument may be called from the calendar no sooner than the next legislative day following the member's notifying the House of his intention to call an instrument from the calendar. No notice of intention to call from the calendar shall be required for a bill returned to the calendar on the last day for final passage of bills or for an instrument reported from a conference committee which was returned to the calendar on the last day of a session.

B. Each instrument for which notice has been given pursuant to this Rule shall be listed on the Order of the Day in the order the Clerk received the member's notice. Such instruments shall remain so listed until the author or member authorized to handle the instrument is recognized to move to call the instrument from the calendar, which recognition shall be made in the order the instrument is listed on the Order of the Day. On the day prior to such recognition, the Speaker shall announce to the House notice of his intention to recognize members to call such instruments. If the author or member authorized to handle the instrument chooses not to move to call the instrument or if the House refuses to grant the member permission to call the instrument at the time the member is called upon to make such motion, the instrument shall be removed from the list and returned to its numerical order in the listing of instruments returned to the calendar. The author or member authorized to handle the instrument so returned may give later notice to the Clerk of his intention to call the instrument from the calendar pursuant to Paragraph A.

Mason's Manual: Sec. 330-342

HR 3, 1973; HR 4, 1978; HR 45, 1998, eff. May 20, 1998; HR 3, 1999; HR 4, 2006 2nd Ex. Sess., eff. Dec. 13, 2006.

NOTE: 8.26 renumbered 8.20 by authority of House Rule 2.10(D)(4). See HR 6, eff. May 30, 2014, for repeal of prior 8.20.

HRULE 8.21

Repealed

Rule 8.21. Repealed by HR 20, 2022, eff. April 20, 2022.

HRULE 8.22

Vetoed bills; reconsideration

Rule 8.22. Vetoed bills; reconsideration

A. A veto message from the governor shall be a privileged message and shall be read by the Clerk on the legislative day of its receipt at the first opportunity without interrupting pending business. The question of reconsideration of a vetoed bill shall lie over until the appropriate order of business during the Morning Hour of the next legislative day. The Clerk shall place each vetoed bill on the order of the day in numerical order by day of receipt.

B. The question upon reconsideration, unless a substitute or other main motion be made, shall be the question of the passage of the bill subsequent to the governor's veto. Upon reconsideration, the motion to sustain the governor's veto, as well as any subsidiary or main motion which is in order during the consideration of the final passage of a bill, shall be in order.

C. On the last calendar or legislative day of a session, after the Clerk shall have read a veto message, the House shall reconsider the bill upon motion, duly adopted, of any member. The motion to take up the reconsideration of a vetoed bill shall be deemed a privileged incidental motion, shall be in order during any order of business unless another motion or instrument then be pending, and shall be adopted by a majority of those present and voting.

Mason's Manual: Sec. 458

HR 3, 1973; HR 7, 1978.

NOTE: 8.28 renumbered 8.22 by authority of House Rule 2.10(D)(4). See HR 6, eff. May 30, 2013, for repeal of prior 8.22.

HRULE 8.23

Conference committee reports; consideration

Rule 8.23. Conference committee reports; consideration

A. A conference committee report shall be a privileged report and notice of its receipt shall be given by the Clerk on the legislative day of its receipt at the first opportunity without interrupting pending business.

B.(1) The question of consideration of a conference committee report shall lie over until the appropriate order of business during the Regular Order on the next legislative day. The Clerk shall place each conference committee report on the calendar in the order in which it was received for consideration.

(2) Any motion the effect of which is to suspend Subparagraph (1) of this Paragraph shall be a debatable motion and shall require a favorable vote of two-thirds of the members present and voting unless a conference committee report is received on the day the legislature will adjourn sine die, then such a motion shall require a favorable vote of a majority of the elected members of the House.

C. The question upon consideration, unless a substitute or other main motion is made, shall be the question of the adoption of the conference committee report.

D. Immediately prior to the consideration of a conference committee report, the Clerk shall announce to the House all of the following:

(1) If, in the determination of the Clerk, the conference committee report is confined to resolving the differences between the two houses regarding the amendments which were rejected by the house of origin and recommending technical amendments or is not so confined.

(2) The names of the conferees who signed the report and the names of the conferees who did not sign the report, unless all of the conferees signed the report, in which case the Clerk shall announce that fact.

E. The provisions of House Rule 8.15 shall apply to conference committee reports on the General Appropriation Bill.

HR 20, 2022, eff. April 20, 2022.

HRULE 8.24

Information required for consideration of appropriations bills; concurrences and conference committee reports

Rule 8.24. Information required for consideration of appropriations bills; concurrences and conference committee reports

Notwithstanding any other rule to the contrary, the additional information required pursuant to Article III, Section 16(F) of the Constitution of Louisiana for purposes of adopting a conference committee report for or concurring in Senate amendments to an appropriations bill shall be as provided in Joint Rule 22.

HR 342, 2025, eff. June 10, 2025.

HRULE 8.25

Repealed by HR 6, 2013 R.S., eff. May 30, 2013.

Rule 8.25. Repealed by HR 6, 2013 R.S., eff. May 30, 2013.

HRULE 8.26

Renumbered pursuant to HR 6, 2013 R.S., eff. May 30, 2013.

Rule 8.26. Renumbered pursuant to HR 6, 2013 R.S., eff. May 30, 2013.

NOTE: 8.26 renumbered 8.20 by authority of House Rule 2.10(D)(4). See HR 6, eff. May 30, 2013, for repeal of prior 8.20.

HRULE 8.27

Renumbered pursuant to HR 6, 2013 R.S., eff. May 30, 2013.

Rule 8.27. Renumbered pursuant to HR 6, 2013 R.S., eff. May 30, 2013.

NOTE: 8.27 renumbered 8.21 by authority of House Rule 2.10(D)(4). See HR 6, eff. May 30, 2013, for repeal of prior 8.21.

HRULE 8.28

Renumbered pursuant to HR 6, 2013 R.S., eff. May 30, 2013.

Rule 8.28. Renumbered pursuant to HR 6, 2013 R.S., eff. May 30, 2013.

HRULE 9.1

Statement of motion

CHAPTER 9. MOTIONS

Rule 9.1. Statement of motion

When a motion is made, it shall be stated by the presiding officer, or, at the discretion of the presiding officer, by the Clerk. If the motion is in writing, it shall be read aloud by the Clerk before it is debated.

Mason's Manual: Sec. 156(2)

HR 3, 1973.

HRULE 9.2

Possession of the House

Rule 9.2. Possession of the House

A motion shall be deemed to be in the possession of the House after it has been stated by the Speaker or, at his discretion, by the Clerk or has been read by the Clerk. However, the member who has made a motion may withdraw it at any time, unless the motion is a motion to reconsider which motion shall not be withdrawn unless the approval of the House of such withdrawal is first obtained.

Mason's Manual: Sec. 156(3)

HR 3, 1973.

HRULE 9.3

Division of the question

Rule 9.3. Division of the question

When a question is divisible, any member may call for a division of the question.

Mason's Manual: Sec. 313 and 314

HR 3, 1973.

HRULE 9.4

Substitute motions

Rule 9.4. Substitute motions

No more than one substitute motion shall be in order at any one time to any class of motion.

Mason's Manual: Sec. 395

HR 3, 1973; HR 4, 1978.

HRULE 9.5

Precedence of motions

Rule 9.5. Precedence of motions

A. At any time a question is under debate, the motions listed below shall take precedence in the order listed:

(1) To adjourn, fixing day and time.

(2) To take a recess.

(3) To return to the calendar subject to call.

(4) To lay on the table.

(5) To move the previous question.

(6) To end consideration of amendments.

(7) To move the previous question on the entire subject matter.

(8) To commit or refer.

(9) To postpone indefinitely.

At any time any one of the above motions is under consideration, motions having a higher precedence shall be in order and motions having a lower precedence shall not be in order.

B. Once a motion to commit or refer or a motion to postpone indefinitely has been decided by the House, no such motion shall be allowed again on the same day on the same legislative instrument.

Mason's Manual: Sec. 58 and 158(1)

HR 3, 1973; HR 13, 1981.

HRULE 9.6

Motion to adjourn

Rule 9.6. Motion to adjourn

A motion to adjourn, fixing the day and time for reconvening, shall always be in order, except when the main question has been ordered. The motion to adjourn shall be decided without debate. In putting the question on the motion to adjourn, when motions containing different times for reconvening have been made, the presiding officer shall put the question on the motion proposing the longest time of adjournment first, regardless of the order in which the motions were made.

Mason's Manual: Sec. 200-209 and 781

HR 3, 1973.

HRULE 9.7

Motion to adjourn or recess; effect of

Rule 9.7. Motion to adjourn or recess; effect of

If a motion to adjourn or to recess is made and adopted while a legislative instrument, or an amendment thereto, is under debate, then the pending amendment, if any, shall be deemed to have been withdrawn, and the legislative instrument shall remain in the same order of business it was in at the time of the motion and shall be considered first when the House next returns to such order of business.

Mason's Manual: Sec. 203 and 214-216

HR 3, 1973; HR 4, 1978.

HRULE 9.8

Motion to lay on table

Rule 9.8. Motion to lay on table

A. The motion to lay on the table shall be decided without debate.

B. The motion to lay on the table shall be in order in accordance with this Chapter on any matter or motion in the possession of the House regardless of the house of origin.

Mason's Manual: Sec. 337(2)

HR 3, 1973; HR 97, 2016, eff. June 1, 2016.

HRULE 9.9

Motion to call from the table; vote necessary to adopt

Rule 9.9. Motion to call from the table; vote necessary to adopt

A. A matter once laid on the table shall be called from the table only upon the favorable vote of two-thirds of the members present and voting.

B. The motion is debatable if the motion or matter to be called from the table is debatable; the motion is not debatable if such motion or matter to be called from the table is not debatable. The motion opens the main question to debate if the motion to be called from the table opens the main question to debate; the motion does not open the main question to debate if such motion to be called from the table does not open the main question to debate.

Mason's Manual: But see, Mason's Manual Sec. 492

HR 3, 1973; HR 45, 1998, eff. May 20, 1998.

HRULE 9.10

Previous question and previous question on the entire subject matter

Rule 9.10. Previous question and previous question on the entire subject matter

A. The form of the motion for the previous question shall be: "I move the previous question." This motion shall be applicable to any outstanding subsidiary motion or amendments, if any. This motion shall be applicable to the main motion pending before the House when there are no subsidiary motions or amendments. The motion is undebatable. When adopted its effect shall be to put an end to debate and to bring the House to a vote on the outstanding subsidiary motion or amendments or the main question, as the case may be.

B. The form of the motion for the previous question on the entire subject matter shall be: "I move the previous question on the entire subject matter." This motion shall be applicable to the main motion pending before the House when there are subsidiary motions or amendments. The motion shall be undebatable. When adopted its effect shall be to put an end to all debate on any amendment or on the main question and to bring the House immediately to a vote:

(1) Upon subsidiary motion, amendment or amendments.

(2) Upon the main question.

C. Immediately following the offering of the motion for the previous question on the entire subject matter, or the motion for the previous question, and before the motion is adopted or rejected, the Clerk of the House shall inform the House as to whether or not he has amendments on his desk which members have handed to him for the purpose of proposing said amendments to the instrument under debate and shall also name the authors of any such amendments.

D. The motion for the previous question and the motion for the previous question on the entire subject matter shall require the approval of a majority of the members present for adoption.

E. Adoption of either motion shall have the effect of ending debate; however, the proponent of each motion or amendment upon which debate has been closed, or a member or members designated by him, shall have the right to close the debate. The closing speech or speeches on each motion or amendment shall be limited to a total of fifteen minutes.

F. All incidental questions of order, which arise after the motion for the previous question on the entire subject matter, or the motion for the previous question, has been made and which are to be decided prior to the main question, shall be decided without debate, whether they are appealed or not.

G. If the motion to postpone is pending at the time the motion for the previous question on the entire subject matter, or the motion for the previous question, is adopted, the effect of the adoption of the motion for the previous question on the entire subject matter, or the motion for the previous question, shall be only to bring the House to a direct vote on the motion to postpone.

H.(1) The motion for the previous question is not in order when offered by a member who has made a motion subject to debate nor is the motion in order when offered by a member at the conclusion of speaking on the motion under debate.

(2) If there are members in opposition to the main motion who have requested recognition to speak at the time the motion for the previous question is made, the motion for the previous question shall be out of order unless at least one member in opposition to the main motion has been recognized to speak.

Mason's Manual: Sec. 131 and 345-352

HR 3, 1973; HR 4, 1978; HR 10, 1984; HR 45, 1998, eff. May 20, 1998; HR 70, 2005, eff. June 14, 2005.

HRULE 9.11

Reconsideration

Rule 9.11. Reconsideration

A. A motion which has been made and has been adopted or rejected may be reconsidered; provided, however, that a motion which has been reconsidered shall not be reconsidered a second time. It shall be in order for any member who voted on the prevailing side, that is, the side which received a plurality of the vote by which a motion was adopted or rejected, to offer a motion for the reconsideration of such motion. In any case in which a motion was adopted or rejected without a record vote, any member may offer a motion for reconsideration.

B. The motion to reconsider, to be in order, shall be made on, and, subject to the provisions of Paragraph C, shall be disposed of on the same day the original motion was adopted or rejected and when the motion is otherwise in order. A subsidiary motion may not be reconsidered after the disposition of the main motion unless the latter shall have been reconsidered, nor shall the motion to reconsider the vote on the passage, adoption or concurrence in any instrument be in order after the instrument shall have gone out of the possession of the House.

C. If the motion to reconsider the vote on the question of the passage, adoption, or concurrence in a legislative instrument is not laid on the table at the time the motion is made, the proponent of the motion shall give notice that on the next legislative day he will insist upon the motion to reconsider, whereupon the motion shall lie over until the appropriate order of business for reconsideration during the Morning Hour of the next legislative day. The motion shall then be called in the appropriate Morning Hour for reconsideration on the next legislative day. At such time, a motion to table the motion to reconsider shall be in order. If reconsideration is granted, the instrument or report shall be returned to the calendar subject to call in the order of business to which it had otherwise last advanced. However, if the motion to reconsider is made on the last legislative day or calendar day of a session, or the last legislative day or calendar day for consideration of bills on final passage, the motion need not lie over. If reconsideration is granted on the last day of a session, the instrument or report may not be considered again by the House until all other House instruments and reports on House instruments have been considered by the House or returned to the calendar subject to call.

Mason's Manual: Sec. 159

HR 3, 1973; HR 20, 1977; HR 45, 1998, eff. May 20, 1998; HR 76, 2007, eff. June 27, 2007.

HRULE 9.12

Appeals of rulings of the Chair

Rule 9.12. Appeals of rulings of the Chair

On a motion to appeal the ruling of the Chair on a point of order, a negative vote of a majority of the members present shall be required to overrule such ruling. On such an appeal of the ruling of the Chair, no member may speak more than once, unless permitted to do so by the House. When voting on the motion to appeal the ruling of the Chair, the question shall be stated so that an affirmative vote will be to sustain the ruling of the Chair. Any ruling of the Chair which has been sustained shall not thereafter be appealed on the same legislative day on the same point of order, except by a vote of two-thirds of the members present.

Mason's Manual: Sec. 230-235

HR 3, 1973; HR 45, 1998, eff. May 20, 1998.

HRULE 9.13

Motion to end consideration of amendments

Rule 9.13. Motion to end consideration of amendments

The form of the motion to end consideration of amendments to a legislative instrument under consideration shall be: "I move to end consideration by the House of any amendments on this measure." The motion is undebatable and shall be adopted by a majority of those present and voting. When adopted, no further amendments, other than an amendment pending and under consideration by the House at the time the motion is made, an amendment to add or delete coauthors, or technical amendments to place the title in conformity with the body of the bill or to place previously adopted amendments in proper form shall be considered or adopted. The motion to end consideration of amendments is not in order when another member has the floor.

HR 3, 1973; HR 13, 1981.

HRULE 9.14

Motions table

Rule 9.14A. Motions table

The following table of rules relating to motions shall govern:

Motion	Debatable	Opens Main Question to Debate	Can be Amended by a Substitute Motion (1)	Can be Reconsidered (14)	Vote Required (2)	In Order When Another Has Floor
(1) Adjourn, fixing day and time	No	No	Yes	No	M	No
(2) Appeal a call to order or reprimand	No (3)	No	No	Yes (4)	M (5)	Yes
(3) Appeal, all other cases	Yes (3, 6)	No	No	Yes (4)	M (5)	Yes
(4) Call from the calendar (24)	No (24)	No	No	No	M	No
(5) Call from the table	(15)	(15)	No	No	2/3	No
(6) Call to order	No	No	No	Yes	(7)	Yes
(7) Call up a bill or resolution without regard to its numerical order	No (24)	No	Yes	Yes	M	No
(8) Commit (16)	Yes	Yes	Yes	Yes (9)	M	No
(9) Direct committee to report	Yes (22)	No	Yes	Yes	ME	No
(10) End consideration of amendments	No	No	No	Yes	M	No
(11) Leave to explain actions after indecorum	No	No	No	Yes	M	No
(12) Lay on Table	No	No	No	(8)	M	No
(13) Postpone indefinitely	Yes	Yes	No	Yes	M	No
(14) Previous question (18)	No	No	No	No	M	No
(15) Previous question on entire subject	No	No	No	No	M	No

matter (11)						
(16) Reading papers	No	No	No	Yes	M	No
(17) Recall instrument from committee & recommit to another committee (16)	Yes (22)	No	(17)	Yes	ME	No
(18) Reconsider a debatable motion	Yes	Yes	No	No (13)	M	No
(19) Reconsider an undebatable question	No	No	No	No (13)	M	No
(20) Refer (16)	Yes	Yes	Yes	Yes (9)	M	No
(21) Reject recommendation of a committee report - motion which effect is to	Yes	No	Yes	Yes	ME (21)	No
(22) Return to the calendar subject to call	No	No	No	No	M	No
(23) Rise (in committee equals adjournment)	No	No	No	No	M	No
(24) Special order - motion to place a matter in (10)	Yes (10)	No	Yes	Yes	M (23)	No
(25) Suspend the rules (19, 20, 24)	No (10, 19, 24)	No	No	No	2/3 (20, 24)	No
(26) Take a recess	No	No	Yes	No	M	No
(27) Take up order of the day	No (10)	No	No	Yes	(10)	Yes
(28) Withdrawal of a motion	No	No	No	Yes	(12)	No

Rule 9.14B. Explanation of Table

"Yes" shows that the rule heading the column in which it stands applies to the motion opposite to which it is placed. "No" shows that the rule does not apply. A figure shows that the rule only partially applies – the figure referring to the note showing the limitation. Take, for example, "Lay on the Table." The table shows that it is undebatable, does not open main question, cannot be amended, an affirmative vote as shown by note No. 8 cannot be reconsidered, requires a majority vote, and is not in order when another has the floor.

Rule 9.14C. Notes to table relating to motions

The following notes are applicable to the motions table in Paragraph A above:

1. Since motions are never amended in the House, this heading is somewhat misleading. What is meant is that the motion can be altered in some respect by a substitute motion – for example, the motion to lay on the table cannot be altered by a substitute motion, but the motion to fix the time and day to which to adjourn can be altered by a substitute motion by naming another day and/or time.

2. Vote required: M – Majority of those present; ME – Majority of elected members; 2/3 – two-thirds of those present.

3. An appeal is undebatable only when relating to indecorum or to transgressions of the rules of speaking or to the priority of business or made while the previous question is pending.

4. An appeal may be reconsidered, but when the subject matter upon which the appeal was taken has been disposed of, and it is impossible for the House to reverse its action, it is too late to move to reconsider the appeal.

5. A tie vote sustains the ruling of the Chair, regardless of whether the question is put to sustain or overrule the Chair, since a majority is required to overrule. Any sustained ruling of the chair may not be appealed on the same legislative day on the same point of order, except by a 2/3rds vote.

6. No member shall speak more than once on an appeal unless by leave of the House (House Rule 9.12). See also Note 3, supra.

7. If any member, in speaking or otherwise, transgresses the rules of the House, the presiding officer shall, or any member may, call him to order (House Rule 5.2).

8. An affirmative vote on this motion cannot be reconsidered.

9. Cannot be reconsidered when in committee (House Rule 6.13). House Rule 6.13 sets forth procedures to effect a mandatory report by committee or discharge and recommittal.

10. To take up the Order of the Day is a matter of right; it would require a vote equivalent to a suspension of the rules to proceed otherwise. Generally questions regarding the priority of business are not debatable; however, a motion to suspend House Rule 8.6 regarding the order of business and the placement of a legislative instrument on special order for the succeeding day is debatable.

11. The previous question on the entire subject matter, if adopted, cuts off debate and brings the House to a vote on the pending questions in their order until the main question is reached, which shall be at once disposed of. But its only effect, if a motion "to postpone" is pending, is to bring the House to a vote upon such motion. Motion for previous question on the entire subject matter is not applicable in the Committee of the Whole.

12. A matter of right, except in the case of the motion to reconsider (See House Rule 9.2).

13. A motion which has been reconsidered cannot be reconsidered a second time (House Rule 9.11).

14. A rejected motion, although it be of a class that cannot be reconsidered, can nonetheless be renewed, after progress in debate or the transaction of any business, provided the renewal is not dilatory.

15. See House Rule 9.9(B).

16. Motion to refer to another committee is not in order unless the author and chair of committee of original referral are in the chamber (See House Rule 6.5 and, for prefiled bills, House Rule 7.2).

17. Motion to recall or discharge an instrument from committee cannot be amended; however, the motion to recommit an instrument to another committee can be amended.

18. Motion for previous question is not in order when offered by a member who has made a motion subject to debate or by a member at the conclusion of speaking on the motion under debate, nor if members in opposition to the main motion have requested to speak and at least one member in opposition to the main motion has not been recognized to speak (See House Rule 9.10(H)).

19. Motion to suspend House Rule 6.10(B) regarding rescheduling deferred legislation in committee is a debatable motion.

20. House Rule 8.15(C) allows certain time limitations and procedural requirements contained in House Rule 8.15(B), relative to a conference committee report on the General Appropriation Bill, to be waived by a majority vote of the elected members (ME).

21. Motion the effect of which is to reject the recommendation of a committee report on a legislative instrument requires a majority of the elected members, except for a motion to recommit, postpone indefinitely, or withdraw from the files of the House which requires a majority of those present and voting (See House Rule 6.11(D)).

22. It is not in order to debate the merits of the legislation; debate must be confined strictly to the motion.

23. Additionally requires the recommendation of placement of the legislative instrument on Special Order by the standing committee which reported the instrument. Changing the order of precedence of legislative instruments on Special Order requires a vote of 2/3rds of those present.

24. House Rule 8.23 relative to the consideration of conference committee reports requires the question of consideration of a conference committee report to lie over until the next legislative day after the receipt of the conference committee report and provides that a motion to suspend such requirement on the last legislative day of a session requires the favorable vote of a majority of the elected members (ME). A motion to suspend the provisions of House Rule 8.23(B), which includes the requirements that the question of the consideration a conference committee report lie over until the next legislative day after the receipt of the conference committee report and that the Clerk place each conference committee report on the calender in the order in which it is received, is a debatable motion.

HR 45, 1998, eff. May 20, 1998; HR 4, 2006 2nd Ex. Sess., eff. Dec. 13, 2006.

HRULE 10.1

Members required to vote; explanation of vote

CHAPTER 10. VOTING

Rule 10.1. Members required to vote; explanation of vote

Every member who is in the House when the question is put shall give his vote. On a debatable question, each member who recuses himself from voting shall be allowed to explain his recusal in writing only and the same shall be incorporated in the Journal if requested; provided that such written explanation shall be presented to the Clerk prior to adjournment on the same legislative day.

Mason's Manual: Sec. 521, 522, and 528

HR 3, 1973; HR 45, 1998, eff. May 20, 1998.

HRULE 10.2

Speaker's vote

Rule 10.2. Speaker's vote

The Speaker shall not be required to vote, unless the House is equally divided.

Mason's Manual: Sec. 513(2) and (3) and 514

HR 3, 1973.

HRULE 10.3

Voting for members; prohibition; locking voting machines

Rule 10.3. Voting for members; prohibition; locking voting machines

A. No person not a member of the House of Representatives shall cast a vote for a member. No member shall cast a vote for another member, unless the member, being present in the Chamber, requests another member to cast a specific vote for him on a specific question. Any member who votes or attempts to vote for another member in violation of this rule may be punished in such manner as the House may determine.

B. If a person not a member votes or attempts to vote for any member in violation of this rule, he shall be barred from the floor of the House for the remainder of the session, and he may be punished further in such manner as the House may deem proper.

C. When a member leaves the Chamber while the House is in session, such member may direct the Clerk to lock the member's voting machine. The Clerk shall do so upon such direction and shall unlock the member's voting machine upon notification of the member's return to the Chamber.

D. Notwithstanding the provisions of Paragraph A of this House Rule, if the voting machines are locked pursuant to House Rule 4.5(C), only a member shall cast his own vote and if any other person, including the Clerk, takes any action to cast a vote for the member in violation of this Rule, such person may be punished in such manner as the House may determine unless the member, being present in the Chamber, publicly directs that his vote be cast and explicitly and specifically directs how his vote shall be cast on the specific question.

Mason's Manual: Sec. 516

HR 3, 1973; HR 45, 1998, eff. May 20, 1998; HR 41, 2004, eff. June 22, 2004.

HRULE 10.4

Putting the question

Rule 10.4. Putting the question

Questions shall be distinctly put in this form: "As many of you as are in favor (here the question is stated) shall vote 'Yes'; those opposed shall vote 'No.' The Clerk shall open the machine." After the roll call is recorded, the presiding officer shall then rise and state the decision of the House.

Mason's Manual: Sec. 523

HR 3, 1973.

HRULE 10.5

Voting machine out of order

Rule 10.5. Voting machine out of order

At any time the voting machine is out of order, as determined by the Speaker or by a majority of the members present and voting, and a quorum call or a roll call vote is ordered, the names of the members shall be called alphabetically, except that the Speaker's name shall be called last.

HR 3, 1973.

HRULE 10.6

Tie vote

Rule 10.6. Tie vote

Except as provided in Rule 9.12, if the vote on any question results in a tie, the motion shall fail to pass.

Mason's Manual: Sec. 513(1)

HR 3, 1973; HR 45, 1998, eff. May 20, 1998.

HRULE 10.7

Must be present in Chamber to vote

Rule 10.7. Must be present in Chamber to vote

No member shall be permitted to vote in any roll call vote in any case in which he is not within the House Chamber before the result of the vote has been announced by the presiding officer.

Mason's Manual: Sec. 535(5)

HR 3, 1973; HR 12, 2010, eff. May 25, 2010; HR 37, 2011, eff. June 8, 2011.

HRULE 10.8

Change of vote

Rule 10.8. Change of vote

A. In the case of a roll call vote, any member shall be privileged to vote or change his vote, after the vote-recording equipment has started, or the roll has been called, by rising in his seat and announcing his vote before the result of the vote has been announced by the presiding officer.

B. A member may seek consent to correct a vote record, but such consent shall only be requested and granted on the same legislative day on which the vote was taken. A motion to seek consent to correct a vote record shall be a debatable motion.

Mason's Manual: Sec. 527 and 535(6) and (7)

HR 3, 1973; HR 3, 2008 1st Ex. Sess., eff. Feb. 22, 2008.

HRULE 10.9

Record Vote

Rule 10.9. Record Vote

At the request of twenty-one members of the House, a record vote shall be ordered by the Speaker and the vote of each member shall be recorded in the Journal.

Mason's Manual: Sec. 526, 535, and 694

HR 3, 1973.

HRULE 10.10

Voting display

Rule 10.10. Voting display

The actual numerical total of yea votes and nay votes shall be displayed to each member of the House of Representatives in the House Chamber immediately after the voting machine is closed.

HR 16, 2013, eff. June 24, 2013.

HRULE 11.1

Germane to subject

CHAPTER 11. AMENDMENTS

Rule 11.1. Germane to subject

Every amendment shall be germane to the instrument as introduced.

Mason's Manual: Sec. 402

HR 3, 1973; HR 11, 1985.

HRULE 11.2

Amendments in order

Rule 11.2. Amendments in order

Only one set of proposed amendments to a legislative instrument shall be in order for consideration by the House at any one time.

Mason's Manual: See Sec. 408

HR 3, 1973; HR 11, 1985.

HRULE 11.3

Order of consideration

Rule 11.3. Order of consideration

Proposed floor amendments shall be considered in the order in which they are received for consideration, except that amendments that have been received prior to the instrument's being considered which are proposed by the lead author of a House instrument or by the House member handling a Senate instrument shall be considered prior to other proposed floor amendments.

Mason's Manual: Sec. 397(3) and (4)

HR 11, 1985.

HRULE 11.4

Floor amendments; public information; copies

Rule 11.4. Floor amendments; public information; copies

A. A proposed floor amendment shall be public information upon filing with the Clerk of the House.

B. A copy of a proposed floor amendment, except an amendment proposed by the chairman of the Legislative Bureau on behalf of the Legislative Bureau, shall be placed on the desk of each member of the House who has notified the Clerk that the member wants to receive printed copies of all proposed floor amendments, and no vote shall be taken on the proposed floor amendment until this requirement has been met.

HR 11, 1985; HR 7, 1996; HR 45, 1998, eff. May 20, 1998; HR 3, 1999; HR 208, 2019, eff. Jan. 13, 2020.

HRULE 11.5

Proposing same amendment

Rule 11.5. Proposing same amendment

When a proposed floor amendment has been defeated, the same amendment to the same instrument shall not be proposed again unless the vote by which the amendment failed to pass has been reconsidered.

Mason's Manual: Sec. 398(2)

HR 11, 1985.

HRULE 11.6

Appropriations bills; required information

Rule 11.6. Appropriations bills; required information

A.(1) Any appropriation bill which, upon introduction, contains funding for an entity which is neither a budget unit nor a political subdivision of the state shall require the submission of information as required in this Rule. All agencies of the executive branch shall assist the standing committee to which such appropriation bill is referred in identifying and obtaining the required information concerning such entity on the appropriation bill supplemental information form prior to the committee reporting such bill. If the appropriation bill supplemental information form concerning each such entity is not received, filed with the Clerk, made a public record, and made available to every member of the House of Representatives, any motion to report the bill shall not be in order.

(2) Any amendment to an appropriation bill which proposes to provide funding for an entity which is neither a budget unit nor a political subdivision of the state shall require the submission of information pursuant to the procedure provided in this Rule.

B. Such information shall be provided in the form of a document which shall be known as the "appropriation bill supplemental information form", which shall include, at a minimum, the following information:

(1) The recipient entity's full legal name and mailing and physical address.

(2) The type of entity (for instance, a nonprofit corporation) and, if the entity is a corporation, the names of the incorporators.

(3) The last four numbers of the taxpayer's identification number of the recipient entity.

(4) If a legislator has agreed to request or to sponsor the amendment on behalf of the recipient entity, the name of such legislator.

(5) The name of each member of the recipient entity's governing board and officers.

(6) The dollar amount to be appropriated by the amendment.

(7) The recipient entity's proposed detailed budget, including amounts budgeted for salaries, professional services, contracts, acquisitions, major repairs, and supplies.

(8) The recipient entity's public purpose sought to be achieved through the use of state monies, a summary of the project or program to be used to achieve such purpose, and the goals and objectives to achieve such purpose, described in a detailed manner sufficient to inform a reasonable citizen of the true nature of the purpose, the project or program, and the goals and objectives to achieve such purpose.

(9) The proposed length of time the recipient entity estimates is needed to accomplish the purpose.

(10) If any elected or appointed state official or an immediate family member of such an official is an officer, director, trustee, or employee of the recipient entity or holds any ownership interest therein:

(a) If an elected or appointed state official, the name and address of the official and the office held by such person.

(b) If an immediate family member of an elected or appointed state official, the name and address of such person; the name, address, and office of the official to whom the person is related; and the nature of the relationship.

(c) The percentage of the official's or immediate family member's ownership interest in the recipient entity, if any.

(d) The position, if any, held by the official or immediate family member in the recipient entity.

(11) If the recipient entity has a contract with any elected or appointed state official or an immediate family member of such an official or with the state or any political subdivision of the state:

(a) If the contract is with an elected or appointed state official, the name and address of the official and the office held by such person.

(b) If the contract is with an immediate family member of an elected or appointed state official, the name and address of such person; the name, address, and office of the official to whom the person is related; and the nature of the relationship.

(c) If the contract is with the state or a political subdivision of the state, the name and address of the state entity or political subdivision of the state.

(d) The nature and value of the contract, including a description of the goods or services provided or to be provided pursuant to the contract.

C. The Clerk of the House of Representatives shall prescribe the form for submitting the information required by this Rule. The information submitted pursuant to this Rule shall be published by the Clerk and shall be made available to the public via the Internet. The Clerk shall maintain the information required to be submitted by this Rule in an online, searchable database, available to the public via the Internet.

D.(1) Each completed appropriation bill supplemental information form shall be filed with the Clerk, made a public record, and made available to every member of the House of Representatives prior to the filing of any such amendment with a standing committee of the House of Representatives, the Committee of the Whole, or with the House of Representatives, and concurrent with the receipt of a message from the Senate or of a conference committee report concerning an appropriation bill containing amendments as described in Paragraph A of this Rule.

(2) The Clerk shall provide for the mechanism for making all such completed appropriation bill supplemental information forms available to all members of the House of Representatives and for the sufficient notification to the members of the availability of the information.

(3) The Clerk shall provide a mechanism for indicating that the legislator who is listed as the requestor or the sponsor of the amendment on behalf of the recipient entity has agreed to request or sponsor, as applicable, the amendment and for making public the name of a legislator who has agreed to request or to sponsor the amendment.

E. The filing of any such amendment with or a motion to adopt any such amendment by any committee, the Committee of the Whole, or the House of Representatives shall not be in order unless the completed appropriation bill supplemental information form regarding such amendment is filed as required by this Rule. A motion to concur in any such Senate amendment shall not be in order unless the completed appropriation bill supplemental information form regarding such amendment is made available to the members of the House of Representatives prior to the scheduling of the bill for concurrence. A motion to adopt any conference committee report which contains any such amendment shall not be in order unless the completed appropriation bill supplemental form is made available to the members of the House of Representatives prior to such motion.

F. The term "immediate family" as used in this Rule shall have the same meaning as provided in R.S. 42:1102. The term "appointed state official" as used in this Rule shall have the same meaning as provided in R.S. 42:1114.3.

G. The requirements of this Rule shall not apply to funding for or an appropriation request from a voluntary council on aging, a public community water system, or a volunteer fire department.

HR 69, 2007, eff. June 27, 2007; HR 2, 2008 1st Ex. Sess., eff. March 21, 2008; HR 85, 2008, eff. June 24, 2008; HR 39, 2010, eff. May 25, 2010.

HRULE 12.1

Journal; proceedings entered

CHAPTER 12. JOURNAL AND LEGISLATIVE CALENDAR

Rule 12.1. Journal; proceedings entered

The proceedings of the House, except when the House is acting in Committee of the Whole, shall be entered in the Journal as concisely as possible, and care shall be taken to detail a true and accurate account of the proceedings.

Mason's Manual: Sec. 694 and 695

HR 3, 1973.

HRULE 12.2

Journal; votes entered

Rule 12.2. Journal; votes entered

Each vote of the House shall be entered in the Journal together with a concise statement of the question upon which the vote was taken. Each record or roll call vote shall be entered in the Journal in such manner as to list the name of each member voting yea, the name of each member voting nay, and the name of each absent member.

Mason's Manual: Sec. 696 and 697

HR 3, 1973.

HRULE 12.3

Journal; legislative instrument entered

Rule 12.3. Journal; legislative instrument entered

The title of each bill, joint resolution, resolution, and concurrent resolution introduced in the House shall be printed in the Journal upon introduction. The title of the instrument shall accompany each Journal entry of subsequent action taken upon the instrument.

Mason's Manual: Sec. 723

HR 3, 1973; HR 4, 1978; HR 45, 1998, eff. May 20, 1998.

HRULE 12.4

Journal; documents entered

Rule 12.4. Journal; documents entered

Each petition, memorial, communication or other paper presented to the House shall be printed in full in the Journal unless the House shall direct otherwise, in which case a brief statement of the contents thereof shall be included in the Journal.

Mason's Manual: Sec. 145

HR 3, 1973.

HRULE 12.5

Journal read daily

Rule 12.5. Journal read daily

The Clerk shall read the Journal daily, unless a majority of the members present dispense with the reading thereof. If the Journal is not available when the reading of the Journal is called for, its reading shall be postponed until such time as the Journal is available.

Mason's Manual: Sec. 698

HR 3, 1973.

HRULE 12.6

House Calendar; publication

Rule 12.6. House Calendar; publication

During each legislative session the Clerk of the House in conjunction with the Secretary of the Senate shall cause Legislative Calendars to be published periodically. If the Senate fails to order publication of a Legislative Calendar, a House Calendar shall be published upon specific order of the House.

HR 3, 1973; HR 4, 1978.

HRULE 12.7

Interim Calendar

Rule 12.7. Interim Calendar

The Clerk shall maintain and shall regularly mail to all members of the legislature a copy of an Interim Calendar, which may be informally reproduced. The Clerk shall also make such Interim Calendar available to the news media, the public, and to all registered lobbyists who file a written request for such Interim Calendar. The Interim Calendar with respect to all House instruments shall list the title of prefiled instruments, shall indicate all those which have been referred to committee, and shall indicate the committee to which each has been referred, either by the Speaker or by the House and Governmental Affairs Committee. The Interim Calendar shall also indicate any report which a committee has determined it will make to the House on each measure for which it has determined such a report and for which it has filed such report with the Clerk.

HR 17, 1973; HR 4, 1978; HR 19, 1997, eff. April 11, 1997.

HRULE 12.8

Internet broadcast of proceedings; records; maintenance; applicability

Rule 12.8. Internet broadcast of proceedings; records; maintenance; applicability

A. The Speaker of the House of Representatives shall provide that audio and video of the entirety of all legislative proceedings occurring in House committee rooms shall be broadcast live via the Internet.

B. The Speaker of the House of Representatives shall provide that audio and video of all legislative proceedings in the House Chamber shall be broadcast live via the Internet on each legislative day of a session.

C. The Speaker of the House of Representatives shall provide that audio and video of the legislative proceedings occurring in House committee rooms or in the House Chamber shall be recorded and maintained for a minimum of three years and that such recorded legislative proceedings shall be available to the public for viewing through a link clearly identified on the Internet home page of the House of Representatives.

D.(1) The provisions of this Rule shall apply only to legislative proceedings which occur in the State Capitol.

(2) The audio and video records created pursuant to this Rule shall not be construed as the official record of a legislative proceeding.

E. If the Speaker of the House of Representatives is precluded from fulfilling the requirements of this Rule due to a technical problem or difficulty beyond his control, the failure to broadcast or record a legislative proceeding shall not be construed in any manner to be a violation of the provisions of this Rule.

HR 1, 2008 1st Ex. Sess., eff. Feb. 22, 2008.

HRULE 13.1

Action on standing rules

CHAPTER 13. RULES

Rule 13.1. Action on standing rules

No standing rule of the House shall be added, amended or repealed except by House Resolution, which resolutions shall not be deemed to be perfunctory.

Mason's Manual: Sec. 407

HR 3, 1973.

HRULE 13.2

Suspension of rules; return to rules; vote required

Rule 13.2. Suspension of rules; return to rules; vote required

A. No rule of the House shall be suspended except by a favorable vote of at least two-thirds of the members present and voting.

B. If a suspension of a rule extends beyond action on one legislative instrument, the members may return to the House Rules by a favorable vote of at least a majority of the members present and voting.

Mason's Manual: Sec. 13, 14, and 279-296

HR 3, 1973; HR 3, 1998, eff. May 20, 1998.

HRULE 13.3

Mason's Manual of Legislative Procedure

Rule 13.3. Mason's Manual of Legislative Procedure

On any question of legislative procedure, when these rules are silent or inexplicit, custom, usage, and practice shall be followed. If custom, usage and practice are inexplicit, then Mason's Manual of Legislative Procedure shall be considered as authority.

HR 3, 1973.

HRULE 14.1

Committee Rules

CHAPTER 14. COMMITTEE PROCEDURE

Rule 14.1. Committee Rules

Each of the standing committees established by House Rule 6.1 and each of the joint committees established pursuant to House Rule 14.16 may adopt rules to govern its procedure not inconsistent with the Rules of Order of the House of Representatives.

HR 8, 1973; HR 4, 1978; HR 45, 1998, eff. May 20, 1998.

HRULE 14.2

Committee Chairmen; duties

Rule 14.2. Committee Chairmen; duties

The duties of each committee chairman, appointed pursuant to House Rule 6.2, shall be the following:

(1) To call all meetings of the committee, including those requested by the membership as provided in House Rule 14.15.

(2) To preside at all meetings of the committee.

(3) To call the meeting to order at the time and place designated by the meeting notice.

(4) To be responsible for maintaining a record of attendance at committee meetings.

(5) To cause a committee to proceed with its business, after ascertaining the presence of a quorum, in the proper order according to the agenda and to announce the business before the committee as it proceeds with such business.

(6) To preserve order and decorum and to speak on points of order, in which case he shall have preference over other members.

(7) To decide all points of order, subject to appeal to the committee.

(8) To explain or clarify any rule of procedure upon request.

(9) To state, or to direct the secretary to state, each motion as it is made.

(10) To recognize members.

(11) To state and put to a vote all questions requiring a vote after the order of the question on the same and to thereafter announce the vote.

(12) To establish subcommittees and to appoint the membership of all subcommittees.

(13) To sign all documents which require his signature.

(14) To arrange for the posting and filing of committee notices as otherwise provided in the Rules of Order of the House of Representatives, particularly as provided in this Chapter.

(15) To prepare or supervise the preparation of the agenda for each committee meeting as required by these rules.

(16) To supervise and be responsible for the preparation of committee reports, particularly as provided in House Rule 6.11 and to submit them to the House.

(17) To submit requests to the Speaker for interim studies or meetings as provided in House Rule 14.16.

(18) To have custody of and insure the security of all legislative instruments and other papers or documents referred or submitted to the committee.

(19) To transmit to the Clerk each legislative instrument or other document which the committee has: (a) reported, or (b) been discharged from considering, or (c) been ordered to report.

(20) To discharge all other duties required by rule or by law.

Mason's Manual: Sec. 611

HR 8, 1974; HR 4, 1978; HR 45, 1998, eff. May 20, 1998; HR 4, 2006 2nd Ex. Sess., eff. Dec. 13, 2006.

HRULE 14.3

Vice Chairman; Duties

Rule 14.3. Vice Chairman; Duties

In the absence of the committee chairman, the vice chairman appointed pursuant to House Rule 6.2, shall exercise the powers and carry out the responsibilities of the chairman.

HR 8, 1979.

HRULE 14.4

Acting Chairman

Rule 14.4. Acting Chairman

In the absence of the chairman and the vice chairman an acting chairman shall be elected by the favorable vote of a majority of the quorum present. The Speaker or the Speaker Pro Tempore, as ex officio members of the committee, may call the meeting to order and preside until such acting chairman is elected.

Mason's Manual: Sec. 609

HR 8, 1974; HR 19, 1988.

HRULE 14.5

Chairman; Vacancy

Rule 14.5. Chairman; Vacancy

In the event of a vacancy in the office of chairman, the vice chairman shall assume the powers and duties of chairman until a new chairman is appointed by Speaker.

Mason's Manual: Sec. 610

HR 8, 1974.

HRULE 14.6

Committee Members; Rights and Privileges

Rule 14.6. Committee Members; Rights and Privileges

The rights and privileges of committee members shall include the following:

(1) To participate freely in committee discussions and debate.

(2) To offer motions.

(3) To assert points of order and privilege.

(4) To question witnesses, upon recognition by the chairman.

(5) To offer any amendment to any instrument.

(6) To vote on questions as stated by the chairman.

HR 8, 1974; HR 4, 1978; HR 45, 1998, eff. May 20, 1998.

HRULE 14.7

Amendments; Members to Offer

Rule 14.7. Amendments; Members to Offer

Only a member of a committee shall be permitted to offer an amendment for consideration by the respective committee.

Mason's Manual: Sec. 616

HR 8, 1974.

HRULE 14.8

Members; Duty to Attend Meetings; Attendance Record; Removal of Members; Excessive Absences

Rule 14.8. Members; Duty to Attend Meetings; Attendance Record; Removal of Members; Excessive Absences

A. It shall be the duty of committee members to attend and participate in all committee meetings. The chairman shall be responsible for maintaining a record of the members present and the members absent at each committee meeting.

B. Each committee chairman shall notify the Speaker of excessive absences and may request the Speaker to remove any member for excessive absences.

Mason's Manual: Sec. 629

HR 8, 1974; HR 4, 1978; HR 45, 1998, eff. May 20, 1998.

HRULE 14.9

Conflict of Interest; Recusal of Members

Rule 14.9. Conflict of Interest; Recusal of Members

A member may recuse himself from all committee proceedings relating to any question in which he believes he has a conflict of interest.

Mason's Manual: Sec. 522

HR 8, 1974.

HRULE 14.10

Meeting while House is in session

Rule 14.10. Meeting while House is in session

No committee of the House of Representatives shall meet during the time the House is in session unless the House has granted leave for the committee to do so.

Mason's Manual: Sec. 622 and 628

HR 3, 1973.

HRULE 14.11

Executive sessions

Rule 14.11. Executive sessions

No standing committee may hold executive sessions, except when considering personnel matters involving employees of the House, and all final votes by each standing committee shall be taken in sessions which are open to the public.

Mason's Manual: Sec. 630

HR 3, 1973.

HRULE 14.12

Consideration of instruments

Rule 14.12. Consideration of instruments

No standing committee of the House shall take up a legislative instrument which originated in the House unless the author or one of the coauthors is present, or unless the author or one of the coauthors has given written consent to the committee to the bill's being taken up in his absence, unless the House directs the committee to report.

HR 3, 1973; HR 34, 1997, eff. May 6, 1997; HR 4, 2006 2nd Ex. Sess., eff. Dec. 13, 2006.

HRULE 14.13

Introduction of Legislation by Committees

Rule 14.13. Introduction of Legislation by Committees

Upon the favorable vote of a majority of the members of a committee, the chairman or any member(s) thereof may introduce legislative instruments, on behalf of the committee, which concern matters within the subject matter jurisdiction of the committee.

Mason's Manual: Sec. 618

HR 8, 1974.

HRULE 14.14

Misconduct; Report of

Rule 14.14. Misconduct; Report of

A committee may report instances of misconduct to the House for its consideration and action.

HR 8, 1974.

HRULE 14.15

Calling Meetings; Committee Authority

Rule 14.15. Calling Meetings; Committee Authority

The committee chairman shall be required to call a meeting of a committee when requested to do so by a majority of the members of the committee. All requirements for notice, schedule and agenda for committee meetings shall be met in calling such meetings.

Mason's Manual: Sec. 625

HR 8, 1974.

HRULE 14.16

Standing committees; authority for meeting between sessions; authority for forming joint committees or for meeting jointly with Senate committees; procedure

Rule 14.16. Standing committees; authority for meeting between sessions; authority for forming joint committees or for meeting jointly with Senate committees; procedure

A. Each of the standing committees of the House of Representatives established by House Rule 6.1 is authorized:

(1) To study and hold hearings between sessions of the legislature on matters, subjects or problems assigned to it by the House, or by the two houses if acting as a joint committee, and to report thereon to the House or to the legislature.

(2) To study and hold hearings between sessions on matters, subjects or problems within its subject matter jurisdiction as provided in House Rule 6.6, upon approval of a majority of the members of the committee of such study and hearings, and to report thereon to the House.

(3) To hold joint meetings and hearings, or to establish and function as a joint committee with a Senate committee, for the purpose of study and investigation of matters within the subject matter jurisdiction of the two committees, either upon direction of the two houses by resolution or upon approval of a majority of the members of the two standing committees, and to report thereon to the legislature.

(4) To hold hearings in the interim from the third Monday in January until the convening of the session on any prefiled legislative instrument to be introduced in such session which has been referred to it by the Speaker and, at its discretion, to determine the report it will make on such instrument in accordance with the Rules of the House.

(5) To hold joint meetings and hearings, or to establish and function as a joint committee with a Senate committee of similar subject matter jurisdiction, either during sessions or in the interim, from the third Monday in January until the convening of the session for the purpose of considering and holding hearings on any prefiled legislative instrument to be introduced in such session which has been referred to either of the two committees, and to report thereon to the legislature; provided, however, that the report on any legislative instrument to the House shall be the report of the House standing committee to which such instrument was referred, such report to be made pursuant to the Rules of the House, particularly House Rules 6.9 and 6.11.

B. The authority of the standing committee of the House to meet in the interim between sessions upon approval of a majority of the members thereof, as provided in Subparagraphs A(2) and (3) above, shall be contingent upon compliance with the following provisions and upon approval of the Speaker of the House: Upon approval of a majority of the members of the standing committee for interim meetings or hearings, either as a House committee or as a joint committee, the chairman of the committee or any member thereof, shall submit to the Speaker of the House in writing the recommendation and request of the committee for such interim meetings. Such written recommendation and request shall set forth the scope of the study proposed to be made by the committee, the number of meetings anticipated and the estimated cost. If the funds for such meetings are available, the Speaker of the House shall approve such meetings in the interim; provided, however, that, should a question be raised as to the subject matter jurisdiction of the committee proposing to make such study, such jurisdictional question shall be resolved, in accordance with the provisions of House Rule 6.6, by the Speaker of the House and a majority of the entire membership of the House and Governmental Affairs Committee.

HR 8, 1973; HR 17, 1973; HR 4, 1978; HR 19, 1997, eff. April 11, 1997.

HRULE 14.17

Standing committees; interim; special appointments

Rule 14.17. Standing committees; interim; special appointments

The Speaker of the House may appoint not more than two additional members of the House, from time to time, to serve on each and every standing committee, but only for those hearings held during the interim between sessions of the legislature and only for such hearings thereof which shall have under consideration matters, subjects, or problems as provided in House Rule 14.16(A)(1), (2), and (3), about which such additional members shall possess or have expertise and/or experience. The additional members appointed to standing committees, in accordance with the provisions hereof, shall have the same powers and duties relative to the matters, subjects, or problems under study or investigation, during the period of their service as enjoyed by the permanent membership of said committee. The additional members shall have no authority to vote on the determination of a report by the committee on a prefiled legislative instrument.

HR 8, 1973; HR 4, 1978; HR 19, 1997, eff. April 11, 1997.

HRULE 14.18

Organizational Meeting; Calling; Notice; Purpose

Rule 14.18. Organizational Meeting; Calling; Notice; Purpose

A. As soon as the chairman and the members of a committee have been appointed at the beginning of a term an organizational meeting of the committee shall be called. Such a meeting shall be called by the chairman, or in his absence by the vice chairman, in accordance with the schedule for committee meetings established in accordance with the rules. The chairman shall cause notice of such meeting to be posted, filed, and/or transmitted as otherwise provided by the rules.

B. At the organizational meeting the committee shall review the subject matter under the jurisdiction of the committee, any matters which the committee proposes to study or which have been referred to the committee for study and the legislative instruments which have been referred to it at the time, and any other pending business before the committee. In addition, the committee shall prepare a tentative schedule for proceeding with the work of the committee.

Mason's Manual: Sec. 625

HR 8, 1974; HR 45, 1998, eff. May 20, 1998.

HRULE 14.19

Presession Hearings of Instruments

Rule 14.19. Presession Hearings of Instruments

Each committee to which prefiled legislative instruments have been referred shall meet to consider such instruments upon call of the chairman or upon request of a majority of the members of the committee.

HR 8, 1974; HR 4, 1978; HR 45, 1998, eff. May 20, 1998.

HRULE 14.20

Committee Meeting Schedule; Session, Interim Conflicts

Rule 14.20. Committee Meeting Schedule; Session, Interim Conflicts

A. The House of Representatives shall adopt, on the first day of each session, a uniform schedule of committee meetings to be followed throughout the session which shall be published in the Journal. Such schedule shall designate the day(s) of the week and the time of day each committee shall meet during the session; provided, that the committee shall not be required to meet if it has no business to consider.

B. A schedule of meeting days for committees shall be established for the interim between sessions by the Speaker in consultation with the committee chairmen. Such schedule shall designate particular days each month for the meetings of each group of committees designated in House Rule 6.7. Committees shall meet on such designated days only when called by the chairman.

C. Session and interim committee schedules shall, to the maximum extent possible, be established so as to avoid committee meeting conflicts for legislators.

Mason's Manual: Sec. 626 and 627

HR 8, 1974; HR 3, 1976; HR 3; 1978; HR 4, 1978; HR 45, 1998, eff. May 20, 1998.

HRULE 14.21

Changes in Fixed Schedule

Rule 14.21. Changes in Fixed Schedule

The chairman of a committee may make changes in the fixed schedule for his committee when extraordinary circumstances require, subject to all other applicable rules.

HR 8, 1974.

HRULE 14.22

Meeting Rooms; Assignment of

Rule 14.22. Meeting Rooms; Assignment of

Each standing committee shall be assigned a permanent meeting room by the Speaker. All meetings shall be held in the assigned rooms unless extraordinary circumstances require designation of a different meeting place for a particular meeting, in which case the notice for the meeting shall clearly identify the change in location.

HR 8, 1974.

HRULE 14.23

Weekly Committee Schedule

Rule 14.23. Weekly Committee Schedule

A.(1) Not later than 4:00 o'clock p.m. on the fourth calendar day prior to a regular session, the chairman of each standing committee shall submit to the Clerk a schedule of that committee's activities during the first calendar week of the regular session. Such schedule for the first week shall be included by the Clerk in the Journal for the first day of the regular session, and it shall be posted by him in the lobby of the House Chamber.

(2) The chairman of each standing committee shall submit to the Clerk a schedule of that committee's activities for each calendar week of any session. Except as otherwise provided in Subparagraph A(1) of this Paragraph, such schedule shall be submitted not later than two hours after the House convenes in the afternoon or the time of adjournment on the next legislative day following the committee's last scheduled meeting day of the calendar week, whichever is earlier. Except as otherwise provided in Subparagraph A(1) of this Paragraph, the schedule shall be included by the Clerk in the Journal for the day on which it was submitted, and it shall be posted by him in the lobby of the House Chamber.

(3) The schedule shall set forth an agenda for each meeting day during the week allotted to the committee under the uniform meeting schedule adopted pursuant to House Rule 14.20(A). Such agendas shall include the convening time of each committee hearing to be held, the location of the hearing, the instruments by number to be considered during each hearing, listed in the order of proposed consideration thereof, and a brief statement of the subject matter of each instrument scheduled. The agenda may reflect any other pertinent information concerning the scheduled meeting which the chairman deems relevant.

B. The daily notice of committee meetings shall adhere to the weekly schedule to the extent required by House Rule 14.24(A). Any change in the weekly schedule may be made only under a rule suspension. This rule shall not be deemed to abrogate the right of a committee by duly adopted motion to alter its order of consideration of instruments, to defer action thereon, or otherwise to take whatever substantive or procedural actions are within its authority and jurisdiction.

HR 9, 1977; HR 20, 1988; HR 45, 1998, eff. May 20, 1998; HR 76, 2007, eff. June 27, 2007.

HRULE 14.24

Notice; Session Meetings; Interim Meetings

Rule 14.24. Notice; Session Meetings; Interim Meetings

A. The chairman of each standing committee shall post notice of each session committee meeting on bulletin boards in the lobbies of the House and Senate no later than 4:00 o'clock p.m. or one hour after the House convenes in the afternoon, whichever is later, on the legislative day preceding the meeting. A copy of the notice shall also be filed at the same time with the Clerk of the House. This notice shall adhere to the weekly committee schedule previously submitted to the Clerk; however the committee shall not be required to list each legislative instrument on its weekly schedule on its notice. Any legislative instrument listed on the weekly schedule and listed on the notice for a committee which was not disposed of at the first meeting of a committee in the week may be carried over and listed on the notice for the second meeting of the committee during such week.

B.(1) At least four days prior to each interim meeting of a committee, the chairman of the committee shall file with the Clerk of the House notice of the meeting. Not later than the next business day after receipt of the notice, the Clerk shall transmit notice of each such meeting to the members of the respective committees and to any member of the legislature who is the author of a study resolution or a prefiled legislative instrument scheduled at such meeting and shall also be responsible for making the notice available to the news media, to the public, and to all registered lobbyists who have filed written request for such notice with the Clerk.

(2) Notwithstanding Subparagraph (1) of this Paragraph, if a standing committee has a statutory duty related to a disaster or emergency during a declared state of disaster or emergency, at least twenty-four hours prior to the meeting date at which such matter will considered, the chairman of the committee shall file with the Clerk of the House notice of the meeting. Immediately upon receipt of the notice, the Clerk shall transmit notice of each such meeting to the members of the respective committees and shall also be responsible for making the notice available to the news media, to the public, and to all registered lobbyists who have filed written request for such notice with the Clerk.

Mason's Manual: Sec. 626

HR 8, 1974; HR 1, 1988; HR 20, 1988; HR 8, 1990; HR 19, 1997, eff. April 11, 1997; HR 45, 1998, eff. May 20, 1998; HR 19, 2022, eff. May 11, 2022.

HRULE 14.25

Notice; Contents

Rule 14.25. Notice; Contents

Each meeting notice shall contain the following information:

(1) The name of the committee.

(2) The name of the committee chairman.

(3) The time and place of the meeting.

(4) The matters proposed for consideration, listed in order of their consideration, including the legislative instruments, by number.

(5) Any other information which the committee deems pertinent.

HR 8, 1974; HR 4, 1978.

HRULE 14.26

Meeting List

Rule 14.26. Meeting List

During the interim the Clerk of the House shall cause to be posted on the Internet home page of the House of Representatives a list of the date, time, and place of all committee meetings of which he has been notified.

HR 8, 1974; HR 45, 1998, eff. May 20, 1998.

HRULE 14.27

Notice of Change from Regular Schedule; Change from Time and Place in Notice

Rule 14.27. Notice of Change from Regular Schedule; Change from Time and Place in Notice

A. In the event extraordinary circumstances require that a meeting of a committee be held at a place, day or hour other than that provided for such committee in the session or interim schedule, the chairman may make changes in the scheduled place, day and/or hour, with the approval of the Speaker, but in such case, in addition to providing the notices required herein, shall include in the notice particular mention of the change.

B. After notice of an interim meeting has been given as provided in the rules, no change shall be made in the scheduled day unless notice is given of the newly scheduled meeting in accordance with the rules. After notice of a session meeting has been given, no change shall be made in the place and/or hour of such meeting unless the chairman notifies all members of the committee of such change prior to the newly scheduled meeting and posts the notice in accordance with Rule 14.24. No change shall be made in the day of a session meeting unless notice is given in the manner of the original notice and the change is noted therein.

HR 8, 1974; HR 45, 1998, eff. May 20, 1998.

HRULE 14.28

Meeting; Prohibition unless Notice Requirements met

Rule 14.28. Meeting; Prohibition unless Notice Requirements met

No meeting of a committee, regularly scheduled or otherwise, shall be held unless notice of any changes in day, place and/or hour have been given within the time limits prescribed.

HR 8, 1974.

HRULE 14.29

Meetings; Cancellation, Notice of

Rule 14.29. Meetings; Cancellation, Notice of

At any time a meeting of a committee, regularly scheduled or otherwise, is cancelled following publication of notice as required herein, notice of cancellation of any session meeting shall be posted in the same manner as the notice of the meeting as soon as possible and a copy of such notice of cancellation filed with the Clerk. Notice of cancellation of an interim meeting shall be given to the Clerk and shall also be given to all members at least two days prior to the date set for the meeting.

HR 8, 1974; HR 45, 1998, eff. May 20, 1998.

HRULE 14.30

Agenda; Committee rules

Rule 14.30. Agenda; Committee rules

A. The chairman shall cause to be prepared, immediately prior to each meeting, a formal agenda, including all business to come before the committee in the order of its consideration.

B. The agenda shall adhere as closely as possible to the list of matters to be considered contained in the meeting notice, but such list shall not be binding on the committee. Copies of the agenda shall be distributed to each member before the meeting is called to order.

C. The agenda and a copy of the committee's rules adopted pursuant to House Rule 14.1 shall be posted outside of the committee room prior to each committee meeting.

HR 8, 1974; HR 4, 1978; HR 2, 1990.

HRULE 14.31

Roll Call

Rule 14.31. Roll Call

The roll shall be called and, if a quorum is present, the chairman shall proceed in the order established by the agenda for the meeting.

Mason's Manual: Sec. 500

HR 8, 1974.

HRULE 14.32

Hearings; Persons to be Heard; Sworn Statement

Rule 14.32. Hearings; Persons to be Heard; Sworn Statement

A. At any time a committee holds a public hearing, whether on an instrument or other matter before the committee, opportunity to appear before the committee shall be provided to a representative number of proponents and opponents on each issue which the instrument or matter presents. The author of any instrument on which a hearing is held or his designee, or, if the hearing is not on an instrument, the member offering the motion under discussion, shall be entitled to make opening and closing remarks.

B.(1) Persons desiring to appear before a committee shall notify the committee chairman or the committee secretary no later than the beginning of the meeting. To be certain that an opportunity is afforded all persons who desire to be heard, the chairman shall inquire at the beginning of the hearing on each matter if there are additional persons who wish to be heard other than those who have previously notified the committee. The chairman shall allot the time available for the hearing in an equitable manner among those persons who are to be heard.

(2)(a) Each person appearing before a committee shall be required to identify himself and the group, organization, or company he represents, if any. Before being allowed to testify before the committee, he shall also be required to file with the committee chairman or the committee staff a sworn written statement in the form of a signed witness card affirming that his testimony is true and correct. He shall then be considered to be under oath while providing such testimony before the committee.

(b) A public employee who is a designee of an elected official appearing before a committee shall identify himself and the elected official for whom he is the designee. Before being allowed to present testimony on behalf of an elected official, the designee shall be required to file with the committee chairman a written statement from the elected official evidencing the designation and a written certification from the designee that he is acting in the performance of his official public duties. The written statement and certification shall be made on forms developed by the Clerk of the House.

HR 8, 1974; HR 11, 2008 1st Ex. Sess., eff. Feb. 22, 2008; HR 19, 2022, eff. May 11, 2022.

HRULE 14.33

Filing of prepared statements

Rule 14.33. Filing of prepared statements

A. Any interested person or any committee member may file with the committee a prepared statement concerning a specific instrument or matter under consideration by the committee or concerning any matter within the committee's scope of authority, and the committee records shall reflect receipt of such statement and the date and time thereof.

B. Any person who files a prepared statement which contains data or statistical information shall include in such prepared statement sufficient information to identify the source of the data or statistical information. For the purposes of this Paragraph, the term "source" shall mean a publication, website, person, or other source from which the data or statistical information contained in the prepared statement was obtained by the person or persons who prepared the statement.

HR 8, 1974; HR 7, 2005, eff. June 16, 2005.

HRULE 14.34

Copies of Instruments Required Prior to Consideration

Rule 14.34. Copies of Instruments Required Prior to Consideration

No committee shall consider any instrument referred to it until each member of the committee present has been furnished a copy of the instrument.

HR 8, 1974.

HRULE 14.35

Second to Motion Not Required

Rule 14.35. Second to Motion Not Required

No second to any motion offered in a committee shall be required in order for the motion to be considered by the committee.

Mason's Manual: Sec. 632(e)

HR 8, 1974.

HRULE 14.36

Quorum Defined

Rule 14.36. Quorum Defined

A quorum of a committee shall consist of a majority of the then current membership of the committee.

Mason's Manual: Sec. 500-504 and 613

HR 8, 1974.

HRULE 14.37

Quorum; Members Appointed Pursuant to Rule 14.17

Rule 14.37. Quorum; Members Appointed Pursuant to Rule 14.17

Members appointed to committees pursuant to House Rule 14.17 shall be considered members of the committee for determination of the number of members necessary for a quorum and for establishing the presence of a quorum only at meetings at which the subject matter they were appointed to study is to be considered.

HR 8, 1974; HR 4, 1978.

HRULE 14.38

Quorum Required to Transact Business

Rule 14.38. Quorum Required to Transact Business

The presence of a quorum shall be required for a committee to transact business and no official action shall be taken by a committee unless a quorum is present.

HR 8, 1974.

HRULE 14.39

Absence of Quorum; Authority of Members Present

Rule 14.39. Absence of Quorum; Authority of Members Present

In the absence of a quorum the members present shall have authority only: a) to adjourn; b) to debate and discuss matters before the committee; c) to receive information or opinion from other persons; d) in the case of a full committee, to constitute a temporary sub-committee which may determine recommendations to be made to the full committee.

HR 8, 1974.

HRULE 14.40

Vote Required for Committee Action; Members Disqualified or Recused

Rule 14.40. Vote Required for Committee Action; Members Disqualified or Recused

The approval of a majority of the quorum present shall be required for a committee to decide a question or to take official action on any matter. However, a member recused or disqualified from voting on a question for reasons provided in the Rules shall not be counted for the purpose of determining the number necessary for or for establishing a quorum to act on that question.

Mason's Manual: Sec. 510

HR 8, 1974; HR 45, 1998, eff. May 20, 1998.

HRULE 14.41

Voting; Members Appointed Pursuant to Rule 14.17

Rule 14.41. Voting; Members Appointed Pursuant to Rule 14.17

Members appointed to a committee under authority of House Rule 14.17 are authorized to vote only on questions relating to the subject matter which they were appointed to study. Such members shall not vote on any questions concerning prefiled legislative instruments.

HR 8, 1974.

HRULE 14.42

Proxy Voting Prohibited

Rule 14.42. Proxy Voting Prohibited

No committee member shall be allowed to vote by proxy under any circumstances, and no member shall be permitted to vote on a matter before a committee if he was not in the committee room before the vote is announced by the chairman.

HR 8, 1974.

HRULE 14.43

Roll Call; Record Votes Required

Rule 14.43. Roll Call; Record Votes Required

Any motion to report an instrument referred to a committee to which an objection is offered and any motion to adopt or reject a substantive committee amendment to which an objection is offered shall be decided by a roll call vote of the members. Any other vote shall be by roll call if demanded by a member. All roll call votes and all votes on motions to report an instrument shall be record votes and shall appear in the records of the committee as otherwise provided in these rules. In the case of record votes the names of members voting for the motion, the names of members voting against the motion, and the names of members abstaining shall be recorded. In the case of a record vote on a motion to report an instrument to which there is no objection, the names of all members present shall be recorded as voting for the motion. For the purposes of this rule a substantive amendment shall be deemed to be any amendment which is not strictly technical in nature.

Mason's Manual: Sec. 535

HR 8, 1974; HR 4, 2006 2nd Ex. Sess., eff. Dec. 13, 2006.

HRULE 14.44

Committee Chairman; vote

Rule 14.44. Committee Chairman; vote

The chairman of a committee may vote on all questions before the committee; however, he shall be required to cast his vote only when the committee is equally divided. The right of the chairman to vote to break a tie exists only if he has previously not voted.

Mason's Manual: Sec. 513 and 514

HR 5, 1978.

HRULE 14.45

Report of Interim Study Required

Rule 14.45. Report of Interim Study Required

Each standing committee which meets for the purpose of interim study as provided in the Rules shall submit a report of its activities and recommendations to the House of Representatives at the subsequent regular session.

HR 8, 1974; HR 45, 1998, eff. May 20, 1998.

HRULE 14.46

Reports of Committees; Chairman to Sign

Rule 14.46. Reports of Committees; Chairman to Sign

Each report of a committee shall be signed by the chairman thereof.

Mason's Manual: Sec. 663-668

HR 8, 1974.

HRULE 14.47

Minutes of meetings required; contents

Rule 14.47. Minutes of meetings required; contents

Minutes of each meeting shall be kept and they shall constitute a written report of committee proceedings had at such meeting. In such minutes there shall be entered:

(1) The time and place of the meeting of the committee.

(2) The members present or absent.

(3) The names and addresses of all persons appearing before the committee, with the name and address, of any person, firm, corporation or association on whose behalf the appearance is made.

(4) The instruments or other matters considered, by number where appropriate.

(5) Action of the committee, including final action of the committee with respect to each instrument on which the committee makes a report to the House.

(6) The vote of each member on each instrument, matter or motion considered by the committee on which a record vote is taken.

HR 8, 1974; HR 79, 2008, eff. June 23, 2008.

HRULE 14.48

Permanent Committee Records; Disposition

Rule 14.48. Permanent Committee Records; Disposition

A. The permanent records of the committee shall include the minutes of each meeting and a file on each instrument received by the committee. The file on each instrument shall include a copy of committee amendments proposed by any member, whether adopted or not, and the disposition thereof; a copy of any fiscal note, actuarial note or notice attached to an instrument at the time of committee consideration; all prepared statements which have been filed with the committee chairman by members or interested parties; the minutes of the public hearing held on the instrument and of the meeting at which the committee report thereon was decided, and also a copy of the committee report thereon.

B. The minutes, as approved by the committee, and other permanent records of the committee shall be public records and shall be maintained by the committee secretary; however, the Clerk of the House shall be the official custodian of such records.

HR 8, 1974; HR 45, 1998, eff. May 20, 1998; HR 4, 2006 2nd Ex. Sess., eff. Dec. 13, 2006.

HRULE 14.49

Joint Committees, Subcommittees; Establishment; Rules Applicable

Rule 14.49. Joint Committees, Subcommittees; Establishment; Rules Applicable

A. Joint committees may be established as provided in the Rules. The provisions of this Chapter shall apply to joint committees to the extent possible.

B. The chairman of a standing committee may establish subcommittees and authorize them to meet and to take action subject to the approval of the standing committee. In addition, each standing committee, and each joint committee established as provided in House Rule 14.16, may establish subcommittees and authorize them to meet and to take action subject to the approval of the parent committee. The provisions of this Chapter shall apply to subcommittees except where clearly inapplicable.

Mason's Manual: Sec. 653-659

HR 8, 1974; HR 45, 1998, eff. May 20, 1998; HR 4, 2006 2nd Ex. Sess., eff. Dec. 13, 2006.

HRULE 14.50

Subcommittees; Officers, Studies, Reports, Subcommittees of

Rule 14.50. Subcommittees; Officers, Studies, Reports, Subcommittees of

A. The chairman and vice chairman and the members of each subcommittee shall be appointed by the chairman of the full committee.

B. Subcommittees are authorized to undertake studies on matters within the scope of their jurisdiction only when so directed by the parent committee or the chairman of the parent standing committee.

C. Subcommittee reports shall be submitted to the parent committee for approval, rather than to the House directly; no report or recommendation of a subcommittee shall be binding on the full committee.

D. Subcommittees shall have no authority to establish subcommittees.

Mason's Manual: Sec. 650

HR 8, 1974; HR 4, 2006 2nd Ex. Sess., eff. Dec. 13, 2006.

HRULE 14.51

Standing committees; subpoena power, punishment for contempt

Rule 14.51. Standing committees; subpoena power, punishment for contempt

Each standing committee established by House Rule 6.1, each joint committee established pursuant to the authority granted in House Rule 14.16, and any subcommittee of such standing or joint committee is hereby specifically and expressly granted the power and authority to hold hearings, subpoena witnesses, administer oaths, require the production of books and records, and to do all other things necessary to accomplish the purposes of the study or investigation assigned to it by the House or by the legislature or by a majority of the members of the committee. However, a subpoena or a subpoena duces tecum shall be issued only upon the approval of the Speaker upon the request of the chairman of the committee or upon the request of a majority of the members of the standing committee. The chairman of the committee or a majority of the members of the committee, as the case may be, shall submit sufficient information to the Speaker to justify the issuance of the subpoena or subpoena duces tecum which shall include a description in general terms of the proceeding for which the issuance of the subpoena is sought; in the case of process to secure the attendance and testimony of a witness, the reasons for believing that the testimony of the witness is relevant to the proceeding; in the case of process to secure the production of books or records, the reasons for believing such materials are relevant to the proceeding; in either such instance a subpoena is sought, the reasons why a subpoena is necessary to obtain such attendance, testimony, or materials; and any other information the Speaker deems necessary. In the event a subpoena or subpoena duces tecum is not honored, such committees shall have the power to punish for contempt. In addition, such committees shall have the power to provide for the prosecution of any individual for refusal to testify, false swearing, or perjury before the committee in accordance with the laws of this state.

Mason's Manual: Sec. 795-803

HR 8, 1973; HR 4, 1978; HR 11, 1999; HR 11, 2008 1st Ex. Sess., eff. Feb. 22, 2008.

HRULE 14.52

Committees; authority with respect to funds from other than state sources

Rule 14.52. Committees; authority with respect to funds from other than state sources

Each of the standing committees established by House Rule 6.1 and each of the joint committees established pursuant to House Rule 14.16 is authorized to contract for, receive, accept and expend any funds made available from sources outside of state government.

HR 8, 1973; HR 4, 1978.

HRULE 14.53

Employees

Rule 14.53. Employees

A. The secretary assigned to each committee shall maintain committee records, prepare committee reports, and perform such other duties as assigned by the chairman or the committee or by these rules or the House Rules. The clerk assigned to each committee shall perform such duties as assigned by the chairman or the committee.

B. With respect to the operations of the standing committees of the House of Representatives, supervision of House Legislative Services employees assigned to each such committee shall be exercised by the executive director in coordination with each respective committee chairman. All other employees of the House of Representatives assigned to a committee shall be under the general direction of the Speaker and under the direct supervision of the committee chairman subject to the approval of a majority of the committee.

HR 8, 1974; HR 45, 1998, eff. May 20, 1998.

HRULE 15.1

Applicability

CHAPTER 15. DISCIPLINE AND EXPULSION OF MEMBERS

Rule 15.1. Applicability

This Chapter shall apply whenever a resolution is introduced in the House of Representatives to take disciplinary action against or to expel a representative on grounds provided in Article X, Section 24 or Article III, Section 7 of the constitution, but shall not apply to any action by the Speaker under the provisions of Chapter 5 or any other provision of the rules.

HR 4, 1st Ex. Sess., 1986.

HRULE 15.2

Select Committee on Discipline and Expulsion

Rule 15.2. Select Committee on Discipline and Expulsion

A. Notwithstanding any other rule to the contrary, a resolution covered by this Chapter shall be referred to and be reported by a select committee, which is hereby created and which shall be designated the Select Committee on Discipline and Expulsion. The members of the select committee shall be all members of the House of Representatives; however, any representative who is the subject of a resolution to be considered by the select committee is recused and shall not be a member of the select committee when it considers such resolution. No such resolution shall be referred at any time to a standing committee. Except as otherwise provided in this Chapter, Chapter 14 shall govern the procedure to be used and the actions to be taken by the select committee.

B. Unless recused as a member of the select committee, the Speaker shall be the chairman of the committee and the Speaker Pro Tempore shall be the vice chairman. In the absence of the Speaker, the Speaker Pro Tempore shall serve as chairman; in the absence of the Speaker Pro Tempore, the Speaker shall appoint a vice chairman; in the absence of both, the committee shall elect a chairman and a vice chairman.

C. The Clerk of the House shall serve as secretary of the committee and shall be its chief administrative officer. He shall be responsible for taking, preserving, and certifying testimony, verbatim proceedings, and minutes of the meetings of the committee. He shall be the custodian of all its records and documents and shall perform such other duties in connection with its work as are directed by the committee, its chairman, or the House of Representatives.

Mason's Manual: Sec. 560-562, 564, and 796-802

HR 4, 1st Ex. Sess., 1986.

HRULE 15.3

Sergeant at Arms; duties

Rule 15.3. Sergeant at Arms; duties

The Sergeant at Arms of the House shall serve as Sergeant at Arms of the select committee and shall perform services for the committee in accordance with his powers, duties, and functions otherwise set forth in these rules or as directed by the committee, its chairman, or the House of Representatives.

HR 4, 1st Ex. Sess., 1986.

HRULE 15.4

Meetings; notice; quorum; vote; oath

Rule 15.4. Meetings; notice; quorum; vote; oath

A. All meetings of the Select Committee on Discipline and Expulsion shall be held in the House Chamber. Notice of meetings, insofar as practicable, shall be given in accordance with applicable rules of the House of Representatives governing notice of meetings of standing committees during legislative sessions.

B. A majority of the total members of the committee shall constitute a quorum. The affirmative vote of a majority of the committee members shall be required for actions of the committee.

C. Prior to consideration of any resolution referred to the select committee or undertaking any business in connection therewith, except establishing a quorum, the members of the select committee shall subscribe to the following oath, which shall be administered by the Clerk or, in his absence, by a person qualified to administer oaths selected by the chairman:

"I do solemnly swear (affirm) that in all things pertaining to the matters referred to this select committee and contained in House Resolution No. _____ of _____, I will do impartial justice according to the constitution and laws. I do solemnly swear that I will support the constitution and laws of the United States and of this state, and that I will faithfully and impartially discharge and perform all the duties incumbent upon me as a member of the House Select Committee on Discipline and Expulsion in the aforesaid matter, according to the best of my ability and understanding, so help me God."

Mason's Manual: Sec. 500 and 510

HR 4, 1st Ex. Sess., 1986.

HRULE 15.5

Employees

Rule 15.5. Employees

A. The chairman of the committee shall have authority to assign any employees of the House, and in necessary cases, to employ additional personnel, including but not limited to court reporters, to assist the committee in carrying out its functions and duties. He shall fix the terms and conditions and the compensation of personnel employed to assist the committee, and such employees shall be deemed to be employees of the House of Representatives.

B. The chairman also shall have authority to direct the use of any facilities, equipment, and supplies of the House of Representatives for use in connection with the work of the committee.

HR 4, 1st Ex. Sess., 1986.

HRULE 15.6

Records

Rule 15.6. Records

A verbatim record shall be made of all of the proceedings of the committee at each meeting, including all testimony of witnesses, shall be transcribed without delay, and shall be a public record. Written evidence presented shall be made a part of the record. Copies shall be made available, as prepared, to the members of the committee and its staff and to the representative involved in the proceeding and his legal counsel.

HR 4, 1st Ex. Sess., 1986.

HRULE 15.7

Initiation of action; House Resolution required

Rule 15.7. Initiation of action; House Resolution required

A. An action to expel or to discipline a representative shall be initiated only by a House Resolution, which shall be in the form used by the House for House Resolutions and shall bear a brief title indicative of its subject and purpose; shall set forth the causes and grounds for which expulsion or disciplinary action by the House of Representatives is sought, and shall state the action sought to be taken by the House of Representatives. Only one representative shall be the subject of any such resolution.

B. Each such resolution shall be introduced and, except as otherwise specifically provided in this Chapter, shall be subject to the processes established by these rules for House Resolutions, particularly as set forth in Chapter 8 hereof. No such resolution shall be prefiled.

HR 4, 1st Ex. Sess., 1986.

HRULE 15.8

Procedure in the House of Representatives

Rule 15.8. Procedure in the House of Representatives

A. When a resolution seeking the expulsion of or disciplinary action against a representative is introduced, a motion to refer the resolution to the Select Committee on Discipline and Expulsion shall be made automatically by the author of the resolution. The motion shall require the favorable vote of a majority of the elected members of the House of Representatives for adoption. If such motion is adopted, the presiding officer then shall announce to the House of Representatives the day and hour when the select committee shall commence its hearings on the resolution. If no such motion is adopted, the resolution shall not be referred to any other committee but shall be returned to the calendar subject to call or otherwise disposed of.

B. If the member in question is charged with a crime by local, state, or federal authorities, the disciplinary proceedings in the House will automatically be stayed if the member is in attendance at the session and able to perform the duties of his office, until the final disposition of said criminal charges.

C. If the representative who is the subject of the resolution is present in the chamber when the resolution is introduced, the presiding officer shall cause the Sergeant at Arms to deliver to him a copy of the resolution and a copy of these rules, together with written notice of the day and hour when the committee will meet to commence its hearings.

D. If the representative is not present in the chamber, the presiding officer shall inquire of the Clerk whether or not he has answered roll call or cast any vote on that legislative day. If the Clerk informs him and the House of Representatives that the representative has not answered roll call or cast any vote, the presiding officer shall (1) appoint legal counsel to represent the absent representative before the committee at all of its proceedings and (2) direct the Sergeant at Arms to locate the representative and deliver to him, and also to the attorney appointed by the presiding officer, a copy of the resolution, a copy of these rules, a written notice of the day and hour when the select committee will commence its hearings on the resolution, and the name, address, and telephone number of the legal counsel appointed to represent him unless and until he designates legal counsel of his own choice.

E. If, after reasonable effort, the Sergeant at Arms is unable to locate the absent representative or for any reason is unable to deliver to him the documents herein stipulated, delivery to the attorney appointed by the presiding officer shall be deemed sufficient notification to the representative. If at any time during the proceedings in the committee the absent representative selects legal counsel to represent him or if he appears in person and notifies the committee that he does not desire to be represented, the attorney appointed by the presiding officer shall be discharged.

F. An attorney appointed to represent an absent representative shall be compensated in accordance with the terms and conditions and in the amount determined by the chairman of the committee. Such compensation shall be an expense of the committee, payable out of funds available to the House of Representatives for expenses of the House and committees.

HR 4, 1st Ex. Sess., 1986.

HRULE 15.9

Procedure in committee

Rule 15.9. Procedure in committee

The Select Committee on Discipline and Expulsion shall provide to the representative who is the subject of the resolution under consideration all the rights of a person to due process of law and, accordingly, shall:

(1) Conduct all hearings as public hearings, and only after informing the member in writing of the date and time of each meeting held for the purpose.

(2) Invite the member who is the subject of the hearing to attend all meetings of the committee in person and to be accompanied by legal counsel, or to be represented at the hearings by legal counsel of his choice if he is unable to be present.

(3) Afford the member full opportunity to be heard and to present witnesses on his behalf and extend to him the right to confront and to cross examine witnesses called by the committee.

(4) Advise the member immediately of the date and time of each meeting, in cases where the committee adjourns prior to completing its work and submitting its report to the House of Representatives.

HR 4, 1st Ex. Sess., 1986.

HRULE 15.10

When meetings may be held; report privileged; House action

Rule 15.10. When meetings may be held; report privileged; House action

A. Notwithstanding any provision of this Chapter or of these rules, the select committee may meet and hold hearings on any day and at any time during a legislative session, except when the House of Representatives is in session.

B. The report of the select committee shall be privileged and may be received and acted upon at any time.

HR 4, 1st Ex. Sess., 1986.

HRULE 15.11

Witnesses; subpoena power; punishment for contempt

Rule 15.11. Witnesses; subpoena power; punishment for contempt

A. Only those persons called by the committee shall be permitted to testify as witnesses, provided that the committee complies with Rule 15.9(3). Before a witness is permitted to testify he shall be sworn or affirm to speak the truth and nothing but the truth.

B. The select committee is hereby specifically and expressly granted the power and authority, with the written approval of the chairman of the committee, to hold hearings, subpoena witnesses, administer oaths, require the production of books and records, and to do all other things necessary to accomplish the purposes of its hearings and deliberations.

C. In the event a subpoena or subpoena duces tecum is not honored, the select committee also shall have the power to punish for contempt and to provide for the prosecution of any individual for refusal to testify, false swearing, or perjury before the select committee in accordance with law.

Mason's Manual: Sec. 802

HR 4, 1st Ex. Sess., 1986.

HRULE 15.12

Receipt of resignation; authority of presiding officer

Rule 15.12. Receipt of resignation; authority of presiding officer

Notwithstanding any provisions of this Chapter, if, at the time a resolution covered by the provisions hereof is introduced, a written resignation signed by the representative who is the subject of the resolution has been received by the Speaker, no meeting of the select committee shall be held if the Speaker so directs. If such a resignation is received by the Speaker or by the chairman of the select committee after hearings by the committee have commenced, the select committee chairman shall have authority to terminate the meetings of the committee. However, if such a resignation so received is effective immediately, the Speaker or the chairman, as the case may be, shall cancel or terminate the select committee meetings.

HR 4, 1st Ex. Sess., 1986.

HRULE CUSTOM, USAGE

Part II. Custom, Usage, and Practice in the Louisiana House of Representatives

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*This list was compiled for, presented to, and approved by the Committee on House & Governmental Affairs pursuant to House Resolution No. 5 of the 2006 Second Extraordinary Session. This list is illustrative of the customs, usages, and practices of the House of Representatives and is not intended to be an exclusive list of all the customs, usages, and practices of the House of Representatives. (*See*, House Rule 13.3)*

1.

No member except the author/handler can move a bill through Order. (See, Rule 8.26A)

2.

Author can always return his bill to the calendar without an objection being recognized. (See, Rule 8.26)

3.

Member can withdraw his bill at any time without an objection being recognized. (See, Mason's section 727)

4.

House allows author to file amendments as late as opening remarks and still have them considered first. (See, Rule 11.3)

5.

House allows author to withdraw an amendment without an objection being recognized. (See, Mason's section 403(1))

6.

Once offered, the House allows author to withdraw and resubmit amendments without an objection being recognized. (See, Mason's section 403(3))

7.

House does not recognize amendments in the second degree, that is amendments to pending amendments. (See, Mason's section 408)

8.

Members use personal privilege for purely personal explanation and information purposes. (See, Mason's sections 222 - 224)

9.

House does not table Senate Bills. The motion the House recognizes is to "indefinitely postpone."

10.

A committee will generally schedule any member's bill such member so requests. (See, Rule 6.10)

11.

Members change their votes without question by the body. (See, Rule 10.8)

12.

House does not question germaneness of committee amendments. (See, Rule 11.1)

13.

Speaker does not rule on germaneness absent a challenge.

14.

Speaker does not rule on germaneness of Senate amendments. (See, Mason's section 766)

15.

Questions of constitutionality are left to the Courts, but for constitutional limits on legislative procedures, *i.e.* vote required for final passage.

16.

House does not question Speaker's interpretation of constitutional requirements for passage of bills.

17.

Members present in the chamber can have the Clerk vote their machine without public announcement. (See, Rule 10.3)

18.

For bills on which many members desire to participate in debate, the House limits debate: 10 minutes to open, 5 minutes per speaker, 5 minutes to close by adopting a rules suspension referred to as the "5 Minute Rule". [At one time referred to as the "Ensminger Rule"] (See, Rule 5.7)

19.

Bills returned to the calendar may be called from the calendar on the same legislative day without prior notice to the House. (See, Rule 8.26)

20.

Calling bills returned to calendar from the "to be called" list requires Speaker's prior consent. (See, Rule 8.26)

21.

House does not read the journal in full every legislative day. (See, Rule 12.5)

22.

Speaker/Clerk properly state motions to accomplish member's intent. (See, Rule 9.1)

23.

Committees do amendments "in concept" - floor amendments are not offered "in concept". (See, Rule 11.4)

24.

By invitation, a visitor can sit with a member on the north side of the Chamber. (See, Rule 1.2[Section A in the diagram of the Chamber])

25.

Votes changed before public release of the printed vote are not announced or recorded in journal. (See, Rule 10.8)

26.

Members do not question an author's request to reject Senate amendments.

27.

The House and its committees record all members who present themselves at any time of a session day or meeting as having answered the opening roll call. (See, Rule 4.2)

28.

Substitute motions are amendments to the initial motion (See, Rule 9.14A Table), however we use 'substitute' to offer a second, alternative motion of the same class or a higher class of motion.

29.

The House allows the deferral of bills on third reading, preserving their precedence for consideration. This is recorded in the journal as 'under a suspension of the rules' however no suspension is stated by the Chair at the time the bill is deferred. (See, Rule 8.8)

30.

House allows the motion to table a pending amendment without that motion carrying the bill to be amended to the table. (See, Mason's sections 337(1) & (2) & 399)

31.

On motion to direct committee to report, the House does not direct committee how to report, merely that the committee report. (See, Rule 6.13)

32.

Third conferee is appointed to insure that opponents have voice on conference. (See, Rule 6.14)

33.

House recognizes motion to adopt or reject or return or table on conference committee reports. (See, Mason's section 766)

34.

The House will not notice or consider a conference report signed by fewer than 2 House members or 2 Senators (See, Mason's section 658)

35.

The House does not recognize the motion to reject as a valid substitute to the motion to adopt a conference report. The sole effect of such a motion would be to wrest closing from the author or sponsor. (See, Rule 8.27(B))

36.

Committee chairs exercise discretion as to the order in which to consider instruments listed on the agenda. (See, Rules 14.2(5), 14.25(4), and 14.30(A))

Mason's Manual: Sec. 39